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Correction of errors of substance may be made only on the floor of the House with the permission of the Speaker. However, correction of typographical or grammatical errors which Members suggest for the Bound Volumes which will be compiled at the end of the Meeting may be clearly marked in the Daily Report, and the copy containing the corrections submitted at the Editor's Office, Parliament House, not later than four clear days after the publication of the Daily Report.

BOUND VOLUMES of the Official Report (each with a comprehensive Index) are published periodically during the Session. There is no fixed subscription rate, but prices will be quoted on each publication.

*Published by the Office of Chamber Reporting
Parliament House, Osu, Accra.*

Designed and Printed by the Publishing Department

Parliament House, Osu, Accra.

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THE
PARLIAMENT OF THE REPUBLIC
OF GHANA

SECOND MEETING, 2025

Tuesday, 24th June, 2025

The House met at 2.47 p.m.

[THE SPEAKER IN THE CHAIR]

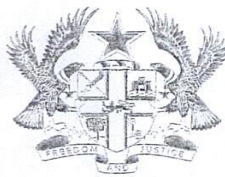
[PRAYERS]

The Speaker: Hon Members, for good a reason, we would not take the Roll Call or recite the National Pledge. We would go straight to take two communications from the President.

COMMUNICATION FROM THE
PRESIDENT

Absence from Ghana

The Speaker: Hon Members, the first message is dated 20th June, 2025, and it reads:



REPUBLIC OF GHANA

Jubilee House

The President

20th June 2025

Rt. Hon. Speaker

ABSENCE FROM GHANA

Pursuant to Article 59 of the 1992 Constitution of the Republic of Ghana, I write to formally inform you of my intention to travel to Abuja, on 21st June 2025 to participate in the 67th Ordinary Session of the ECOWAS Authority of Heads of State and Government Meeting scheduled to be held on 22nd June 2025 and return same day.

During my absence, the Vice President, Professor Naana Jane Opoku-Agyemang, shall, in accordance with Article 60(8) of the Constitution, assume my duties.

JOHN DRAMANI MAHAMA

**THE RT. HON. SPEAKER
OFFICE OF PARLIAMENT
PARLIAMENT HOUSE
ACCRA**

cc: The Vice President
Jubilee House
Accra

The Chief of Staff
Jubilee House
Accra

The second message is dated 23rd June, 2025 and it reads:

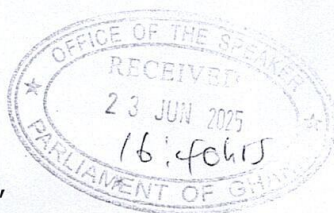


REPUBLIC OF GHANA

Jubilee House

The President

23rd June, 2025



Rt. Hon. Speaker,

ABSENCE FROM GHANA

In accordance with Article 59 of the 1992 Constitution of the Republic of Ghana, I write to formally notify you of my intention to travel to Brussels on 24th June, 2025, to participate in the GAVI Global Summit on Health and Prosperity through Immunisation, scheduled for 25th June, 2025.

Following the summit, I will proceed to London to hold meetings with potential investors in the energy sector. I am expected to return to Ghana on 29th June 2025.

In my absence, the Vice President, Professor Naana Jane Opoku-Agyemang, shall perform my functions in accordance with Article 60(8) of the Constitution.

JOHN DRAMANI MAHAMA

**THE RT. HON. SPEAKER
OFFICE OF PARLIAMENT
PARLIAMENT HOUSE
ACCRA**

cc: The Vice President
Jubilee House
Accra

The Chief of Staff
Jubilee House
Accra

The Speaker: Hon Members, what is the meaning of Abuja?

[Pause]—

If you are willing to pay, I would help you—*[Laughter]*— It means “Abu—red” meaning “Abu as a person who was red”.

Hon Members, our Colleagues with us here who decided long ago that they were Independent Members but agreed with the National Democratic Congress (NDC) to do Business with the Majority in Parliament, wrote their decision letters long ago but the letters did not get to my office until recently. We know the practice is to read them so that they can be captured in the *Official Report* and so I am compelled to read them today.

I have about three of these letters from three of them and I think I have read one earlier.

ANNOUNCEMENTS

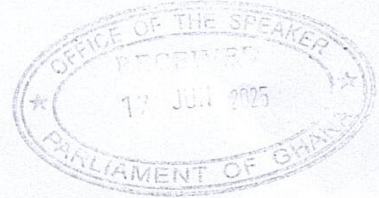
I have one from the Hon Kwame Asare Obeng, the Member of Parliament for the Gomaa Central constituency dated 7th January, 2025, and it reads:

2.57 p.m.

MR. KWAME ASARE OBENG
HSE NO.: AB20, GOMOA ASEBU
GOMOA CENTRAL CONSTITUENCY

6TH JANUARY, 2025

THE RIGTH HONOURABLE SPEAKER OF PARLIAMENT
PARLIAMENT OF GHANA
PARLIAMENT HOUSE
ACCRA



Dear Sir,

DECISION TO CAUCUS WITH THE NDC MAJORITY IN PARLIAMENT

I write to notify your good offices of my decision as the Independent Member of Parliament-elect for Gomoa Central Constituency to caucus with the NDC Majority in Parliament.

Counting on your necessary cooperation.

Thank you.

A handwritten signature in black ink, appearing to read 'Kwame Asare Obeng'.

MR KWAME ASARE OBENG

cc:

1. Mahama Ayariga, MP
Majority Leader
2. Alexander Afenyo-Markin, MP
Minority Leader



Hon. Ohene Kwame Frimpong
Member Of Parliament
Asante Akim North Constituency



Office of Parliament
Osu - Accra
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The Rt. Hon. Speaker
Parliament of Ghana,
Parliament House,
Accra, Ghana.

28/01/2025

Dear Rt. Hon. Speaker,

Declaration of Decision to Caucus with the Majority in the 9th Parliament

Pursuant to your directive on Wednesday, January 8, 2025, requiring all independent Members of Parliament to officially communicate their decision to align with either side of the House, I write to declare my decision to caucus with the Majority in Parliament, being the National Democratic Congress (NDC).

This decision reflects my commitment to the supreme interest of the people of Asante Akyem North Constituency, whom I am privileged to represent. After thorough consideration, I am confident that aligning with the majority will create the conducive environment necessary to champion development and progress for my constituents.

As always, my priority is to serve and advance the welfare of my constituency. I trust this decision will enhance collaboration and resource mobilization for their benefit

Thank you.

Respectfully yours,

Ohene Kwame Frimpong

Hon. Ohene Kwame Frimpong



HON. STANLEY YAW NANDAYA

MEMBER OF PARLIAMENT FOR WULENSI CONSTITUENCY

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Accra - Ghana
Cell: (+233) 024 306 2927



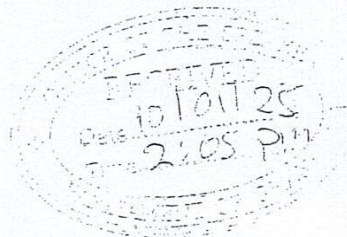
Residential Address:
House No. CV120A12
Congo Kasoa - Central Region
Email: stanleynandaya10@gmail.com

My Ref.....

Your Ref.....

Date: 9th January, 2025

The Honourable Speaker
Parliament of Ghana
Parliament House
East Ridge, Accra
Ghana



Dear Honourable Speaker,

A LETTER TO DO BUSINESS WITH THE NDC IN THE HOUSE

I hope this letter finds you in good health and high spirits. As the newly elected Member of Parliament for the Wulensi Constituency, I am writing to express my intention to collaborate with the National Democratic Congress (NDC) to do business with in the 9th Parliament.

Having won my seat as an independent candidate, I recognize the importance of unity and cooperation in addressing the pressing issues facing our constituents and the nation at large. I believe that by working closely with the NDC, we can foster constructive dialogue and develop policies that benefit all citizens.

My primary focus will be on initiatives that promote economic development, enhance social welfare, and improve constituency infrastructure. I believe that my independent perspective, combined with the NDC's majority support, will drive significant progress in our legislative agenda.

I would appreciate the opportunity to discuss potential collaborations and how we can align our efforts for the greater good of our constituents. I look forward to your guidance on the best way to facilitate this partnership and contribute effectively to our parliamentary proceedings.

Thank you for your attention, and I look forward to your response.

Yours sincerely,

HON. STANLEY YAW NANDAYA

Member of Parliament
Wulensi Constituency

CC
Majority Leader

The Speaker: Hon Members, in view of the decision to be sitting at this hour, we need to change the Order of Business by always recognising our august visitors, particularly the students who come from various institutions early so that they could go back to their constituencies.

Again, those who are not able to return the same day or at least have a rest because I am told they usually travel long distances to come here. So, permit me to introduce to you the visitors we have at the Public Gallery.

We have from the Hopin Foundation, students from California State University, United States of America, 17 visitors led by their leader Sherif Macgbatey. He is a senior tour guide.

This Foundation is actually situated in the Tamale North Constituency. The name seems to have given some different impression. Hopin Foundation students from California State University, USA, situated in the Tamale North Constituency [*Laughter*— I can see them at the left side of the public gallery and I have no doubt in my mind that they come from the California State University, USA, but they are located at Tamale North [*Laughter*— I am sure the Member of Parliament (MP) for Tamale North is around.

Dr Murtala Muhammed Ibrahim: He has stepped out.

The Speaker: You are not MP for Tamale North. Yes, can you clarify this?

Dr Ibrahim: Thank you, Mr Speaker. There is actually a University in the U.S., but they have a Foundation here. So, they are actually from the U.S. So, they are not using a name in the U.S., when in actual fact they are in Tamale North. That I know.

The Speaker: So, the real rendition should have been students from California State University, USA, who are members of Hopin Foundation and they visited Ghana and particularly Tamale North Constituency.

You are most welcome. On behalf of the Parliament of Ghana, we wish you all the best and I am sure the usual warm hospitality of our people is being extended to you. It is a pleasure to have you.

[Students from California State University, USA, and members of Hopin Foundation, Tamale North Constituency were acknowledged]

Please, we have another group coming from the Presec Basic Junior High School. They are 60 in number and they are being led by their leader, Mawuena Kofi Abrey. He is a teacher and the school is located at the Madina Constituency. They are at the right side of the public gallery and you can see it is quite a large number. I can see the Madina MP. I am sure you have a hand in bringing them here. That is quite a large number, 60. You are most welcome. This is your home. This is your

house. You are at liberty to come any time to observe what your MPs do here and learn so that in future you will be better than we are today. So, please, you may resume your seats.

[Pupils from Presec Basic Junior High School were acknowledged]

3.07 p.m.

The last group is from the leadership of tertiary institution, Civic Education Clubs. They are 35 in number, led by their leader, Eric Djadatey. He is a tertiary coordinator of the National Commission for Civic Education. They are coming from the Fomena Constituency. I do not see my Deputy, who is the Member of Parliament (MP) for that area, but on his behalf and on behalf of Parliament, I welcome all of you to your House.

Parliament is your home, and you are welcome at any time. Please, you may resume your seats.

[Pupils of the Leadership of Tertiary Institution Civic Education Club were acknowledged]

The Speaker: Hon Members, we now move to the next item. I have a short communication to make. *[Pause]*

Hon Members, this Statement is on the project that we launched recently, themed: “Building the Capacity of Parliamentarians for Economic and Financial Governance.” *[Pause]* — I am

waiting for you. When you finish your conversations, then I can continue.

FORMAL COMMUNICATION BY THE SPEAKER

The World Bank Project “Building the Capacity of Parliamentarians for Economic and Financial Governance”

Hon Members, it is with a deep sense of gratitude and pride that I make this Statement on the World Bank United Kingdom Ghana Parliament’s project, themed: “Building the Capacity of Parliamentarians for Economic and Financial Governance. This project is being financed by the World Bank and the United Kingdom’s Foreign Commonwealth and Development Office (FCDO). As I stated during the launch of the project on 18th June 2025, Parliament is the foundation stone of Ghana’s democracy. Parliament thus, has the responsibility of ensuring that the socio-economic and development aspirations of the people of Ghana are realised.

Hon Members, as a means of fulfilling this mandate, Parliament has, since the birth of the Fourth Republic, provided a legitimate expression to ordinary people’s needs and aspirations, and protected the rights and dignity of citizens, especially vulnerable people.

The performance of the Eighth Parliament rekindled the hope of Ghanaians in democracy. The world stood in admiration as the Eighth Parliament succeeded where others had failed, despite the cynicism of

doomsayers. The Eighth Parliament broke the jinx of the fate of hung Parliaments all over the world, particularly in Great Britain, Australia, and even in Ghana, where we had the experience of the Third Republic.

Hon Members, the Eighth Parliament completed its full term of four years, and successful general elections were held. The Parliament revised the Standing Orders for the first time in 23 years, and ushered in a breath of fresh air to the life of the institution by restructuring the Parliamentary Service. In surmounting these challenges, the Eighth Parliament boldly positioned Ghana on the road to entrenching democracy, thus paving the way to smart and effective governance for growth and development.

Notwithstanding these achievements, Ghanaians still expect a lot more from this House in terms of holding the Government accountable by keeping to the terms of the fiduciary relationship it signed with citizens at the elections.

To refresh your memory, over the past four years, the Corruption Perceptions Index (CPI) conducted by Transparency International revealed citizens' waning trust in the Government's handling of the country's treasury. In addition, having maintained a score of 43 per cent from 2020 to 2023, Ghana scored 41 per cent in the 2024 CPI. As a means of restoring the dwindling confidence of citizens in the Government's handling of the country's resources, this House ensured that in all its transactions with the Government, it did not forsake its

pecuniary self-interest for that of the common good.

Members of Parliament might be seen at the forefront of the fight for transparency, property accountability, and judicious utilisation of Ghana's resources. Winning the war against resource theft requires more than a deep understanding of figures as displayed in budgets. We must have a better appreciation of data through a mix of financial skill sets and competencies.

Conscious of this responsibility, the Parliament of Ghana is doing everything possible to rise up to the challenge. Twelve new Committees have been established and new offices created to improve accountability and transparency in economic governance. The Ninth Parliament must, as a matter of necessity, follow up on this transformative review to build its capacity, strengthen its hands, scrutinise and examine economic policies, budgets, and the proper functioning of accountability mechanisms to ensure prudent utilisation of public funds.

Hon Members, I am proud to report that the world is responding positively to the progress made by the Eighth Parliament. The Ninth Parliament's renewed efforts at stemming corruption and enhancing good governance by the Legal Services and Governance Division, together with the Public Engagement and Citizens Bureau, have helped in this direction.

The World Bank, with its global expertise in governance reforms, and the

UK's Foreign Commonwealth and Development Office, which is renowned for its commitment to strengthening democratic institutions, have both acknowledged and applauded our progress towards improved accountability and transparency in economic governance.

3.17 p.m.

Indeed, and not in words only, the two institutions are partnering the Ninth Parliament to build a well-informed, well-equipped, and strengthened Parliament to foster appropriate development in Ghana. This partnership comes with an amount of US\$1,600,000 from these two donor nations for an initial estimated 18-month period.

Hon Members, our partners will play their role in making the resources available to us. How we judiciously apply these resources to attain the desired outcomes will rest on all of us. But largely on the following Committees, which are pencilled to benefit from the project:

- (i) Committee on Economy and Development;
- (ii) Committee on Assurances;
- (iii) Committee on Ways and Means;
- (iv) Finance Committee;
- (v) Budget Committee;

(vi) Public Accounts Committee; and

(vii) Committee on Public Administration and State Interest.

Beyond mere training of the Members of these key Committees, which deal with economic, governance and financial management, the initiative seeks to enable Parliament to put in place systems of change management to enable it to exercise its constitutional responsibilities, particularly in relation to legislation, oversight, budgetary control, and analysis of economic policies. To this end, the parliamentary office on Fiscal Analysis, the Department of Public Engagement, and the Department of Citizens Bureau will be covered by this project.

I, therefore, call on you, Members of Parliament, and the management, and staff of the Parliamentary Service, particularly the Office of the Clerk, to fully embrace this opportunity for capacity strengthening. Only a strong Parliament can sustain democratic governance and translate its dividends equitably to the ordinary citizens of Ghana without leaving anyone behind.

The World Bank and the UK's Foreign, Commonwealth, and Development Office (FCDO) will be keenly watching how transparently we apply the resources. The media will be watchdogging. Ghanaians will legitimately be policing us, let it never be said or even perceived that the people's representatives misapplied donor funds.

Instead, let the news headlines at the end of this project read:

“Squeaky clean Parliament utilises every dollar or donor fund to enhance good governance”.

I pledge, on behalf of the Parliamentary Service Board, to play a rigorous supervisory role that makes for judicious use of the funds. After all, our ability to attract more funding depends on how well we manage this project and similar ones.

Hon Members, a handshake of appreciation is the magnet that attracts further assistance. Therefore, I wish to, on your behalf, extend a handshake of appreciation to the World Bank and FCDO for the vote of faith in the Parliament of Ghana with the grant of the US\$1.6 million, for the camaraderie and the avowed desire to entrench democracy in Ghana, Africa, and the world.

Finally, I impress upon MPs to always witness to the goodness of God. The Parliament of Ghana has chalked historic achievements worth proclaiming to the world. Let us always toast a glass to our successes, not because there are no sorrows but because the candle of celebration drowns the darkness of our woes. Let us embrace and celebrate this project as a means of attracting further support to this House.

I want to take this opportunity to thank all Members of Parliament, staff, the Parliamentary Press Corps, and development partners who attended the

launching ceremony of the project in the Rt Hon Justice D. F. Annan Auditorium on 18th June, 2025. I further thank you and our highly valued listeners for their attention.

Thank you.

Hon Members, I intentionally decided to make this a Statement because I want all of you to commit yourselves to the success of this project. It is the first in the series of our partners in trying to build this institution as a model Parliament for the rest of Africa, if not the world. We have done some great things that people admire and they think that we are worthy of their support. So, I want all of you to come on board. I do not want anybody to say, tomorrow, that he was not aware of this project. Please, even though these Committees are mentioned, there are others that will be added. For example, the Fiscal Council, which you know will be established to look at the fiscal situation in the country.

So, please, do not take this as the usual normal Statements from the Speaker. I mean real business and I hope that you support me in this direction.

Hon Members, may we now take the Correction of *Votes and Proceedings* and *Official Report*. Because of some urgent Business, I will not take comments.

VOTES AND PROCEEDINGS AND THE OFFICIAL REPORT

The Speaker: We will start with the *Votes and Proceedings* of Friday, 20th June, 2025.

Yes, please?

Mr Frank Afriyie: Mr Speaker, under *Votes and Proceedings*, “MINUTES OF THE FIFTHTEENTH SITTING...” the word, fifteenth, has been wrongly spelt. So, the Clerks-at-the-Table could take note and correct accordingly.

3.27 p.m.

The Speaker: Yes, Clerks-at-the-Table, please, kindly do so. It is wrongly spelt at page 1.

Page 2...10?

Prof Kingsley Nyarko: Mr Speaker, at page 10, the item numbered 10, *53, the last line says, “... the Lands Act...”. I have checked the website of Parliament and the name of the legislation is “the Land Act”. I do not know which is which, whether it is the “Land Act” or the “Lands Act”. On the website of Parliament, it is “Land Act”, but in the *Votes and Proceedings*, it is “Lands Act”. So, I want them to check and do the reconciliation.

Thank you.

The Speaker: Yes, Hon Member, that is well noted. We will cross-check that.

Yes, Hon Member for Yendi?

Mr Abdul-Fatawu Alhassan: Mr Speaker, still at page 10, just above the item numbered 10, “QUESTIONS”, the spelling of “Prestia” is wrong. It ends with “ea”, not “ia”, so it should be “...Prestea Gold Mine”.

The Speaker: Yes, Hon Member, you are right.

Table, kindly take note.

Page 11...15?

Hon Members, in the absence of any further corrections, the *Votes and Proceedings* of Friday, 20th June, 2025, as corrected, is hereby adopted as the true record of proceedings.

I have with me a copy of the *Official Report* of Thursday, 12th June, 2025. Any corrections?

Yes, Hon Member?

Prof Nyarko: Mr Speaker, with respect, at column 38, paragraph 2, third sentence, and if you would indulge me, I will read:

“As a current Government, the Ministry has also been instructed to waive all the applicable fines that should have been applied to the defaulting entities.”

I think “current Government” should have been “caring”. I saw the Minister here; he can check whether he meant as a “caring Government” and not as a “current Government”. So, they can check and let us know which is which.

Thank you, Mr Speaker.

The Speaker: Yes, Hon Member, I think you are right. It should be talking about “care”, “c-a-r-e” and not “c-u-r-r”.

Table, kindly take note of that.

Prof Nyarko: Mr Speaker, again, at column 46, the last but one paragraph reads:

“Mr Speaker, I end by urging all of us to stand up against this medium terrorism”.

I think it should be “media terrorism” and not “medium terrorism”.

The Speaker: Yes, Table, kindly take note of that. I do not know what it would mean if you say “medium terrorism”. It should be “media terrorism”.

Hon Members, any further corrections?

Hon Members, the *Official Report* of Thursday, 12th June, 2025, as corrected, is hereby adopted as the true record of proceedings.

Yes, Majority Leader?

Mr Mahama Ayariga: Thank you very much, Mr Speaker, for the Statement on the support we are getting from the World Bank and our development partners.

Mr Speaker, I just want to crave your indulgence, pursuant to Order 67(2), for us to vary the Order of Business, so that we can lay a number of Instruments and to also take the Report of the Appointments Committee on the nominations of the President to the Supreme Court.

Mr Speaker, there is an *Addendum* to our Order Paper and it lists six Instruments. So, I crave your indulgence for us to lay those Instruments.

The Speaker: Yes, First Deputy Minority Whip?

Alhaji Habib Iddrisu: Mr Speaker, we do not have any difficulty with the six Instruments on the Order Paper *Addendum*, so we can lay them.

The Speaker: Hon Members, I grant the leave, and I will call on the sponsors to proceed to present the Instruments to the House. That means we are moving straight to the Commencement of Public Business.

[Pause]

The item is just Presentation of Instruments. I will want the sector Minister for the Ministry of Environment, Science and Technology to present all these Instruments from that Ministry with a single bow.

Yes, Majority Leader?

Mr Ayariga: Mr Speaker, the two Ministers said they need to do a little more work on the item numbered (c), “Environmental Protection (Petroleum) Regulations, 2025”; so, they will bow to the other five, except the (c).

[Pause]

The Speaker: Hon Members, we have just been informed that the item numbered (c) is not ready to be presented

to the House; so, I will permit the Minister to present the items numbered (a), (b), (d), (e), and (f) with a bow, and these will be read by the Clerks-at-the-Table for our records.

INSTRUMENTS

- a) Environmental Protection
(Refrigeration and Air Conditioning
Certification) Regulations, 2025
- b) Environmental Protection
(Environmental Assessment)
Regulations, 2025
- c) Environmental Protection
(Management of Ozone Depleting
Substances, Halocarbons, Halocarbon
Alternatives and their Products)
Regulations, 2025
- d) Environmental Protection (Effluent)
Regulations, 2025
- e) Environmental Protection (Air Quality
Management) Regulations, 2025
- f) Energy Commission (Planning and
Competitive Procurement of Additional
Electricity Generation Capacity)
Regulations, 2025

*Laid by the Minister for
Environment, Science and Technology.
Referred to the Committee on Subsidiary
Legislation*

3.37 p.m.

The Speaker: Yes, Majority Leader?

Mr Mahama Ayariga: Thank you, Mr Speaker. We have further applications to you to vary the order of Business so that we can lay the Report of

the Appointments Committee on His Excellency the President's nominations for appointments as Justices of the Supreme Court of Ghana. It is the item numbered 10(c)(ii).

The Speaker: What about 10(c)(i)? Is that one not ready? Well, you mentioned only the (ii). What about the (i)?

Mr Ayariga: Mr Speaker, earlier there were two separate reports for one batch and then another report for the second batch, or a last nominee that was considered, but it is now integrated into one Report. So, they mistakenly itemised two. It could either be a fifteenth Report or the second one, which is a Report of the Appointments Committee. So, we are deleting one of them, because it is the same Report that would be laid. So, Mr Speaker, let us take item numbered 10(c)(i), "Fifteenth Report of the Appointments Committee..." and let us delete the second one.

The Speaker: Yes, First Deputy Minority Whip?

Alhaji Habib Iddrisu: Mr Speaker, if you may indulge me, there are still some challenges with these very Reports that we are engaging on. The Ranking Member of the Committee has just been given a copy of the Report and he has to go through it. There were some points that were made in a meeting earlier today that were supposed to be captured but they have not been captured. So, Mr Speaker, can we do other Business while this engagement goes on, and then we will come back and have a look at it.

But at the moment, the Report itself is not ready. Members of the Committee,

especially the Ranking Member was just brought a copy in the Chamber and he has to do some input. So, Mr Speaker, with respect, if the Majority Leader can let us do another Business, we will do that engagement. Luckily, the Chairman and the Ranking Member are here, so we will engage, and when we are certain, they can lay it and take it later on.

Thank you, Mr Speaker.

The Speaker: Yes, Majority Leader?

Mr Ayariga: Mr Speaker, I think they have done all the engagements that they need as a Committee. I have a report that is duly signed by the Clerk of the Committee and the Chairman of the Committee. The Chairman gave me a clear indication that everything is all right with the Report of the Committee and ready to be laid. Mr Speaker, there is nothing outstanding in relation to the Report.

Mr Speaker, there are two Sides on the Committee; there is the Majority Side and the Minority Side. In the Report, the Minority has already indicated their opposition to the appointments. They have indicated that they voted to oppose the appointments, so it is obvious. Once they voted opposing the appointments, I do not see what there is to engage on. So, Mr Speaker, we are laying, taking and voting on the Report. [*Hear! Hear!*]

The Speaker: Yes, Minority Leader?

Osahen Alexander Kwamena Afenyo-Markin: Mr Speaker, with respect, I disagree with what the Leader

of the House just said. The Chairman of the Committee called a meeting late this morning for us to discuss the Report. We discussed the Report and agreed together on what the Report should be and the Committee directed its Clerk to do the needful.

A draft was brought to me while I was in the office to go through to be sure that whatever we had discussed had been so captured. I detected some omissions and wrote on the Report and told the transmitter to engage the Chair so that it will be done. Mr Speaker, I was called by our Clerk that she is right here in the Chamber that the Chairman had some disagreement, so she wants me in. Mr Speaker, I came in waiting to meet with the Chairman and they said he was at the robing room. I went there, but unfortunately, he had already been there and had got back to the Chamber.

Mr Speaker, while I was still talking to the Clerk, the Chairman handed me a Report which had been signed by the Clerk, the same Clerk who was waiting for me so we finish this thing, and the Chairman. Mr Speaker, I do not want a repeat of what happened some months ago. I have reached out to the Acting Clerk to Parliament and I have expressed my views on this matter again to him. I still want to give peace a chance.

Mr Speaker, it is not proper—*[Interruption]*—Mr Speaker, my Colleagues are introducing a phrase that I want to adopt. Mr Speaker, I would want to give dialogue a chance because when we dialogue and dialogue well, we will get to a solution. What I agree,

however, with the Leader of the House on is that, yes, Members of the Committee have expressed their principled position on the matter, but it is how that is to be expressed. If his Side is satisfied with how their views have been captured and this was a matter of discussion at the Committee, then he should be fair to us also to have our views correctly captured. I do not think that this is a matter that we should come to the Floor for cameras to witness us breaking shoulders over. We do not need to do that.

Mr Speaker, the Clerk was still engaging me, therefore I am at a loss how and why the Chairman could transmit a signed Report to the Leader of Government Business as if we are trying to frustrate the process. Mr Speaker, it is far from that. Our job is not to frustrate or obstruct, our job is to speak and make our position known; that is democracy.

So, Mr Speaker, I want to entreat my Colleagues, however huge their Majority strength may be, this is the House of Parliament. We have an outstanding matter; I have seen movement on the Floor and I pray that we would go by it so that we bring this thing to a closure. If we are done and it is not any difficult matter, they can lay their Report, then we proceed. We have our views and they have their views.

But, Mr Speaker, I will plead with you that kindly direct a further dialogue for us to close this matter, that is all I would want to submit.

The Speaker: Chairman of the Committee?

3.47 p.m.

Chairman of the Appointments Committee (Mr Bernard Ahiafor): Mr Speaker, thank you very much for the opportunity to respond to issues raised by the Minority Leader and the Ranking Member of the Appointments Committee.

Mr Speaker, this Report has since been ready and a copy was given to the Minority Leader.

And in his own handwriting, he recommended what should be included in the Report, which I have at hand. Based on that, a decision was not taken on the Report.

Mr Speaker, it was integrated and again, in his own handwriting, he indicated for the second time what should again be added. Mr Speaker, I have the handwritten—His own handwritten document with me, as evidence of what transpired.

Mr Speaker, after all has been taken into consideration, we had a meeting late this morning and we agreed on the Report. What the Minority Leader said was that, contrary to all the Appointment Reports that he has read in this House—He is of the view that a preliminary comment be indicated in the Report. And if you look at paragraph 4.0 of the Report, it has captured the preliminary comment verbatim. Then he again indicated that from the preliminary

comment, the Clerk should indicate justification for the decision stating that all Minority Members are opposed and voted against the nomination of the seven judges.

Mr Speaker, if you look at page 137 of the Report, the same had been done based on the meeting that we had this afternoon. Mr Speaker, the recording from the meeting will indicate that subject to what he wants to be captured, we voted on the Report and the audio will bear me out. And everybody said yes.

Mr Speaker, after the Report was finalised and signed, and a copy given to him, contrary to his assertion that he has just been handed over the Report, when he looked at the Report, he is again asking what is not contained in his preliminary comment, as discussed at the Committee level, be again added to the Report. [**Some Hon Members:** How? How?]

Mr Speaker, I have a copy of the preliminary comment that he brought at the Committee level. I can give out the preliminary comment and what he is asking to be added, which never occurred at the Committee level, so that they compare it with his own preliminary comment that he has added, and what he is now seeking the Clerk to add.

Mr Speaker, I indicated to the Clerk that once what he is seeking to be added is not part of the preliminary comment that he said we should include in the Report, that should not be added. Mr Speaker, to what extent, as the Chairman

of the Committee, will I indulge the Minority Leader and the Ranking Member of the Committee?

Mr Speaker, the Report is ripe to be taken, and it should be laid. In life, honesty is the best policy. It is the truth that will make all of us free. I was not the only one at the meeting. Both Majority Members and the Minority Members were at the meeting.

Mr Speaker, so long as the Hon Minority Leader said we should take the conclusion from his preliminary issues that he had raised, and what he is seeking to do now is not part of his preliminary comments and it is not an issue before the Committee, why should it be indicated?

Mr Speaker, let me also place on record that I have read Committees' Reports, including the Appointments Committee's Reports. If a decision is taken, or a Member has voted no, he does not do justification in the Report. In this House, when we take a decision by voice vote, do we indicate justification in the Report? If we take a decision by head count, do we indicate a decision in the Report? If we take a decision by voting, do we indicate why a Member has voted no or yes?

Mr Speaker, we are setting a very bad precedent. This House is setting a very bad precedent. All that I have seen to be happening is that the Report is by a majority decision. That is all. When a Member is on his feet and wants to justify why the Report should be a majority decision, then that Member can

make his submission to justify why he has voted in the way the Report is.

Mr Speaker, but to say his justification should be part of the Report, is very novel, and I am seeing it for the first time. However, we have indulged him, and the Report has captured the same.

Mr Speaker, I humbly submit. [*Hear! Hear!*]

The Speaker: Yes — in your contribution, kindly also address when the proceedings of the Committee ended. When you were considering the judges.

Mr Ahiafor: The decision of the Committee ended at the 10th floor Committee room. Mr Speaker, for the time, unless I rely on the Clerk for the exact time that he ascended.

The Speaker: When did you conclude the hearings of the Committee?

Mr Ahiafor: The vetting of the Report or?

The Speaker: The public hearing.

Mr Ahiafor: Yes, Friday.

The Speaker: All right.

Mr Ahiafor: Mr Speaker, —

The Speaker: Yes, that is alright.

Mr Ahiafor: Mr Speaker, by Wednesday, we had done six judges, and the Report on the six judges were ready and distributed for our comment. Mr

Speaker will recall that while we were in your office, we started going through the Reports. Mr Speaker, on Friday, it was only one judge that was vetted, owing to a petition that the Committee addressed. So for me, what was left was the consideration of the Report of the single judge vetted on Friday.

Mr Speaker, when the Report of the single judge was produced, a copy was given to the Minority Leader, and in the Minority Leader's own handwriting, he made comments that, that comment should be integrated. Mr Speaker, that comment was integrated —

The Speaker: Yes —

Mr Ahiafor: And because it was in his own handwriting —

The Speaker: First Deputy Speaker, yes, we heard you on that one. So let me listen to the Deputy Minority Leader. I think she is a Member of the Committee.

Deputy Minority Leader (Ms Patricia Appiagyei): Mr Speaker, yes and thank you.

Mr Speaker, I would agree with both contributors that we had a discussion on the Report and at a point in time, we came up with suggestions as to the format in which the Report was to be taken. After series of questions from the Hon Deputy Minority Leader, we all agreed that yes, what the Hon Minority Leader is indicating must be incorporated in the Report. But before dispersing from the meeting, there was a clear understanding that after inserting

the preliminary comments, and the suggestions that were written—*[Interruption]*—no.

The Speaker: Hon Members, we all heard her.

Please.

The Speaker: Yes, please continue.

3.57 p.m.

Ms Appiagyei: The Minority Leader pleaded, and it was accepted, that after the incorporation of the suggestions in the Report, the Report should be reverted back to him, and he will have a last look at it and then ascertain that it is the full capture of what he indicated before it is signed and accepted by all of us. I am here to learn that even though whatever the Minority Leader wrote was incorporated, it was never sent back to him—It was sent back to him. He made an input correcting a statement that was not right. So, once he has made that input, I believe we all agree that it is only when all these things have been corrected that it can be signed and presented for laying. So, Mr Speaker, I would like to beg of you. We are all trying to build consensus in everything that we do. Dialogue is the most important thing. We have dialogued with the Chairperson and if he is not going to agree to what we are suggesting—The position the Minority has taken is not right. Therefore, it is very important that what we want to express is clearly stated. So, Mr Speaker, I would like to plead with you to give us a little more time to go through the Report again and then by

the agreement of the Committee members, we will re-present it on the floor. Thank you, Mr Speaker.

The Speaker: Hon Members, I do not think we have to continue these exchanges. It is not a debate, but we are governed by Rules, and Order 215 gives us an indication of how reports of Committees should not only be adopted but also presented to the House. Order 215 (1) and (2) read as:

“(1) The deliberations and recommendations of a Committee shall be presented to the House in the form of a report.

(2) The Committee shall consider and adopt the report prior to the presentation of the report to the House and the report shall be signed by the Chairperson and the Clerk to the Committee.”

With specific reference to the Appointments Committee, Order 217(11) says:

“The Committee shall report to Parliament within three days after the conclusion of proceedings of the Committee when Parliament is sitting.”

Hon Members, please, when you are dealing with serious matters of this nature, you do not keep on conversing as if you are in the market square. Please!

After listening to the information from the Members of the Committee, the Chairperson, the Ranking Member, and a

senior Member, the Deputy Minority Leader, I think I am aware of some of the things you referred to. This is because you even sought my assistance in some of these matters in my conference room and we went through them together. We thought we had settled them. Now they are being rehashed. I do not think that is proper. When we are talking about a report of a Committee, we are talking about the whole Committee. We are not talking about individuals inserting things to suit their understanding of a report of the Committee. Whatever you have to say, you can say it here on the Floor as part of your contributions to the deliberations of the House. I will give you enough time to say it. We cannot expect the Report to capture everything. Please, you will not be prevented from saying what you want to say. But when we talk about the Report, we are talking about the Report capturing the decision of the whole Committee. That is what we are looking at. So please, I think the Report is properly before the House, and it will be presented, and taken by this House today. [*Hear! Hear!*]

So please, Chairman of the Committee, you may proceed to do so now.

PAPER

By the Chairman of the Committee—

Report of the Appointments Committee on His Excellency the President's Nominations for appointments as Justices of the Supreme Court of Ghana

The Speaker: Hon Members, the Report of the Appointments Committee has been presented to the House. It is now for distribution to all Members of Parliament.

Yes, any other business?

Mr Ayariga: Mr Speaker, we will take the item numbered 11, which is a presentation and First Reading of Bills and some communication from the Minister for the Interior.

The Speaker: Hon Members, the item numbered 11, presentation and First Reading of Bills. Public Holidays and Commemorative Days (Amendment) Bill, 2025. Minister for the Interior?

BILL — FIRST READING

Public Holidays and Commemorative Days (Amendment) Bill, 2025.

AN ACT to amend the Public Holidays and Commemorative Days Act, 2001, (Act 601) to provide for Shaqq Day and the 1st day of July as statutory public holidays and for related matters.

Presented by the Minister for the Interior (Alhaji Mohammed-Mubarak Muntaka). Read the First time; referred to the Committee on Defence and Interior and the leadership of Committee on Constitutional and Legal Affairs

The Speaker: Yes, I can see the Hon Minister on his feet.

Hon Majority Leader, let me listen to the Hon Minister first.

Minister for the Interior (Alhaji Mohammed-Mubarak Muntaka):

Thank you, Mr Speaker.

Mr Speaker, I indicated to your good self and the Leadership that this was to be taken under certificate of urgency. I thought that when the Leader was seeking the permission for me to lay, he would have indicated or given me the opportunity to do so. So, I wanted to draw your attention that this is an urgent Bill that needs to go through certificate of urgency, that is, through all the stages today. Thank you very much, Mr Speaker.

The Speaker: You may need to convince us why it is an urgent Bill.

Alhaji Muntaka: Mr Speaker, I—

Osahen Afenyo-Markin – *rose* –

The Speaker: Yes, Minority Leader, what is it on? Just a minute. Let me listen to him. Let us listen to whatever it is.

Yes?

4.07 p.m.

Osahen Afenyo-Markin: Mr Speaker, with respect, the application was made and the Paper was duly laid. The referral was made to a Committee which brought a closure to that application. Mr Speaker, the Hon Minister now rises to direct Government Business and to make a suggestion that the Leader of Government Business should have proceeded in a certain manner. He is one person who has been talking about rules, that we should be guided by our rules. He got up to now attempt to direct affairs without reference to any rules.

Mr Speaker, they are against certain precedents being set. If there is a new precedent that, after a Paper has been laid, the Minister can now come through a back door to make an application that the Leader of Government Business should have incorporated certain things in his application and it was not done, so he is now moving it, then, let that precedent become part of this House. Because this is a Minister who is on record to have insisted on the rules.

Mr Speaker, he must comply with the very rules that he insists must be complied with.

The Speaker: Yes, Majority Leader?

Majority Leader (Mr Mahama Ayariga): Mr Speaker, the Rules are very clear that the Bills presented to this House must be *gazetted*. When the Bill is not *gazetted* and it is presented to this House, it is a clear indication that it is coming as an urgent Bill. The Rules are clear—*[Interruption]*—It is because the Rules are clear.

Mr Speaker, let me read the Standard Orders. Order 159, and with your

leave I read:

“Presentation of Bills and Gazette notification (cf. article 106(2) of the Constitution)

159(1) Subject to the Constitution and except as provided for in Order 160 and 162, a Bill shall not be introduced in the House unless the Bill has been published in the *Gazette* at least fourteen days

before the date of the introduction of the Bill.”

Then Order 160(1) states:

“A Sponsor may submit a Bill to Parliament without publication in the *Gazette* where the Sponsor of the Bill considers the Bill to be of an urgent nature.”

Mr Speaker, to the extent that the Minister has not published it in the *Gazette*, he intends that it come as a Bill which is of an urgent nature. Our Rules provide for any person laying a Paper to make a statement of explanation after the Paper has been laid. That was what I was expecting that, after he had laid the Bill, then he would now mention that it is of an urgent nature because it has not been *gazetted*. Then, we would now refer it to the Committee.

Mr Speaker, the fact that it has been referred to a Committee does not mean that the Committee is not supposed to exercise its responsibilities under Order 160. The Committee, in considering it, would also have to provide an explanation as to why it is urgent.

But Mr Speaker you asked a question, enquiring why it was urgent. It is urgent because it is meant to regulate public holidays and we have a public holiday coming in a few days’ time. That is why we need to have this Bill taken under a certificate of urgency, so that the law can be in place for us to be able to enforce the public holiday which is coming in a few days’ time.

So, I urge you, Mr Speaker, to refer it to a Committee under Order 160, so that it would come up with a Report and then we would take it under a certificate of urgency.

Mr Speaker, those are my submissions. [*Hear! Hear!*]

The Speaker: Yes?

First Deputy Minority Whip (Mr Habib Iddrisu): Mr Speaker, the Majority Leader attempted to conclude that, by the Bill being not been *gazetted* and before us, it is deemed to be of an urgent nature. Mr Speaker, even if he is presenting a Bill under a certificate of urgency, Order 160(3) states:

“Where the Committee determines that the Bill is of an urgent nature, the Committee shall inform the House by a report.”

Mr Speaker, this implies that the Committee can determine that the Bill is not of urgent nature—[*Interruption*]—Mr Speaker, I do not know; the Minister for Communications, Digital Technology and Innovations—Again, my point here is that the Committee can determine that the Bill is not of urgent nature. So, for that matter, he cannot conclude for us to attempt reading the mind of the Minister for the Interior. The whole thing has been laid and there was no indication of—

Mr Speaker, when the Bill was being laid, there was no indication that it was under a certificate of urgency and, for that matter, the referral has been made

and it is not of any urgent nature. So, it is not under any certificate of urgency because it has not been made to us.

Mr Speaker, they have not even engaged the Minority Side with regards to this. So, under what basis are they saying that it is under a certificate of urgency? Nobody has been engaged from our Side. We just heard of it for the first time. There was no engagement and there was no indication that this should be taken under a certificate of urgency.

Mr Speaker, where is the Bill? Majority Leader, where is the Bill? Minister for the Interior, where is the Bill? I do not understand because we do not even have the Bill, so why do we take something under a certificate of urgency when we do not have a copy of it?

I thank you, Mr Speaker.

The Speaker: Hon Members, I do not know why there is this disagreement. The Standing Orders are very clear. They do not need any interpretation, apart from what has been stated in very simple and clear language. Order 159(1) says:

“Subject to the Constitution and except as provided for in Orders 160 and 162, a Bill shall not be introduced in the House unless the Bill has been published in the *Gazette* at least fourteen days before the date of the introduction of the Bill.”

Order 159(1) refers to 160 and 162.

Order 160(1) says:

“A Sponsor may submit a Bill to Parliament without publication in the *Gazette* where the sponsor of the Bill considers the Bill to be of an urgent nature.

Order 160(2) says:

“The Speaker shall refer a Bill to the appropriate Committee for determination of the urgency or otherwise after the presentation and First Reading.”

Order 160 (3) says:

“Where the Committee determines that the Bill is of an urgent nature, the Committee shall inform the House by a report”

Hon Members, there is no requirement in our Standing Orders for the sponsor of a Bill, in presenting the Bill, to tell us anything apart from presenting the Bill. When we want the person to tell us something, it is provided for in Order 163, particularly in Order 163(3), which says:

“After the presentation of a Bill, a Member may ask the Sponsor to offer a short explanatory statement on the Bill and the Sponsor shall comply.”

That is the only time the Sponsor of a Bill is called upon to say something about the Bill he or she has presented. If

not, what is required of the sponsor is to present the Bill.

4.17 p.m.

Now, when you look at the content of the Bill, on the face of it, it will give you an indication as to whether this is a Bill of urgent nature or of no urgent nature. The Committee that I referred the Bill to will now take that content and make a determination and say that this Bill is not urgent and should have been *gazetted*; so, why have you not *gazetted* it and do you mean that it is improperly before the House? Or the Committee will look at the Bill on the face of it and say that they think that this is an urgent Bill and they agree with the sponsor for not *gazetting* it and report to the House, before we will then allow them to consider the Bill.

So, there must first be a Report as to whether the Bill is of an urgent nature, or it is any of the normal Bills that we should go through the whole procedure as outlined in both the Constitution and our Standing Orders.

So, the Minister for the Interior was not required by our Standing Orders to procedurally inform us that the Bill is of an urgent nature. It is clear on the face of the Bill that the intention of the sponsor is for us to consider it as an urgent Bill, but that decision will be decided by the House after the recommendation of the Committee that the Bill is referred to. So, I think that the Minister for the Interior has not done anything wrong. [*Hear! Hear!*] The right thing has been done, and I have accordingly referred the Bill to the Committee. The Committee will

now report to the House, and we will now await the Report of the Committee. Please, I think this is what our Standing Orders expects us to do.

May we proceed to any other Business? Yes, Hon Dominic Nitiwul, former Minister for Defence?

Mr Dominic Bingab Aduna Nitiwul: Mr Speaker, I just want you to bring clarity to it again. You said it, but it looks like either I did not get it clearly, or many people did not understand. So, from the Standing Orders, as you have directed, the Committee first has to go and determine whether the Bill is of an urgent nature and report to the House. Once the House accepts that it is an urgent matter, then the Committee will then go back and look at the substantive Bill before they come back. Is that the case?

The Speaker: Exactly.

Mr Nitiwul: Thank you, Mr Speaker.

The Speaker: Yes, Hon Member for Tamale North?

Alhaji Suhuyini Sayibu Alhassan: Mr Speaker, thank you very much for your guidance as always. I seek more guidance and I crave your indulgence. Based on the question that the Hon Member of Parliament for Bimbilla, my senior Brother, asked, is it the case that the Committee can also do the two considerations together and submit one Report, where they sit to consider if it is urgent and to also consider the substantive Bill and submit the Report stating that they considered it urgent and

that is why they have made these recommendations to the House. Is that also done? Is it possible?

The Speaker: That is not the proper procedure. The decision will have to be taken as to whether the Bill is of an urgent nature or not before they consider the totality of the Bill itself, because they are different procedures. They could come back to say the Bill is not of an urgent nature and it has to be sent back to be *gazetted* and resubmitted. So, that is not the procedure. They have to first come with the Report to convince us that this Bill is of an urgent nature and when we agree or the decision is taken by the House, then they go back to consider the Bill in its totality.

Yes, please?

Alhaji Habib Iddrisu: Mr Speaker, thank you for your guidance. I think it is the same thing I said. When you read Standing Order 160(3), it is clear there. It states that:

“Where the Committee determines that the Bill is of an urgent nature, the Committee shall inform the House by a report”.

It is very clear in Standing Order 160(3).

The Speaker: Yes, may we move on? Any other Business? I have referred—Yes?

Rev John Ntim Fordjour: Mr Speaker, I want to thank you for your superior guidance and ruling given in respect of this matter in the handling of an urgent Bill, and your ruling is exactly what we are going to go by.

On page 10, the Bill has been already advertised in the Order Paper as though there is a prejudice that it would be taken by urgency without recourse to the determination of the Committee and here, it indicates:

“That notwithstanding the provision of Order 172(1) of the Standing Orders, which requires that when a Bill has passed through the Considerations Stage, the third reading thereof shall not be taken until at least one sitting day has elapsed, the motion for the third reading of the Public Holidays and Commemorative Days (Amendment) Bill, 2025 be *moved* today.”

Even ahead of the Committee meeting to make the determination and even ahead of the Minister engaging the Minority Side which stands ready to support the Minister as we have always demonstrated.

We cannot oppose such a legislation, but it is not right that the Minister does not even engage our Side and goes ahead; then an urgent Bill is advertised on the Order Paper, and as Ranking Member and my Side, we get to hear of it for the first time. However, when

engagement is done, we will support the Minister to go ahead.

So, I thank you, Mr Speaker, for that superior ruling.

The Speaker: Hon Members, you are bringing informal practice. Those are informal behind-the-scenes consultations. They are not captured by our Standing Orders, and the Order Paper, as we all know, is usually a guide to the Business that we will take in the House. So, sometimes, they anticipate that you may get to this stage and make provision for it. If not, it means they have to do Order Paper *Addendum* and so, that one, we cannot be held by the provision of this to show that they have already done something that is not allowed by law. So, please, let us proceed. Committee Members, please, you have to give us a report as to whether the Bill is of an urgent nature or not.

Can we take any other Business?

Yes, Majority Leader?

Mr Ayariga: Mr Speaker, we will take the item numbered 14.

The Speaker: Yes, Minority Leadership, you are called upon to take the item numbered 14.

Alhaji Habib Iddrisu: We do not have any difficulty on that.

The Speaker: Hon Members, the item numbered 14 – Motion.

Yes, Chairman of the Committee?

Mr Richard Acheampong: Mr Speaker, relying on Order 215(3), I would like to move the Motion on behalf of the Chairman of the Committee.

The Speaker: Yes, please?

Alhaji Habib Iddrisu: Mr Speaker, he has not said anything. He has not assigned any reason the Chairman is not here and he is not the Chairman of the Committee. So, Mr Speaker, I do not know whether he has the authority of the Chairman to move it. He did not say anything as to why the Chairman is not here.

Mr Acheampong: Mr Speaker, I referred to Order 215(3). For the information of the House, let me read:

“A Motion shall be moved by the Chairperson or any other Member of the Committee upon presentation of the report to the House for consideration and adoption or otherwise of the report.”

So, I do not need to explain where the Chairman is. I am the Vice Chairman of the Committee and it is in my place to move the Motion.

Thank you very much. [*Hear! Hear!*]

4.27 p.m.

The Speaker: Yes, Hon Vice Chairman, you are right. You may proceed. — [*Hear! Hear!*] —

MOTIONS

Suspension of Order 104(1)

Vice Chairman of the Committee (Mr Richard Acheampong): Mr Speaker, I beg to *move*:

That notwithstanding the provision of Order 104(1) of the Standing Orders which requires that a motion shall not be debated until at least two sitting days have elapsed after the notice to move the motion is given, the Motion for the adoption of the Report of the Finance Committee on the Annual Report On the Collection and Utilisation of the African Union Import Levy for the 2024 Fiscal Year may be *moved* today.

The Speaker: Yes, any seconder?

Dr Eric Afful: Mr Speaker, I beg to second the Motion.

Question put and Motion agreed to.

Resolved accordingly.

The Speaker: Hon Members, may we proceed to the substantive Motion, that is the item numbered 15.

Annual Report on the Collection and Utilisation of the African Union Import Levy for the 2024 Fiscal Year

Vice Chairman of the Committee (Mr Acheampong): Mr Speaker, I beg to *move*:

That this honourable House adopts the Report of the Finance Committee on the Annual Report on the Collection and Utilisation of the African Union Import Levy for the 2024 Fiscal Year.

I will call on the Office of Chamber Reporting to capture the entire Report as having been read while I read some portions and get to the conclusion.

Introduction

The Annual Report on the Collection and Utilisation of the African Union Import Levy for the 2024 Fiscal Year was presented to Parliament in accordance with Section 7 of the African Union Import Levy Act, 2017 (Act 952) on Tuesday, 11th March, 2025 by the Hon Minister for Finance, Dr Cassiel Ato Baah Forson.

The Report was referred to the Finance Committee for consideration and report in accordance with Article 103(3) of the 1992 Constitution and Standing Order 226 of Parliament.

Deliberations

The Committee met with the Hon Deputy Minister and other officials from the Ministry of Finance to consider the Referral. The Ghana Revenue Authority (GRA) and the Controller and Accountant-General were also invited to assist. The Committee is grateful to the Hon Deputy Minister for Finance and the officials for attending upon the Committee.

Reference Documents

The Committee referred to the following documents in the consideration of the report:

- i. The 1992 Constitution;
- ii. The African Union Import Levy Act, 2017 (Act 952); and
- iii. The Standing Orders of Parliament.

Background

Historically, approximately 95 per cent of the Programme Budget and almost 100 per cent of the Budget for the Peace and Security Council of the African Union (AU), has been funded by external partners. Despite the contributions by Member States and support from Development Partners (DPs), the African Union's Budget remained underfunded. Moreso, the financial support from the DPs has not been reliable.

To reduce the overreliance on DPs, the Heads of State and Government (HOSG) of the African Union (AU) took a decision at the 27th African Union Summit held in Kigali, Rwanda in July 2016, to impose a 0.2 per cent levy on the value of eligible imports originating from Non-Member States of AU. Main objectives of the Levy are as follows:

- a. Provide reliable and predictable funding for Continental Peace and Security Fund of AU;

- b. Reduce dependency of AU on partner funds for the implementation of Continental Development and Integration Programmes;
- c. Provide an equitable and predictable source of financing for AU; and
- d. Relieve the Governments of pressure on national treasuries with respect to meeting national obligations for payment of assessed contributions to funding AU.

In line with the decision taken at the 27th African Union Summit, Ghana enacted the African Union Import Levy Act, 2017 (Act 952) to impose a 0.2 per cent AU Levy on goods imported into Member States of AU by Non-Member States of AU. Effective implementation of Act 952 started in January 2018. Section 1 of Act 952 provides for the object of the Law which is the imposition of the AU Import Levy of 0.2 per cent on the value of eligible goods imported into the Country from a Country that is not a Member State of AU. Section 3 of the Law says the Levy shall be collected by GRA and then Section 4 provides that GRA pays the money collected into AU Import Levy Account opened by the Controller and Accountant-General at the Bank of Ghana. The Settlement of Ghana's assessed contribution to AU is transferred by the Bank of Ghana upon instructions from the Minister for Finance for each fiscal year and this is enshrined in Section 5 of Act 952.

The passage and implementation of the AU Import Levy, provides a more sustainable funding for AU related

activities in Member Countries. In the case of Ghana, it has provided a more reliable source of funding and enables Ghana to settle its assessed contribution to the AU promptly. Ghana is up to date on payment on assessed contributions and has surpluses utilised as prescribed in Act 952 for the activities relating to Ghana's programmes in relation to economic and political diplomacy.

Prior to the enactment of Act 952, Ghana's AU subscription was paid from the Consolidated Fund as part of the Annual Budget. Since the Consolidated Fund has competing demands, it was difficult for Ghana just like other Member Countries, to pay the subscription. Section 6(2) of Act 952 requires that 50 per cent of the surplus from the collections from the Levy be transferred to the Consolidated Fund and the rest of the 50 per cent retained in the Levy Account for purposes of making up for any deficit and for other expenditures including, expenditure on economic and political integration and diplomacy related to Ghana's Membership of AU.

Section 7 of Act 952, requires the Minister responsible for Finance to submit to Parliament, an annual report on the collection and utilisation of the Levy as part of the Annual Budget.

Content of Referral/Report

The Referral/Report contains the following information:

- a. Full year update on the details of collection and utilisation of the Levy for the period January to December 2023;
- b. The collection and utilisation of the Levy for the period January to December 2024; and
- c. An account of the utilisation of the 2024 surplus on the Levy Account.

Collection and Utilisation of the Levy for Full Financial Year 2023 (1st January to 31st December, 2023)

For the year 2023, a total amount of GH¢287,410,534.46 was collected, out of which an amount of GH¢83,563,879.16 was disbursed for the payment of Ghana's Assessed Contribution to AU in 2023. An additional GH¢6,716,365.74 was disbursed for the organisation of the 2023 Mid-Year West Africa Monetary Zone meeting held in Accra from 5th to 15th September, 2023. The AU Account balance as at 31st December, 2023, was GH¢192,548,740.27.

Details of the collection and utilisation of the Levy for 2023 full year are shown in Table 1 as follows:

Table 1: Collection and Utilisation of Levy for 2023 Full Year

NO.	ITEM	AMOUNT (GHC)
1.	Inflows	
	Total collections for 2023	GHC 287,410,534.46
	Total Inflows	GHC 287,410,534.46
2.	Utilisation/Outflows	
	Payment of Assessed contribution	(83,563,879.16)
	Mid-Year West Africa Monetary Zone Meetings held in Accra from 5 th to 15 th September, 2023	(6,716,365.74)
3.	Total Utilisation/Outflows	(90,280,244.90)
4.	Balance in Account	192,548,740.27

Source: Ministry of Finance

Collection and Utilisation of the Levy for the Financial Year 2024 (January to December, 2024)

For the year 2024, a total amount of GHC297,417,875.00 was collected. An amount of GHC75,711,360.85 was disbursed for the payment of Ghana's Assessed Contribution to AU in 2024. Surplus for 2024 amounted to GHC221,706,514

Balance in the AU Import Levy Account

Balances in the AU Import levy Account as at 31st December, 2024 stood at GHC116,169,537.27. Details of the Balance of the levy as at the end of December 2024 are shown in Table 2 as follows:

Table 2: Collection and Utilisation of Levy for 2024 Full Year

NO.	ITEM	AMOUNT (GHC)
1.	Inflows	
	Balance Brought Forward from 2023	192,548,740.27
	Total collections for 2024	297,417,875.00
	Total Inflows	489,966,615.27
2.	Utilisation/Outflows	
	Payment of Assessed contribution	(75,711,360.85)
	Other payments in relation to the economic/political diplomacy	(31,212,588.59)
	Transfer to Treasury Main Account	(266,873,128.56)
3.	Total Utilisation/Outflows	(373,797,078.00)
4.	Balance in Account	116,169,537.27

Observations

The Committee made the following observations:

Support for Economic and Political Diplomacy Programmes

The Committee observed that in line with Section 6(2) of the AU Import Levy Act, 2017 (Act 952), the Ministry of Finance made some expenditure totaling GH¢298,085,717.15. The Expenditures were made in respect of the following:

- The organisation of the 45th Ordinary Session of the AU Executive Council held on 18th July, 2024 which amounted to GH¢17,755,164.50;
- Payment facilitation of Administrative Expenses on Silencing the guns programme amounting to GH¢90,000.00;
- Organisation of 6th Ordinary Session of the Assembly of Heads of State and Government of the Gulf of Guinea which amounted to GH¢13,367,424.09; and
- Transfer of an amount of GH¢266.9million into the Treasury Main Account.

Challenges in the Submission of the AU Report to Parliament

The Committee was informed that the presentation of the Annual Report together with the Annual Budget Statement imposes a limitation on a full

year presentation of the Report. The reason is that the Annual Budget is presented to Parliament in November every year, except in an election year.

The technical team disclosed the Ministry of Finance intends bringing an amendment to Act 952, to enable a full year Annual Report to Parliament on the AU Levy.

The Committee shares a similar sentiment with the Ministry on the need for an amendment and urged the Ministry to take immediate steps to introduce it for consideration and passage by Parliament to enhance accountability.

Benefits

The Committee observed that the implementation of the African Union Import Levy Act, 2017 (Act 952) has enabled Ghana to settle its assessed contribution to the AU from the AU Levy Account timely.

Conclusion

The Committee recommends to the House to adopt its report on the Annual Report on the Collection and Utilisation of the African Union Import Levy for the 2024 Fiscal Year.

The Speaker: Any seconder?

Dr Afful: Mr Speaker, I beg to second the Motion.

Question put and Motion agreed to.

Resolved accordingly.

The Speaker: Yes, anymore?

Mr Ayariga: Mr Speaker, we will take item numbered 16.

The Speaker: Yes, any contrary view?

Alhaji Habib Iddrisu: Mr Speaker, we have no objection to it.

The Speaker: Hon Members, item numbered 16 on the Order Paper. Chairman of the Committee.

Suspension of Standing Order 104 (1)

Vice Chairman of the Committee (Mr Acheampong): Mr Speaker, I beg to *move*:

That notwithstanding the provision of Order 104(1) of the Standing Orders which requires that a motion shall not be debated until at least two sitting days have elapsed after the notice to move the motion is given, the motion for the adoption of the Report of the Finance Committee on the Indicative Debt Restructuring Terms Between the Republic of Ghana Represented by the Ministry of Finance and the Participating Creditor Countries of the Official Creditor Committee (Austria, Belgium, Brazil, Canada, China, The Czech Republic, Denmark, Finland, France, Germany, India, Israel, Italy, Japan, The Netherlands, Norway, Saudi Arabia, South Africa, South Korea, Spain, Sweden, Switzerland, Turkey, The United Kingdom, and The United States of America) may be *moved* today.

The Speaker: Motion moved, any seconder?

Dr Afful: Mr Speaker, I beg to second the Motion.

Question put and Motion agreed to.

Resolved accordingly.

The Speaker: We may proceed to the substantive Motion numbered 17.

Debt Restructuring Terms Between the GoG and Participating Countries.

Vice Chairman of the Committee (Mr Acheampong): Mr Speaker, I beg to *move*:

That this Honourable House adopts the Report of the Finance Committee on the Indicative Debt Restructuring Terms Between the Republic of Ghana Represented by the Ministry of Finance and the Participating Creditor Countries of the Official Creditor Committee (Austria, Belgium, Brazil, Canada, China, The Czech Republic, Denmark, Finland, France, Germany, India, Israel, Italy, Japan, The Netherlands, Norway, Saudi Arabia, South Africa, South Korea, Spain, Sweden, Switzerland, Turkey, The United Kingdom, and The United States of America).

While I present your Committee's Report, I call on the Office of Chamber Reporting to capture the entire Report as having been read while I tease out some salient points.

Introduction

The Indicative Debt Restructuring Terms between the Republic of Ghana represented by the Ministry of Finance and the Participating Creditor Countries of the Official Creditor Committee (Austria, Belgium, Brazil, Canada, China, the Czech Republic, Denmark, Finland, France, Germany, India, Israel, Italy, Japan, The Netherlands, Norway, Saudi Arabia, South Africa, South Korea, Spain, Sweden, Switzerland, Turkey, the United Kingdom, and the United States of America) was presented to Parliament by the Hon Minister for Finance, Dr Cassiel Ato Baah Forson, on Tuesday, 17th June, 2025 in accordance with Article 181 of the 1992 Constitution and Section 56 of the Public Financial Management Act, 2016 (Act 921)

The Report was referred to the Finance Committee for consideration and report in accordance with Article 103(3) of the 1992 Constitution and Standing Order 226 of Parliament. Leadership of the Budget Committee and the Committee on Economy and Development were directed to join the Finance Committee to consider the Referral.

Deliberations

The Committee met with the Hon Deputy Minister for Finance, Mr Thomas Nyarko Ampem and officials from the Ministry of Finance to consider the Referral. The Committee is grateful to the Hon Deputy Minister and the officials from the Ministry for attending upon the Committee

Reference Documents

The Committee referred to the following documents in the consideration of the report:

iv. The 1992 Constitution;

v. Public Financial Management Act, 2016 (Act 921); and

vi. The Standing Orders of Parliament.

Background

The Government of Ghana on 13th December, 2022, applied to use the Common Framework for Debt Treatment beyond the Debt Service Suspension Initiative (Common Framework). The Framework was established by the G20 and the Paris Club to provide some debt relief to countries with unsustainable debt or large financing needs in a tailored way while promoting fair burden-sharing among official and private creditors.

Also, a moratorium on external debt and an announcement of the suspension of debt service payments on bilateral and commercial loans was made on 19th December, 2022.

An Official Creditor Committee (OCC), co-chaired by China and France was established on 12th May, 2023 to determine the parameters for the restructuring of Ghana's official bilateral debt which amounted to US\$5.1 billion. The establishment of the OCC paved the way for the approval of Ghana's

arrangement under the Extended Credit Facility (ECF) programme by the IMF Executive Board.

Following months of negotiations, Ghana reached an Agreement-In-Principle (AIP) with the OCC on 12th January, 2024. The terms of the debt treatment offer a debt service relief of US\$2.8billion during the Fund-supported programme period (2023-2026) to Ghana and are consistent with restoring debt sustainability as per the IMF's Debt Sustainability Assessment methodology. The AIP was later formalised in a Memorandum of Understanding (MoU) between the OCC and the Republic of Ghana on 11th June, 2024, a key requirement for the IMF's Second Review. All the participating OCC member countries have signed the MoU, with Ghana countersigning on 28th January, 2025.

One of the conditions for concluding negotiations for the indicative terms for the bilateral debt restructuring is Parliamentary approval and that is why the Government of Ghana, through Ministry of Finance, has submitted the instant request for approval pursuant to Article 181 of the 1992 Constitution of the Republic of Ghana and section 56 of the Public Financial Management Act, 2016 (Act 921). The Parliamentary approval, if obtained, will enable the Government finalise and conclude negotiations for debt restructuring.

Object of the Request

The object of the request is to seek approval to enable Government to reschedule debt service obligations due between 20th December, 2022 and 31st December, 2026 through bilateral agreements with each of the participating creditor countries of the Official Creditor Committee.

Indicative Terms of Bilateral Debt Restructuring

The following are the indicative terms of the Bilateral Debt Restructuring:

- a) All debt service payments falling due from 20th December, 2022 to 31st December, 2026 (Rescheduled Amounts) will be rescheduled, capitalised and paid between 2039 and 2043. The rescheduled debt service will not be capitalised at the contractual interest rate, as it would place an undue burden on Ghana's ability to meet its debts service obligations.
- b) The OCC has set a range of 1 per cent to 3 per cent to capitalise the Rescheduled Amounts, depending on the original contractual interest rate. Debt service on fixed rate facilities with contractual interest rate:
 - i. Of less than 1per cent will be capitalised at the existing contractual rate;
 - ii. Equal or greater than 1 per cent but less than 2 per cent will be

iii. capitalised at 1 per cent per annum;

iv. Equal or greater than 2 per cent but less than 5 per cent will be capitalised at 2 per cent per annum; and

v. Equal or greater than 5 per cent will be capitalised at 3 per cent per annum

c) For floating-rate facilities, the original contractual rate used to set the capitalisation rate is based on the margin rate referred to in an underlying loan agreement plus the market value of the floating reference rate prevailing on 31st December, 2022. Accordingly, future debt service payments will be made as follows:

i. Rescheduled Amount falling due from 20th December, 2022 to 31st December, 2022, will be capitalised, rescheduled and repaid on 1st January, 2039;

ii. Rescheduled Amount falling due in 2023 will be capitalised, rescheduled and payable 50 per cent on 1st July, 2039 and the remaining 50 per cent capitalised an additional year and paid on 1st July, 2040;

iii. Rescheduled Amount falling due in 2024 will be capitalised, rescheduled and payable 50 per cent on 1st July, 2040 and the remaining 50 per cent capitalised an additional year and paid on 1st July, 2041;

iv. Rescheduled Amount falling due in 2025, will be capitalised, rescheduled and payable 50 per cent on 1st July, 2041 and the remaining 50 per cent capitalised an additional year and paid on 1st July, 2042; and

v. Rescheduled Amount falling due in 2026, will be capitalised rescheduled and payable on 1st July, 2042 and the remaining 50 per cent capitalised an additional year and paid on 1st July, 2043.

d) Other Provisions for the Bilateral Debt Restructuring include:

i. restructuring all commercial debt within the debt treatment perimeter as defined by the IMF and OCC on terms assessed to be comparable to those of the OCC;

ii. limiting disbursements on bilateral loan funded projects to within the level set by the IMF (i.e US\$250 million per annum);

iii. seeking comparable debt treatment on a creditor-by-creditor basis;

iv. Not violating the provisions of the MoU. Any breach would give rise to the OCC, acting unanimously, to declare the debt treatment null and void and to restore original terms; and

v. Not servicing any debt and remain in arrears with any other external creditors until those have been

restricted with terms assessed to be comparable by the OCC.

Observations

Rationale for the bilateral debt restructuring

The Committee observed that due to the country's inability to repay its debt in 2022, Government applied and was granted the use of the Common Framework for Debt Treatment beyond the Debt Service Suspension Initiative. Government also received support from the International Monetary Fund (IMF) through a \$3 billion Extended Credit Facility (ECF) programme approved in May 2023. One of the conditions precedent in respect of the ECF was that the support was not to be used to service bilateral loans. The ECF programme is expected to end in December, 2026.

Due to the conditions of the ECF, the Government has been unable to service its bilateral loans since December, 2022.

The Deputy Minister for Finance informed the Committee that under the Common Framework, Ghana was eligible to apply for bilateral debt restructuring arrangement to restructure its debt obligations to its bilateral creditors. He said the Government had since applied and the OCC had approved indicative terms to enable Government negotiate with the participating countries, its debt service obligations of an amount of US\$2.8billion (from December, 2022 and ending December, 2026; by which time, the IMF programme would have come to an end). He informed the Committee that the

indicated terms will not alter the existing financial conditions of bilateral loan agreements that have already received Parliamentary approval and fall due after December, 2026.

In order to give effect to the indicative terms for the bilateral debt restructuring, there was the need for Parliament to approve the indicative terms. The Deputy Minister reiterated that it was only after the Parliamentary approval that Government could go ahead and finalise the terms with each participating country (the reason the indicative terms for the bilateral debt restructuring had been laid in the House for approval).

Benefits of the restructuring of the Debt

The Committee observed that one of the benefits of the indicative terms was that the Government would be relieved from the burden of repaying its bilateral debt from now until December, 2026. As a result, the Government would get a debt service relief for US\$2.8billion.

Repayment of the US\$2.8billion

The Committee observed that the amount of US\$2.8billion was the sum of the interest and principal due for repayment of bilateral debt from December, 2022 to December, 2026.

The officials from the Ministry of Finance informed the Committee that the interest and principal due would be recapitalised to be repaid in fifteen (15)

years' time commencing December, 2027.

Participating Countries under the OCC

The Committee observed that there are a total of twenty-five creditor countries under the Official Creditor Committee (OCC) and they are Austria, Belgium, Brazil, Canada, China, the Czech Republic, Denmark, Finland, France, Germany, India, Israel, Italy, Japan, The Netherlands, Norway, Saudi Arabia, South Africa, South Korea, Spain, Sweden, Switzerland, Turkey, the United Kingdom and the United States of America.

The Deputy Minister indicated that the indicative terms are the ceilings approved by OCC. However, after the Parliamentary approval, the Ministry would engage each creditor country separately to finalise the terms of the loans to be repaid to them. He assured the Committee that none of the finalised restructured loans would exceed the indicative terms before the House.

Conclusion

After careful consideration, the Committee noted that the debt restructuring was critical in supporting Government to restore and sustain macroeconomic stability and debt sustainability.

The Committee unanimously recommends to the House to adopt its Report and approve the Indicative Debt Restructuring Terms Between the

Republic of Ghana, represented by the Ministry of Finance and the Participating Creditor Countries of the Official Creditor Committee (Austria, Belgium, Brazil, Canada, China, the Czech Republic, Denmark, Finland, France, Germany, India, Israel, Italy, Japan, The Netherlands, Norway, Saudi Arabia, South Africa, South Korea, Spain, Sweden, Switzerland, Turkey, the United Kingdom, and the United States of America) pursuant to Article 181 of the 1992 Constitution and Section 56 of the Public Financial Management Act, 2016 (Act 921).

Dr Afful: Mr Speaker, I beg to second the Motion.

Mr Speaker, this Motion talks about the joint Report of the Finance Committee, the Economy and Development Committee, and the Budget Committee.

Mr Speaker, this Motion is requesting the House to approve the indicative terms of bilateral debt restructuring between the Government of Ghana and the respective participating creditor countries of the OCC.

4.37 p.m.

Mr Speaker, they number up to 25 countries. This indicative term is to reschedule a payment plan of some of our debt stock to the mentioned countries. The plan is between 31st December, 2022 to 31st December, 2026, which we should have paid within this time.

Mr Speaker, but we are rescheduling the payment to be paid between 2039 to

2043. This is a deferred payment of some of our debt stock. The motive is that this will bring a financial relief and create fiscal space for our economy. Mr Speaker, thank you for the opportunity.

The Speaker: Hon Members, Motion moved and seconded and is for the consideration of the House.

Question proposed

Yes, Hon Minister for Education?

Minister for Education (Mr Haruna Iddrisu) (MP): Mr Speaker, let me thank you for the opportunity to contribute to the adoption of the Finance Committee's Report on the Indicative Debt Restructuring Terms between the Republic of Ghana and the Ministry of Finance and Participating Creditor Countries.

Mr Speaker, this Report reveals the hole that President Mahama Administration, in terms of economic management and governance, inherited from the previous administration, a debt restructuring which has limited the power of the Government of Ghana to even borrow.

Mr Speaker, there are three types of debt, those that we owe bilateral, those that are multilateral and those that are commercial. Because of this debt restructuring, which is part of the ECF, the Government of Ghana, under the previous administration again, agreed with the International Monetary Fund (IMF) that Ghana be constrained from borrowing or accessing credit in the

international capital market. For this year, Ghana can only do US\$250 million, into 2026, US\$500 million and into 2027, when we are out of the IMF, some US\$1.5 billion.

Mr Speaker, in concluding, and I hope that our Colleagues, —This is what the Ken Ofori Atta economists led Ghana to. If we take US\$2.8 billion and want to understand what John Dramani Mahama and his Minister for Finance, Dr Cassiel Ato Forson have done, US\$2.8 billion at an exchange rate of GHC16.00 would have given us some US\$44.8 billion. Today, the same amount at GHC10.30 is US\$28 billion. This is how much prudent, disciplined economic management can do, when we adopt this.

Mr Speaker, the Hon Minister for Finance is doing good. He needs the support of this House, but for developments in Iran and Israel—*[Interruption]*—The Minority Side made reference to external factors. Look at 2022-2023 Budget. It said external rigidities. Mr Oppong Nkrumah, remember, I have a recording of your debate here. There was reference made to external factors and external rigidities. Remind the Leadership.

Mr Speaker, I speak in favour of the adoption of the report and to remind that if government takes prudent decisions that stabilise the cedi, we can make a normal savings. Because how much cities we need to service debts at US\$2.8 billion yesterday will not be the same amount today, even though the amount is still US\$2.8 billion. Mr Speaker, thank you.

The Speaker: Yes, former Minister for Communications or was it Information? You went to Works and Housing?

No, I was at Water Resources, Works and Housing. He was at the subset.

Mr Kojo Oppong Nkrumah (NPP — Ofoase Ayirebi): Mr Speaker, I thank you for the opportunity. I rise to speak in support of the Motion that this Report be adopted by this House, except to point out two things to our Colleagues on the Government benches. One cannot approbate and reprobate. When the Minister for Finance, Dr Ato Forson took office, one of the first things he did was to issue a statement that the debt restructuring programme was being completed on his watch, and there was a lot of applause from both the NPP and the NDC Sides; that the programme that had been started he was concluding. Yet, whenever he suits our Colleagues on the other Side, they want to wash all of it away as though it is not a programme that they are participating in. Just a few days ago, Fitch Ratings upgraded the Ghanaian economy, and if we listen to the commentary from our Colleagues on the other Side, they were at length to seek to appropriate credit that the new administration was the reason for which the ratings had been upgraded. I have a copy of the statement from Fitch Ratings here. Out of the ten reasons that they gave, about seven of them squarely had to do with the Debt Restructuring Programme. So, when it suits them in one breath, they want to take credit for the work that has been done to bring the economy to a particular point. When it

suits them, then they want to turn around and pretend that nothing good has been done in that area.

Mr Speaker, the second point, the Hon Minister for Education, my respected senior, Mr Haruna Iddrisu, a few minutes ago was alluding to the fact that we have talked about external factors impacting the Ghanaian economy. Yes, indeed, we did so. But we will recall that a few days ago, the President of the Republic, His Excellency John Dramani Mahama, was talking about the fact that the difficulties currently going on between Iran and Israel had the likelihood of affecting the economy that he is running. In fact, he himself, a few minutes ago, cut his tongue because he was just on the verge of admitting that external factors have an impact on the Ghanaian economy. Yes, Ghana has had to go through a Debt Restructuring Programme, part of which this House is today approving.

But, Mr Speaker, it is not all as a consequence of economic management domestically. As is being admitted, it is partly, and in this case mostly, as a result of the external factors that had an impact on the Ghanaian economy. I would like to caution our Colleagues on the other Side. When it comes to debt, those days when we were on the Government benches, we kept telling them that debt stock can change when the country has not borrowed as a result of how the exchange rate is performing and in those days when we say it, they would be mocking and laughing that it is not true. A few days ago, the President of the Republic was saying that debt stock is reduced by about 150 million. Why?

Have they paid down those debts? It is because the exchange rate has performed a particular way, and the reasons for the performance are well known.

Mr Speaker, we all support the Report that is before the House but I want to encourage my Colleagues that this path of always seeking to approbate and reprobate, they should stop it and now that they are in charge, take full responsibility for the pluses and the minuses that come together.

I thank you, Mr Speaker, for the opportunity.

The Speaker: The Hon Minister of State, Government Communications.

Minister of State for Government Communication (Mr Felix Kwakye Ofosu) (MP): Mr Speaker, thank you for the opportunity to make this brief contribution.

Mr Speaker, no one on our Side and in Government has approbated and reprobated. There are facts that we cannot run away from. The Domestic Debt Exchange Programme, or the restructuring programme, is far and away the harshest economic policy ever implemented in the history of Ghana.

4.47 p.m.

Mr Speaker, the consequence of that was that a staggering 1.3 million Ghanaians were told overnight that the proceeds of bonds that they had bought in the hope that they were securing their future and existence were not going to be paid for some time. And even if it was

going to be paid, it was going to be paid at a rate much lower than what they agreed when they were buying the bonds and that the tenure that they were given was going to be extended by significant years. Mr Speaker, many of those who were affected this way were in the Ghanaian middle-class. Overnight, they were slammed into penury and they were gnashing their teeth.

Mr Speaker, the most important point, however, is that this was self-inflicted. The mismanagement of the Ghanaian economy began no sooner than when the New Patriotic Party (NPP) took over power in 2017. By 2018, it had become apparent that they were mismanaging the economy and one could tell so from the budget deficits, which gives an indication of whether there is prudence or there is mismanagement. By 2018, the budget deficits that they inherited had started going up. For three consecutive years, between 2018 and 2020, their budget deficit was higher than what they inherited. Mr Speaker, by 2020, they thought that it was more prudent to borrow and spend money that we did not have in order to win elections. By 2021, their sins had caught up with them and we were heading for a crash. By the time they adopted the Domestic Debt Exchange Programme (DDEP), they had absolutely no option because that was the only way that the IMF would touch us with the long pole.

Number two, Mr Speaker, before I sit, it is Dr Mahamudu Bawumia, who they touted as the best economist of this side of the Sahara, who told us that the exchange rate is the biggest indicator of

economic prudence. This was in the same lecture where he said the exchange rate will expose us if the fundamentals are weak. It is the duty of government to manage the exchange rate, so if it is mismanaged it and the currency crashes, and by that reason, the debt balloons, it is the Government's responsibility; the Government has incurred debt. The reverse has happened; we have managed the exchange rate well, so because of that, we have saved GHC150 billion of our debt through enhanced foreign exchange liquidity.

Mr Speaker, between January and this month, close to US\$ 4 billion has accrued to this economy through gold exports and that is because now, 80 per cent of all small-scale gold that is mined in Ghana must be ceded to a Government agency called the Ghana Gold Board, previously called the Precious Minerals Marketing Company (PMMC). That is what has enhanced forex exchange liquidity on the market, because our exchange rate regime is defined by the same principles that we know to be demand and supply. There is adequate foreign exchange on the market and that is why the cedi is strong. So, it was their fault that they incurred their debts and we have done good by reducing the debt through prudent foreign exchange management.

Mr Speaker, we have not approbated or reprobated. We have simply stated the fact when we say that the DDEP was their own doing. Nobody put a gun to their head to mismanage the Ghanaian economy. But what we can assure everybody in Ghana is that we will not tread the same paths that they walked on. We will learn lessons from what they

have done, and we will manage this economy such that the gains that have been made will be sustained over the medium to long term.

And finally, Mr Speaker, nobody has said that global factors do not have an effect on an economy, they do. Since time immemorial, we all know that the increase of crude oil price on the world market affects the price at the pump. But it was not crude oil prices that resulted in the depreciation of the cedi. It was not crude oil prices that resulted in the DDEP. It was not crude oil prices that resulted in the humongous debt that led to the DDEP. Even as there is global crisis now, fuel price at the pump has reduced eight times since the beginning of this year under this Government. These are facts. So, Mr Speaker, our friends on the other Side should be minded. Let them take responsibility for their mismanagement.

I thank you very much.

[Hear! Hear!]

The Speaker: Hon Members, I put the question.

Question put and Motion agreed to.

We will now move to the Resolution, or Hon Majority Leader, do you want us to consider something else?

Mr Ayariga: No, Mr Speaker, the Minister is not here, so we want to crave your indulgence for the Minister for the Interior to take item 18, the Resolution.

The Speaker: Yes, please?

First Deputy Minority Whip (Alhaji Habib Iddrisu): Mr Speaker, the Majority Leader always boasts that he has his Ministers. Where is the Minister for Finance? Where is the Deputy Minister for Finance? This Resolution is very important.

Mr Speaker, we need the Minister for Finance or the Deputy Minister for Finance. None of them are in the Chamber and they are both Members of Parliament. I do not think we should allow the Minister for the Interior to take this Resolution. If it is as important as it is, then we should be able to get the Minister for Finance or his Deputy to take the Resolution in question. So, Mr Speaker, decline his application to allow the Minister for the Interior to do that; he did not even consult anybody. I just think that you should not grant his request. The Ministers are in the Chamber today, just like the Minister of State in charge of Government Communications. They are here to vote on the judges. That is the reason they are here. There are no releases, nothing. That is why they are in the Chamber today, to vote for the judges. Mr Speaker, the Minister for Finance is not here and his Deputy is also not here and for that matter, we should not take that Resolution. The Resolution cannot be—

Mr Speaker, if moneys are not released to Ministers to pay contractors, how can that amount to prudent

management of the economy? How can artificial rates of the dollar to the cedi be— Mr Speaker, six months—They are forgetting about the fact that in 2017, when we took over, we announced that we had arrested the dollar. We announced it in exactly six months' time. But now, even 24-Hour Economy, there is zero, nothing. 24-Hour Economy, *yaamutu*. Where is their Minister for Finance? Where is their Deputy Minister for Finance? Mr Speaker, rule him out. Do not let the Minister for the Interior take the Resolution.

The Speaker: Yes, Hon First Deputy Minority Whip, you were now combining your debate on the Motion with your objection to the Minister taking the Resolution. I think he just wanted a bite, and he has got it.

Yes, so Minister for Communication, Digital Technology and Innovations?

Minister for Communication, Digital Technology and Innovations (Mr Samuel Nartey George) (MP): Mr Speaker, you know we are all your sons, but like every father, there are sons that disappoint you. Listening to the First Deputy Minority Whip, Mr Speaker, he was asking the whereabouts of the Minister for Finance and his Deputy. Those are two of your most prestigious sons who are cleaning the financial mess that was created by the now Minority

Side. It is important that they know that some of your sons are making you proud, while some of your sons, when they speak, Mr Speaker, you shake your head in disdain.

I thank you, Mr Speaker.

The Speaker: Hon Members, may we move to item 18 on the Order Paper.

I grant the leave for the Minister for the Interior to take that item, Resolution.

4.57 p.m.

RESOLUTION

Debt Restructuring Terms between the GoG and Participating Countries

Minister for the Interior (Alhaji Mohammed-Mubarak Muntaka) (MP) on behalf of the Minister for Finance: Mr Speaker, I beg to *move*:

WHEREAS by the provisions of article 181 of the Constitution and Sections 55 and 56 of the Public Financial Management Act, 2016 (Act 921), the terms and conditions of all government borrowings shall be laid before Parliament and shall not come into operation unless the terms and conditions are approved by a resolution of Parliament in accordance with article 181 of the Constitution;

PURSUANT to the provisions of the said article 181 of the Constitution and Sections 55 and 56 of the Public Financial Management Act, 2016 (Act 921), at the request of the

Government of the Republic of Ghana acting through the Minister for Finance, there has been laid before Parliament an Indicative Debt Restructuring Terms Between the Republic of Ghana Represented by the Ministry of Finance and the Participating Creditor Countries of the Official Creditor Committee (Austria, Belgium, Brazil, Canada, China, The Czech Republic, Denmark, Finland, France, Germany, India, Israel, Italy, Japan, The Netherlands, Norway, Saudi Arabia, South Africa, South Korea, Spain, Sweden, Switzerland, Turkey, The United Kingdom, and The United States of America).

THIS HONOURABLE HOUSE HEREBY RESOLVES AS FOLLOWS:

IN ACCORDANCE with the provisions of the said article 181 of the Constitution and Sections 55 and 56 of the Public Financial Management Act, 2016 (Act 921), this House approves, by resolution, the Indicative Debt Restructuring Terms Between the Republic of Ghana Represented by the Ministry of Finance and the Participating Creditor Countries of the Official Creditor Committee (Austria, Belgium, Brazil, Canada, China, The Czech Republic, Denmark, Finland, France, Germany, India, Israel, Italy, Japan, The Netherlands, Norway, Saudi Arabia, South Africa, South Korea,

Spain, Sweden, Switzerland, Turkey, The United Kingdom, and The United States of America).

Vice Chairman of the Committee (Mr Richard Acheampong): Mr Speaker, I beg to second the Motion.

Question put and Motion agreed to.

Resolved accordingly.

The Speaker: Yes?

Mr Ayariga: Mr Speaker, the Fifteenth Report of the Appointments Committee has been electronically distributed to all Members. So, I crave your indulgence to take the item numbered 12.

The Speaker: I did not complete my statement when you stood up, so I thought you were going to say something on that. Let me now say that by the adoption of the Resolution, this House has approved the Indicative Debt Restructuring Terms between the Republic of Ghana Represented by the Ministry of Finance and the Participating Creditor Countries of the Official Creditor Committee (Austria, Belgium, Brazil, Canada, China, The Czech Republic, Denmark, Finland, France, Germany, India, Israel, Italy, Japan, The Netherlands, Norway, Saudi Arabia, South Africa, South Korea, Spain, Sweden, Switzerland, Turkey, The United Kingdom, and The United States of America).

Yes, I will now refer to the submission of the Majority Leader that the Report

has been electronically transmitted to all Members, and his request is for us to take it now.

Yes, Minority Leader?

Osahen Afenyo-Markin: Mr Speaker, the Majority Leader made an application for leave to enable this House to proceed with the Motion numbered 12. Per the rules of this House, this procedural Motion can be moved to address an urgent matter that requires our decision. That is why, Mr Speaker, looking at the text of the Motion, it says:

“That notwithstanding the provision of Order 104(1) of the Standing Orders which requires that a motion shall not be debated until at least two sitting days have elapsed after the notice to move the motion is given...”

Mr Speaker, you asked some questions: when did the Appointments Committee finish its work? We finished our work on Friday afternoon. This morning, around 11.30, the Chairperson of the Committee called Members into a meeting at his conference room for us to deliberate. Mr Speaker, we concluded on the Report. Although this Side of the House is dissatisfied with your earlier ruling, we have yielded and this ruling has made it possible for him to lay the Report and same has been laid.

Mr Speaker, what is the urgency requiring this procedural Motion to be moved? At the hearing, the nominees indicated that the current Bench is made

up of 13. If we even take the Chief Justice who has been suspended out, we have 12. What matter has suddenly arisen, thereby giving rise for the Majority Leader to push that the Report that has just been laid, instead of going through the normal requirement of two Sitting days, should be moved today? Is it the case that we do not have a sufficient number at the Supreme Court to be empanelled to determine any constitutional issue?

Mr Speaker, this House must be careful in certain precedents it may be setting. We believe that this application is being made in bad faith. There is no such urgent need for us to suspend our Rules to allow for the moving of this Motion for the adoption of the Report. I do not want to believe that there may be something that I do not know—*[Interruption]*—Only yesterday, our Friends argued that there was no need to rush. In fact, the Majority Leader is on record to have said that even the nomination of two justices to the Supreme Court, at a time when some were being expected to retire, was too early in the day because the people had not retired, so why was Akufo-Addo's Government in a rush?

Mr Speaker, today, we are in June, the Bench is about going on legal vacation. We know that there is a sufficient number of judges at the Supreme Court now to make determinations. The Majority is pushing its luck rather too far. Mr Speaker, it is in the interest of democracy to allow this Motion to go through the normal process.

Mr Speaker, we have a 137-page Report and it is just being distributed. I do not think that even on the Majority Side all of them have received copies. Even if they have received copies, I am not sure all of them have read it. Mr Speaker, you have been part of this House since 1993; this is a dangerous precedence and it is the reason they are whipping their Ministers to come into the Chamber when they are supposed to discharge their ministerial functions. Government is not treating the releases to Ministries as an urgent matter, but it is in a hurry to pack the courts.

A moment ago, we were looking for the Minister for Finance and his Deputy, but we could not find them and another Minister had to move a Motion in their stead. Can any Government Minister tell me now that since we approved the 2025 Budget Statement, releases have been made to their Ministries? Can any of them say this on record? They have become redundant in their Ministries. They are not treating these matters as urgent matters and instead of allowing the Report to be read in two days—Today is Tuesday; they have today and tomorrow; then they can move it on Thursday. That is within the Rules. Why are they in a rush?

Mr Speaker, I would pray you not to be inclined in granting this request by the Majority Leader. Mr Speaker, direct the Majority Leader to the Rules, so that we thoroughly read the Reports before considering same.

Mr Speaker, I rest my case.

5.07 p.m.

The Speaker: Hon Members, the submission of the Minority Leader has followed precedents and this precedent was established in the national interest.

So, he has just followed precedent, and this precedent was established in the national interest. The Motion that is being sought to move is also to follow precedent which was established in the First Parliament, followed in the Second, Third, Fourth, Fifth, Sixth, Seventh, Eighth, and we are now in the Ninth Parliament, and it has all been done in the national interest. So, as for precedents in the national interest, we will continue to follow them.

That is the ruling I am giving in this matter and Order 217, particularly sub-rule 11 is very clear. It says:

“The Committee shall report to Parliament within three days after the conclusion of proceedings of the Committee when Parliament is sitting.”

So, the Report has been presented to the House within three days. That is what our rules say, and I believe that it is proper for us to take it. I will grant the permission for the Motion to be moved, then we can move on to the substantive matter.

Please, Chairperson, you may move the Motion numbered 12.

MOTION

Suspension of Standing Order 104(1)

Chairman of the Committee (Mr Bernard Ahiafor): Mr Speaker, I beg to move:

That notwithstanding the provision of Order 104(1) of the Standing Orders which requires that a motion shall not be debated until at least two sitting days have elapsed after the notice to move the motion is given, the motion for the adoption of the Fifteenth Report of the Appointments Committee on His Excellency the President's Nominations for appointments as Justices of the Supreme Court of Ghana may be moved today.

Mr Speaker, I so move.

The Speaker: Any seconder? Yes, please?

Vice Chairman of the Committee (Mr George Kweku Ricketts-Hagan): Mr Speaker, I beg to second the Motion.

Question put and Motion agreed to.

Resolved accordingly.

The Speaker: We will now move to the substantive Motion, the item numbered 13 on the Order Paper.

Yes, Chairman of the Committee?

Appointments as Justices of the Supreme Court of Ghana

Chairman of the Committee (Mr Bernard Ahiafor): Mr Speaker, I beg to move:

That this honourable House adopts the Fifteenth Report of the Appointments Committee on His Excellency the President's Nominations for Appointments as Justices of the Supreme Court of Ghana.

Mr Speaker, in doing so, I present the Report of the Appointments Committee.

Mr Speaker, I also urge the *Hansard* to capture the entire Report as having been read as I touch on some salient questions that the judges responded to and then read the recommendations and the conclusion of the Report.

Executive Summary

This Report presents the findings and recommendations of the Appointments Committee of Parliament following its vetting of six nominees submitted by His Excellency the President for appointment as Justices of the Supreme Court of Ghana, in accordance with Article 144(2) of the 1992 Constitution and Order 217 of the Standing Orders of Parliament.

The Committee conducted detailed hearings with each nominee, examining their professional qualifications, judicial philosophies, constitutional interpretations, and views on critical national issues such as illegal mining (*galamsey*),

legal education, gender equity, judicial independence, and justice delivery reforms. The proceedings also assessed the nominees' ethical dispositions, temperament, and readiness to assume the high responsibilities of the apex court.

The nominees, comprising Justices Senyo Dzamefe, Sir Dennis Dominic Adjei, Gbeil Simon Suurbaareh, Philip Bright Mensah, Janapare Adzua Bartels-Kodwo, and Hafisata Amaleboba, demonstrated deep knowledge of the law, judicial experience, and a commitment to upholding constitutional governance. Their responses reflected a strong understanding of the legal system of Ghana, the evolving demands of justice delivery, and the need for judicial reforms to improve access to justice and public confidence in the Judiciary.

Key highlights of the deliberations include emphasis on judicial independence, the need for investment in the e-Justice infrastructure, calls for broader reforms in legal education and legal aid, and progressive interpretations of constitutional rights. Notably, the nominees also shared reflective accounts of their personal and professional journeys, inspiring confidence in their moral character and commitment to national service.

Having satisfied the Committee of their competence and suitability, the Appointments Committee unanimously recommends by consensus the approval of the following six nominees for appointment as Justices of the Supreme Court of Ghana:

1. Justice Senyo Dzamefe
2. Justice Sir Dennis Dominic Adjei
3. Justice Gbeil Simon Suurbaareh
4. Justice Philip Bright Mensah
5. Justice Janapare Adzua Bartels-Kodwo
6. Justice Hafisata Amaleboba
7. Justice Kweku Tawiah Ackaah-Boafo

The Committee expresses its gratitude to all stakeholders and reiterates its commitment to safeguarding the integrity of the judicial appointment process in the interest of constitutional democracy and the rule of law.

Introduction

On Tuesday, 20th May, 2025, His Excellency President John Dramani Mahama, acting in accordance with Article 144(2) of the 1992 Constitution of the Republic of Ghana, submitted to Parliament the nominations of the under listed individuals for appointment as Justices of the Supreme Court:

- i. Justice Senyo Dzamefe
- ii. Justice Sir Dennis Dominic Adjei
- iii. Justice Gbeil Simon Suurbaareh
- iv. Justice Philip Bright Mensah

v. Justice Janapare Adzua Bartels-Kodwo

vi. Justice Hafisata Amaleboba

vii. Justice Kweku Tawiah Ackaah-Boafo

In accordance with Standing Order 217 of the Parliament of Ghana, the Rt Hon Speaker duly referred the nominations to the Appointments Committee for consideration and report to the House.

Reference Documents

During the consideration of the nominees, the Committee referred to the following documents:

- i. The 1992 Constitution of the Republic of Ghana
- ii. The Standing Orders of Parliament
- iii. The *Curriculum Vitae* (CVs) of the nominees

Consideration of the Referral

Pursuant to Standing Order 217(10) of the Parliament of Ghana, the names of the nominees were duly published in the national newspapers to ensure public awareness of the nominations. The publication further invited memoranda from members of the public in respect of the nominees.

In line with established vetting procedures, the Committee requested

and obtained Confidential Reports on the nominees from both the Ghana Police Service and the National Intelligence Bureau (NIB). Additionally, the Committee required the submission of each Nominee's Tax Status Report from the Ghana Revenue Authority (GRA).

Subsequently, the Committee conducted public hearings on 16th, 17th, and 18th June 2025 to consider the nominations. During the hearings, all nominees were duly sworn in under the Oath of a Witness and responded to questions posed by Honourable Members of the Committee. These questions pertained to the nominees' curriculum vitae (CVs), as well as matters relating to judicial administration, delivery of justice, and national interest. Further probing was conducted to assess the eligibility, integrity, and competence of the nominees, alongside matters germane to the specific offices for which they had been nominated.

Following its deliberations, the Committee hereby submits its report on the nominees.

Preliminary Issues

The Hon Minority Leader and Ranking Member made the following preliminary remarks:

We convene while our Chief Justice sits suspended through procedurally questionable processes under Article 146 and 296. An executive that suspends one Chief Justice while installing seven new justices is not filling vacancies — it is

reshaping the constitutional order, the appearance of institutional capture is inevitable and constitutionally catastrophic. The Supreme Court has abdicated its constitutional duty, repeatedly refusing to intervene when fundamental principles of natural justice face systematic violation. This institutional cowardice is constitutionally inexcusable. You will inherit a Court that retreated into comfortable silence when courage was demanded.

Mr Chairman, this Government's hypocrisy is staggering. The same NDC that relentlessly opposed Justice Sophia Bernasko Essah and Professor Richard Frimpong Oppong's nominations under President Akufo-Addo — crying that the Court was "bloated" — now presents seven nominees simultaneously. Where was their concern about court size then? This gross dishonesty and rank opportunism insult our intelligence and constitutional processes. When two very qualified justices sought appointment, the NDC screamed about judicial bloat. Now, with seven nominees, they discover urgent constitutional necessity. Such a breath-taking inconsistency exposes an administration driven by political calculation, not constitutional principle.

To our nominees, you seek to join an institution whose legitimacy rests on public confidence in your constitutional fidelity. You must become guardians of our fundamental law, not instruments of executive convenience. The Supreme Court's authority derives from moral standing, not political alignment. True

judicial independence requires constitutional courage. Deciding cases on law and precedent, not political preferences.

It means protecting minority rights against majoritarian excesses. It means sometimes disappointing those who appointed you because the Constitution demands nothing less. This committee bears solemn responsibility for ensuring only nominees demonstrating unbending commitment to judicial independence receiving approval. We must probe not merely legal knowledge, but constitutional philosophy and commitment to deciding cases without political consideration.

To all participants, embrace robust discourse with dignity. Ask hard questions. Challenge respectfully. Our democratic maturity is measured by our ability to disagree with purpose while maintaining civility. To Ghanaians watching, witness democracy in action; tolerate provocative questions. They are democracy's oxygen. We are building a nation, not trading insults. To the media and Parliament staff, thank you for enabling this democratic exercise to be undertaken.

I conclude by saying that we stand at a constitutional crossroads. These proceedings will either restore judicial confidence or mark the day Ghana's highest court becomes an executive instrument, not constitutional conscience. The nominees seek sacred constitutional trust. May they prove worthy. May we test that worthiness thoroughly. History will judge whether

we defended democracy when it needed us most. Future generations will thank us for courage or condemn us for cowardice. The choice is yours. The time is now.

In response, the Majority Leader and Leader of the House also made the following remarks:

Thank you very much, Mr Chairman, and thank you for indulging me. I did not know the Minority Leader had a scripted statement as he has done, so I do not have a scripted response except I picked on a few things that he has said. One, he speaks about the ongoing process relating to the Chief Justice, Justice Gertrude Torkornoo.

I first and foremost think that this is not the proper platform to be questioning the processes involved in relation to Justice Torkornoo. I think it is inappropriate, but let me just indicate that there is nothing procedurally questionable in terms of the processes that Justice Torkornoo is being taken through, because the Constitution is clear in terms of what the process is, and that process has been followed diligently, and efforts to question that process in the Supreme Court has not been successful. And so I find it inappropriate that before a committee of this nature, the Minority Leader will be questioning the process.

And on the issue of accusation that this Government is engaging double standards, I think that is also not appropriate. The nominees are before you for you to vet their suitability, and to say that this Government is engaging

double standards is totally inappropriate. I was on the Appointments Committee when the two nominees were rejected, and let me indicate clearly that my Side of the House advocated for the rejection on the basis that at that time, the anticipated retirement of some judges which would have created the vacancy had not taken place, and there was no need in anticipation to be appointing replacements.

And we also argued, and I do not shy away from that argument, that the then President had had the opportunity to nominate so many members onto the Supreme Court, and even if some judges were retiring, he should give the opportunity for an incoming President, given that we are so close to elections, to also have an opportunity to also nominate people to the Supreme Court. It was not clear who the incoming president would be. It could have been an NPP incoming president, it could have also been an NDC incoming president. That basically was the crust of our argument at that time. And so for someone to, today, be accusing this Government of double standards, in my opinion, is inappropriate. And I think that we should not use a nomination of these Supreme Court judges, the vetting of the nominees, as a platform to engage in partisan politics.

I think that basically, that would be my response for now, and I welcome the nominees, and as indicated, we will be vetting them according to the standards set by our Constitution, and I hope that this does not become another partisan bickering exercise.

Thank you.

Justice Senyo Dzamefe (Justice-designate to the Supreme Court)

Background

Justice Senyo Dzamefe was born on 19th November, 1959 at Agogoe Lume, located in the Ho Central District of the Volta Region, Ghana. He commenced his basic education at Ho Kpodzi E.P. School and subsequently attended the then Hohoe E.P. Senior Secondary School, where he obtained his Ordinary Level Certificate between 1970 and 1975. He further pursued his Advanced Level Certificate at Jasikan Training College, completing in 1978.

The Nominee enrolled at the University of Ghana, where he pursued an LLB (Hons) from 1979 to 1982. Upon graduation, he proceeded to the Ghana School of Law, where he obtained the Qualifying Certificate in Law and was duly called to the Bar in 1984. He subsequently pursued a Master of Business Administration (MBA) in Leadership and Strategic Management at the Norwegian School of Management, Oslo, Norway.

Justice Dzamefe commenced his professional career in the Judiciary as an Assistant State Attorney in Ho, and later in Bolgatanga, in 1984. His legal trajectory progressed as he served as Chairman of the Regional Tribunals in Tema and Wa from 1988 to 1994, and later at the Koforidua Circuit Tribunal from 1996 to 2000. In 2000, he was elevated to the position of High Court

Judge, serving in Sekondi (2000–2002), Agona Swedru (2002–2008), and subsequently at the Fast Track High Court in Accra (2008–2010).

In 2010, he was appointed as a Justice of the Court of Appeal, serving in Accra from 2010 to date, and additionally in Kumasi between 2018 and 2021. He currently holds the esteemed position of President of the Court of Appeal, a role he has held since 2024.

Justice Dzamefe has demonstrated notable leadership within the Judiciary. He served as Vice President of the Association of Magistrates and Judges of Ghana (AMJG) from 1996 to 1998, and later as President from 2018 to 2021. He chaired the Dzamefe Commission, which was mandated to investigate Ghana's participation in the 2014 FIFA World Cup Tournament.

He has served on the Judicial Council of Ghana in various representative capacities: for the Lower Courts (1996–1998), the High Court (2008–2010), and the Court of Appeal (2022–2024). He has also served as a Member of the Rules of Court Committee (2008–2010 and 2022–2024), Chairman of the Disciplinary Committee (Lower Courts and Judicial Service) from 2022 to date, and a Member of the Judicial Service Appointments Committee during the same period.

Justice Dzamefe is a respected member of several professional associations, including the Commonwealth Magistrates' and Judges' Association (CMJA) and the

Association of Magistrates and Judges of Ghana (AMJG). His active participation in these bodies reflects his enduring commitment to the promotion of judicial integrity and professional standards.

He has attended numerous high-level conferences, underscoring his dedication to continuous professional development. Among these are the Exposition to the Land Act, 2020, the UNESCO Conference on Freedom of Expression, and the International Commercial Arbitration Seminar.

The nominee's interests include playing football, walking, and aerobics.

Response to Questions

View on the Doctrine of Separation of Powers

Apprising the Committee of his view on the doctrine of separation of powers, the nominee articulated his perspective, emphasising that the doctrine fundamentally signifies a clear demarcation and absence of overlap among the various branches of government.

He indicated that the doctrine is firmly entrenched within the constitutional framework of the Republic of Ghana, as enshrined in the 1992 Constitution. Specifically, he referenced Article 58, which vests executive authority; Article 93, which confers legislative power upon Parliament; and Article 125, which delineates the judicial power of the Republic.

Innovations to Improve Justice Delivery in Ghana

When asked to propose innovations to enhance the delivery of justice in Ghana, the Nominee stated, among other measures, that to maximise productivity, paramount attention must be accorded to human resource development through effective motivation. He further advocated for the establishment of additional courts to alleviate the heavy caseload currently confronting the Judiciary.

The nominee also underscored the imperative of integrating advanced technological tools, such as voice recording and transcription systems, to supplant the outdated and laborious practice of manual note-taking.

Additionally, he proposed the adoption of virtual courts to obviate unnecessary adjournments occasioned by the absence of any party. He further recommended the institution of strict timelines for the adjudication of both civil and criminal matters as a means to enhance the efficiency of justice delivery.

In the nominee's considered view, the implementation of these measures would significantly expedite the administration of justice within the Judiciary.

The Independence of the Judiciary

In response to an inquiry regarding whether the 1992 Constitution adequately provides for judicial independence, the nominee expressed the view that judicial independence

encompasses three distinct dimensions: judicial, administrative, and financial independence.

He further stated that while the Judiciary enjoys independence in judicial and administrative matters, it remains constrained in the financial domain, as the Judiciary's budget is subject to approval by Parliament.

The nominee emphasised that Judges owe their allegiance solely to the Constitution and are thereby insulated from any external interference, which is essential to preserving the integrity and independence of the Judiciary.

Suppression of Investigative Journalism to Protect the Dignity of the Judiciary

Responding to a question on whether he would advocate for the suppression of investigative journalism in order to protect the dignity of the Judiciary, the nominee unequivocally stated that he would not endorse any such suppression. He affirmed his commitment to supporting investigative journalism that is truthful and accurate in its reportage.

Regarding the balance between safeguarding the reputation of the Judiciary and upholding the freedom of the press alongside public accountability, the nominee asserted that the Judiciary would not seek to gag the press, provided that the media adheres strictly to the ethics of journalism and the principles of accurate and responsible reporting as enshrined in the 1992 Constitution.

The Nominee further cautioned the media against reporting based on mere perception. He emphasised the important distinction between the Judiciary and the Judicial Service, urging the media to avoid conflating the two institutions in their coverage of related matters.

5.2.5 The Image of the Judiciary

On the question of how he would balance protecting the image of the Judiciary in relation to the work of the press, the Nominee emphasised that the Judiciary, as an institution, does not possess the legal or constitutional authority to gag or censor the press. He noted that the media must carry out its mandate in a professional and ethical manner, exercising caution, accuracy, and integrity in its reportage.

The nominee stressed that it is imperative for the press to report the truth. He urged journalists to be circumspect in their coverage of judicial matters and avoid feeding into or reinforcing public misconceptions or unfounded perceptions about the judicial process.

The nominee also made an important distinction between the Judiciary and the Judicial Service. He explained that the Judiciary refers specifically to the judges and magistrates who perform adjudicatory functions, whereas the Judicial Service comprises the administrative and support staff who facilitate the work of the courts. This distinction, he noted, is often overlooked by the media and the general public, leading to confusion and misplaced

criticisms. He encouraged the media to appreciate this structural separation and to ensure that their reporting accurately reflects the roles and responsibilities of each aspect of the justice system.

On the Rules of Constitutional Interpretation Applied by the Nominee

In response to a question regarding the interpretative approaches he employs in his analysis of constitutional provisions, the nominee explained that his primary method is to begin with the literal rule of interpretation. However, where the application of the literal rule leads to absurdity, ambiguity, or manifest injustice, the nominee indicated that he resorts to the Golden Rule. Where further clarification is still required or where the text of the Constitution is open to multiple interpretations, the nominee noted that he adopts the Purposive Rule of interpretation. He sometimes also considers the Mischief Rule and then in some cases, he employs the Sui Generis Rule.

The Importance of Cybersecurity in Ghana's Legal Education

On the importance of incorporating contemporary subjects such as cybersecurity and intellectual property into the curriculum at the Law School, the nominee remarked that law is inherently dynamic and is constantly evolving in response to changes in society and technology. He added that one would be left behind if he or she is not abreast with the current trends in society.

Re-Introduction of the Public Tribunal System

In response to a question on whether he would endorse the establishment of public tribunals to expedite the delivery of justice, the nominee expressed his support for such advocacy. He noted that litigants often feel more comfortable and at ease when appearing before a panel comprising a judge and two laypersons tasked with adjudicating cases.

When queried on the possibility of the judge on the panel unduly influencing the lay members by virtue of his legal expertise, the nominee emphatically stated that such a scenario would not arise. He explained that while law constitutes approximately twenty percent of the decision-making process, wisdom accounts for the remaining eighty percent. He further emphasised that the contributions of the lay members should not be underestimated, as they bring invaluable wisdom to the deliberations in every case.

Asset Declaration by Judges

In response to a question on whether judges should also be required to declare their assets, the nominee emphasised that judges, like all other public officers and government appointees, are not exempt from the constitutional and statutory requirements regarding asset declaration.

The nominee further noted that if the law mandates the declaration of assets by judges, then compliance with such a legal obligation is not optional but compulsory.

Deportation of Foreign Illegal Miners

Responding to a question on whether the deportation of foreigners who engage in illegal mining in Ghana contravenes the principle of equality before the law as enshrined in Article 17 of the 1992 Constitution, the nominee stated unequivocally that any person who commits an offence must be held accountable and subjected to the full rigours of the law.

On the question as to why the illegal foreign miners were deported rather than prosecuted and convicted, the nominee indicated that such action was an Executive decision, and he was not privy to the reasons or rationale underpinning that decision.

Gender Parity in the Judiciary

On the issue of gender parity in the Judiciary, the nominee acknowledged the importance of promoting gender balance within the judicial system. However, he was quick to caution that the pursuit of gender parity must not compromise meritocracy. According to him, while deliberate efforts to bridge the gender gap are commendable and necessary, such efforts should not result in appointing individuals who do not meet the requisite qualifications, solely on the basis of gender.

Extension of the Retirement Age of Supreme Court Justices

On whether the retirement age for Supreme Court Justices should be

extended from 70 to 75, the nominee expressed his opposition to such an extension. He acknowledged that advanced age and years of judicial experience often contribute significantly to the depth, maturity, and richness of a judge's reasoning and judgments. According to him, long service on the bench traditionally allows judges to develop a well-rounded perspective on legal and societal issues, which enhances the overall quality of jurisprudence.

However, he pointed out that the evolving nature of knowledge acquisition in the modern world, particularly with the proliferation of technology and digital resources, has significantly shortened the time it takes for individuals, including judges, to gain exposure to diverse and extensive bodies of knowledge. He observed that the traditional notion that wisdom and legal acumen can only be acquired through decades of bench experience is gradually giving way to a more dynamic and accelerated learning environment.

In light of this, he argued that retaining judges beyond the current constitutional retirement age may not be necessary. He also expressed a desire to see judges retire in good health, emphasising the importance of allowing them to enjoy their retirement while still being able to contribute meaningfully to the legal profession in other capacities. He suggested that retired judges could be engaged as legal assessors, consultants, or mentors, thereby continuing to lend their expertise to the development of the law and the training of younger legal

practitioners without necessarily remaining on the bench.

Maintaining Judicial Ethics

On measures to maintain judicial ethics, the nominee outlined three key suggestions. Firstly, he emphasised that judges must consistently base their decisions on the facts presented before them and the applicable law. Secondly, the nominee highlighted the importance of maintaining professional conduct in all interactions with parties who appear before the court. Lastly, he cautioned against judicial involvement in partisan politics. According to the nominee, judges must refrain from engaging in political activities or expressing political opinions, whether publicly or privately, as such conduct may call into question their neutrality.

View on Spousal Property

In response to a question regarding his views on property ownership by couples in the event of divorce or death, the nominee stated that the 1992 Constitution guarantees every person the right to own property, either individually or jointly with others.

He further intimated that, upon the death of a spouse, the distribution of property belonging to a person who dies intestate—that is, without a valid will—is governed by PNDC Law 111, known as the Intestate Succession Law, 1985.

However, the nominee indicated that where a valid will exists but fails to make reasonable or equitable provision for the

surviving spouse, the courts are empowered to intervene to rectify such anomalies.

With respect to divorce, the nominee stipulated that where property has been jointly acquired, both parties are entitled to reasonable access to such property. He also referenced the recent ruling in *Adjei v Adjei* [2021] GHASC 110 (21 April 2021), which underscores that each case must be adjudicated on its own merits.

Conflict Between Foreign and Domestic Investment Laws

In addressing the management of conflicts between foreign and domestic laws to bolster confidence within the investor community, the nominee informed the Committee that judicial decisions are invariably grounded on the evidence presented and the applicable law. He emphasised that the courts rely fundamentally on the Constitution as the supreme law, alongside relevant case law, and operate strictly within the constitutional parameters.

Regarding advice to parties engaged in international arbitration, the nominee stated that the contractual agreement between the parties must be carefully examined to determine the existence of an arbitration clause. He advised that parties should be compelled to exhaust the arbitration process stipulated in the contract before resorting to litigation in the courts.

Modernisation of Legal Education

Responding to a question on how legal education may be modernised without compromising the foundational

principles of the law, the nominee observed that the law is inherently dynamic, and its vitality is derived not from static logic but from lived experience.

He informed the Committee that, in light of rapid technological advancements, it is imperative to adapt legal education to evolving trends, consistent with international best practices. The nominee highlighted cybersecurity as a critical emerging area of law that ought to be incorporated into the curriculum to adequately prepare students for contemporary legal challenges.

Establishment of a Northern Bench

In response to a question regarding the establishment of a Northern Supreme Court Bench to serve citizens in the regions in the north and alleviate the need for them to travel to Accra to access justice, the nominee expressed his unequivocal support for the proposal.

He further explained that, while there is only one Supreme Court in Ghana, it is feasible to establish regional branches or benches of the Court across the country, analogous to the existing structures of the Court of Appeal and the High Court.

Nexus Between the Rule of Law and Economic Development

Apprising the Committee on the relationship between the rule of law and economic development, the nominee averred that there exists a positive correlation between the two. He explained that investors are more

confident and reassured when litigation is resolved expeditiously, as opposed to protracted delays, which tend to undermine trust in the legal system.

The nominee further indicated his support for any initiative aimed at increasing the number of judges to accelerate the disposal of cases, thereby enhancing public confidence in the Judiciary. He expressed the view that the citizenry would greatly benefit from the establishment of additional courts and the appointment of sufficient judicial officers to ensure the timely administration of justice.

View on “Justice Delayed is Justice Denied”

Addressing the Committee with his views on measures to address the perception that justice delayed is justice denied, the nominee emphasised the necessity for the courts to embrace advanced technological innovations, including the deployment of Artificial Intelligence for the recording and transcription of court proceedings.

He further stipulated that one of the principal challenges facing the courts is the reliance on outdated methods of manual note-taking, which invariably contribute to delays in the judicial process. The nominee proposed that the rules of court should prescribe strict time limits for the adjudication of both civil and criminal matters, and that unnecessary adjournments ought to be minimised to ensure the timely delivery of justice.

Significant Judgement of the Nominee

In apprising the Committee of the most significant judgements in his judicial career, the nominee identified *Abbey & Others v. Antwi V* [2010] SCGLR 17 as a *locus classicus*, particularly noted for its authoritative treatment of the doctrine of adverse possession and frequently cited in subsequent judgements. He also referenced *Musama Disco Christo Church and Others v. Prophet Jehu-Appiah and Another* [2015] GHASC 108 (11 November 2015) as another landmark decision.

On the significance of these cases, the nominee stated that he provided an erudite elucidation of the law in each instance, and that these judgements have been consistently cited by lower courts, thereby contributing meaningfully to the development of legal jurisprudence.

Reforms in Legal Education

In response to a question on whether the various law faculties should be permitted to provide professional training to their students, thereby breaking the monopoly of the Ghana School of Law, the nominee emphasised the necessity of balancing quality with quantity.

He further indicated that the principal challenge would be ensuring adequate oversight and control over the training process. The nominee suggested that such an arrangement could be feasible if the curriculum is comprehensively

redesigned and the faculties are properly supervised during the professional training of students, culminating in a unified examination.

The 2015 World Cup Inquiry

Regarding how the nominee would respond to a suggestion that the release of a white paper prior to the release of a full report is a violation of the 1992 Constitution, the nominee indicated that the Commission did not have the power to release a white paper. However, the Commission made recommendations to government after the report but never issued any white paper.

The Urgency of Accountability

The nominee was asked a question on whether he supports the assertion that the urgency of accountability should justify the violation of a constitutional provision. The nominee rejected the assertion and indicated that any action that violates the Constitution is illegal.

Building Trust in the Judicial System to Attract Investors

Regarding building trust in the judicial system and boosting investor confidence, the nominee emphasised that the expeditious resolution of cases is crucial for building trust in the judicial system, which in turn attracts investors. He noted that quick disposal of legal matters enhances confidence among the investor community, as prolonged delays can lead to a loss of faith in the system. The nominee therefore indicated that increasing the number of judges and

courts is a laudable suggestion to facilitate faster case handling and improve access to justice.

Judicial Ethics

The nominee was asked to give three measures or means he suggests to maintain judicial ethics while preserving independence.

In answering, the nominee mentioned that there is the need to go strictly by ethics, that is, to base decisions on available evidence and the facts before the judge. He also said there is the need for comportment and rapport with lawyers who appear before the court, as well as being mindful of the language used in court and of punctuality. He further concluded that one should know where to go and not go, where to be seen and not seen.

Judicial Transparency

In response to a question on the need for a balance between transparency and the need to avoid inappropriate commentary on legal issues, the nominee indicated that comments and opinions passed by judges carry a great deal of weight, since one cannot anticipate which matters may come before them in future. He stated that a judge must be sparing with public commentary, since a case with different facts may later arise, requiring the judge to depart from a previously stated opinion. Some litigants, he warned, could petition for a judge's recusal on the basis of such prior statements.

ECOWAS Court Issues

In answering a question on whether foreign constitutional precedents could influence Ghanaian constitutional interpretation and when, if ever, the Supreme Court should cite decisions from jurisdictions such as the United States, South Africa, the United Kingdom, or ECOWAS, the nominee responded by stating that such decisions can provide persuasive value. However, he maintained that foreign jurisprudence must not override domestic law, and that the supreme authority must always remain the Constitution of Ghana.

Issue on Democratic Theory and Constitutional Purpose

The nominee was asked whether constitutional term limits serve primarily to prevent individual power concentration or whether they are a constitutional imperative to ensure democratic competition. He responded that what the Constitution states is the law, and anything else is, in his words, “noise.” He added that once the Constitution stipulates a provision, it must be followed unless it is amended or repealed. He concluded by saying that there is no other interpretation than what is stated plainly.

The Issue of Interpretation Methodology

The nominee was asked whether the Supreme Court is amenable to either expanding or restricting executive

power. The nominee responded that whatever the Constitution prescribes is what must be done. If the Constitution states two terms, then that is the requirement—there should be no alternative interpretation.

Taking the Presidential Oath

The nominee was asked whether there would be a requirement for the Speaker to take the Presidential Oath when acting in place of the President in the absence of both the President and the Vice-President.

The nominee answered that the Oath could be taken only if there is a demonstrable need to do so. He explained that “absence” has taken on new meaning in the current technological context. He further clarified that in the case of a 24-hour absence, there would be no need for the Oath to be administered.

He was further asked whether there exists an express constitutional provision that gives the Chief Justice the right to take the Presidential Oath in the absence of the Speaker, and whether, in a situation where no such provision exists, the Chief Justice should take the Oath in the absence of the President, Vice-President and the Speaker.

In response, he stated that he believed there should not be a constitutional lacuna and that the Chief Justice could take the Oath in such circumstances. He added that if the officers in question were to return within a short time, such a step would be unnecessary.

Emergency Powers Granted

The nominee was asked whether temporary successors beyond the Vice-President hold full executive powers and whether constitutional limitations should apply to such powers.

He responded that while such individuals may exercise executive power, there must be limitations. He added that, to avoid a vacuum, someone must act; however, certain decisions should not be taken by such temporary officeholders.

In relation to emergency succession powers, he was further asked how he would balance government continuity with democratic accountability in an extended succession scenario.

He responded by saying that the State must continue to function in the absence of the principal officers mentioned earlier and must not come to a standstill.

Emoluments for Article 71 Office Holders

The nominee was asked whether Superior Court Justices come under Article 71 and whether they enjoy Article 71 emoluments every four years. He responded that Superior Court Justices come under Article 71 but explained that the salaries of Article 71 office holders are not reviewed every year but once every four years, and what is paid as lump sum is the difference. When asked if he disagreed with the suggestion that Article 71 was only there to benefit the political class, he replied

that the Constitution mentioned specific categories of people who should enjoy these emoluments, not just the political class.

Recommendation

The Committee recommends to the House by Majority Decision the approval of the nomination of JUSTICE SENYO DZAMEFE for appointment as Justice to the Supreme Court. All the National Patriotic Party Members of the Committee (Opposition) voted against the nominee.

Justice Sir Dennis Dominic Adjei
(Justice-designate to the Supreme Court)

Background

Justice Sir Dennis Dominic Adjei was born on 25th March 1964 at Asuoyeboa in the Ashanti Region. His early education began at Collins Secondary Commercial School, Agogo from 1980 to 1981, continued at Antwimaman Secondary School from 1981 to 1985, and proceeded to Wenchi Methodist Secondary School from 1985 to 1987, where he completed both his Ordinary Level and Advanced Level certificates.

He proceeded to the University of Ghana, where he obtained a Bachelor of Arts degree in Law and Linguistics, and later acquired the Qualifying Certificate in Law at the Ghana School of Law from 1991 to 1993.

Between 2007 and 2010, he pursued an Executive Master of Public Administration at the Ghana Institute of

Management and Public Administration (GIMPA). In addition, he obtained a Postgraduate Certificate and a Postgraduate Diploma in Criminology and Criminal Justice from the University of London between 2008 and 2009. He subsequently earned a Master of Laws (LL.M) in Criminology and Criminal Justice from the same university between 2009 and 2010, and later completed a Master of Judicial Studies at Duke University School of Law, USA, from 2012 to 2014.

Justice Sir Dennis Dominic Adjei performed his National Service at Mpatuom Local Authority Middle School (1987–1988), at the Legal Aid Scheme in Kumasi (1993–1994), and served as an Associate at Owusu Bempah Law Chambers from 1993 to 1999.

In terms of employment history, the nominee was the Founder and Managing Partner of Holy Trinity Chambers, Kumasi, from 1999 to 2010. He also served as an Adjunct Associate Professor at the Faculty of Law, University of Cape Coast and as Dean of the Faculty of Law at GIMPA from 2019 to 2020. Since 2010, he has been a Part-time Senior Lecturer at the Ghana School of Law, and since 2022, an Adjunct Professor at the University of Cape Coast. He has served as a Justice of the Court of Appeal of Ghana since 2010 and currently serves as the second Ghanaian Judge on the African Court on Human and Peoples' Rights, based in Arusha, Tanzania, for the period July 2022 to August 2028.

With regard to leadership roles in academia, the nominee is a Member of the Management Committee of the University of Ghana School of Law (2014–present), Board Member of the Ghana Institute of Advanced Legal Studies, and a member of various GIMPA committees, including the Administration, Legal and Grievance Committee, Executive Management Committee, and the Policy and Strategic Committee from 2019 to 2020.

In respect of the Judiciary, he has served on several committees, including the Judges and Magistrates Performance Review Committee (2011–2023), the Committee to Review and Update the 2012 Election Adjudication (2012–2016), and was Chairman of the Private Process Committee (2010–present), and Chairman of the Appeal Process Committee (2012–present). He has also served as President of the Court of Appeal in Tamale (2013–2016) and Koforidua (2014–2016).

At the national level, the nominee was Chairman of the Criminal Law Review Committee (2004–2016), which reviewed the Criminal Offences Act, 1960, and the Evidence Act, 1975 (N.R.C.D. 323), especially in relation to corruption laws. He also served as Chairman of the Timber Validation Committee (2014–2016), Joint Chairman (with the Attorney-General and Minister for Justice) of the Legal and Justice Sector Reform Programme Steering Committee (2015–2017), Member of the National Mechanism for Reporting and Follow-Up on Human Rights (2021–2023), Board Chairman of

the Radiation Protection Institute (2021–2025), and Board Member of the Ghana Atomic Energy Commission (2021–2024).

At the international level, he has served on committees of the African Court on Human and Peoples' Rights, including the Committee on Review of the Rules (2022–2023), the Committee on Legal Aid and Training, the Audit Committee, and the Committee on Publications, Website and Language Unit (2022–present).

Justice Sir Dennis Dominic Adjei is also Head of Faculty for Interpretation of Deeds and Statutes at the Ghana School of Law (2014–present), Chief Examiner for the Bar Examination, and External Examiner for the LL.M. Programme at the Kwame Nkrumah University of Science and Technology (2017–2021). He served as a Member of the Academic Board at GIMPA (2019–2020), a Member of the Examination Committee of the National Board for Professional and Technician Examinations (2015–2021), and as Oversight Judge for the Western and Central Regions (2012–2015). He also held the position of Director of the Public Complaints and Court Inspectorate Unit (2012–2014), Director of the Judicial Training School (2014–2019), and Oversight Judge for the Ashanti, Brong-Ahafo, Northern, Upper West, and Upper East Regions (2015–2019), as well as Acting Director of the Judicial Training School (2021–2023). He chaired the Environmental Law Training Programme for African Judiciaries under the auspices of the United Nations Environment

Programme (2017–2018). Notably, he was the first Ghanaian appointed to the Advisory Committee on the Nomination of Judges of the International Criminal Court, serving from 2021 to 2024.

The nominee's other professional contributions include his tenure as a Bar Council Member of the Ghana Bar Association (2008–2010), President of the Ashanti Region Branch of the Ghana Bar Association (2008–2010), Chairman of the First Sierra Leone Judicial Conference (2016), and Consultant for the Reform of the Judiciary of Sierra Leone aimed at enhancing justice delivery (2016). In non-legal roles, he has served as Pastoral Council Chairman at Christ the King Church, Accra (2014–2016), Chairman of Christ the King International School (2016–2021), and Board Chairman of the Kumasi Archdiocesan Catholic Hospital Board (2023).

He was knighted by His Holiness Pope Benedict XVI into The Order of Saint Gregory the Great on 18th October 2005.

Justice Sir Dennis Dominic Adjei has participated in numerous workshops and conferences, including a Certificate in Online Training on WTO Law and Jurisprudence by the International Trade Institute for West Africa and Advisory Centre on WTO Law in Geneva, Switzerland (2021); Training of Trainers from Judicial Training Institutes in Africa on Freedom of Expression and Safety of Journalists, Nairobi, Kenya; participation in UNESCO's Global Commemoration of the International Day to End Impunity for Crimes Against

Journalists (IDEI) in Addis Ababa, Ethiopia (2024); Large Language Models in Human Rights Proceedings and Artificial Intelligence in Government Decision-Making, University of Nuremberg, Germany (2024); The Status of the African Court, University of Bayreuth, Germany (2024); and several lectures to Committees of the Parliament of Ghana, including topics on Parliamentary Immunities and Privileges, Abolition of the Death Penalty, and Plea Bargaining Procedures.

He has authored, edited, and contributed to numerous legal publications. These include: *Essential Laws on Credit Creation and Registration of Security Interest* (2022); *Alternative Dispute Resolution: A Ghanaian Perspective* (2021); *Approaches to Interpretation: Purposivism, Living Constitutionalism and Internationalism in Ghana* (2020); *Contribution to Contemporary Principles of Family Law in Ghana* (2015) by Mrs Frederica Ahwireng-Obeng.

In addition, he has published articles in peer-reviewed journals including: *The Conflicting Categorisation of Kings and Chiefs in Ghana: The Status of the Asantehene*, *Amicus Curiae Journal*, Series 2, Vol. 6 No. 1 (2024); *Human Rights for Justice*, *Amicus Curiae Journal*, Series 2, Vol. 5 No. 2 (2024); *Tax Appeals Procedure* (2021), and *Defence Theory and Unfair Termination in Ghana* (2019), both published in *The Bench – Journal of the Association of Magistrates and Judges of Ghana*.

Justice Adjei has presided over and reported decisions including: *Twumasi v. The Republic* (2020–2021) 1 GLR 980; *Atomic Gate Homeowners Association v. Enterprise Funeral Services* (2013–2015) 2 GLR; *Amoah v. Gyan* (2013–2015) 2 GLR 280; *African Mining Services v. Larbi* (2010–2012) 1 GLR 579.

Among his notable accolades is the award of Fellow, Inns of Court Judicial Fellowship (2022–2023) by the Institute of Advanced Legal Studies, School of Advanced Study, University of London. He is the second African to be so honoured since the programme's inception in the 2003/2004 academic year.

The nominee enjoys reading, writing, and choral music in his leisure time.

Response to Questions

Limited Access to Legal Education in Ghana

On the matter of expanding access to legal education by addressing the current limitations posed by the monopoly of the Ghana School of Law, the nominee acknowledged the existence of significant systemic constraints. He noted that although numerous universities across the country are now producing law graduates, access to the professional legal training required to be called to the Bar has not seen a corresponding expansion.

The nominee explained that this disparity has created a bottleneck,

leaving a large number of qualified graduates unable to gain admission into the Ghana School of Law. In response, he proposed a policy direction that would allow other accredited universities offering undergraduate law programmes to also run the professional legal component. He cautioned, however, that this must be pursued with care. He underscored the necessity for comprehensive feasibility studies to determine the readiness and capacity of such institutions. Only those that meet the prescribed standards and regulatory benchmarks, he argued, should be authorised to offer professional legal training. This, he emphasised, would preserve the integrity and quality of legal education in Ghana.

Diminishing Trust in the Judiciary

Touching on the growing perception of diminishing public trust in the Judiciary, as reflected in Afro barometer surveys and reports by the Ghana Integrity Initiative, the nominee acknowledged the concerns but stated that many of the allegations levelled against the Judiciary are not substantiated by evidence.

He opined that certain litigants, upon losing their cases, attribute their losses to judicial corruption without any proof. The nominee urged the public to report specific instances of misconduct supported by verifiable evidence rather than propagate unsubstantiated claims. In his view, this approach would help distinguish genuine grievances from emotional responses to unfavourable

judgments, thereby protecting the reputation and credibility of the judicial system.

Abolishing of the Death Sentence

The nominee expressed firm support for the abolition of the mandatory death penalty in Ghana. He argued that sentencing in capital offence cases should be discretionary rather than automatic, thereby allowing judges to consider alternative punishments based on the specifics of each case.

He asserted that the current mandatory framework infringes on the right to life guaranteed under the Constitution and places Ghana in breach of its international human rights obligations. Citing offences such as treason and sections of the Armed Forces Act (Act 105), which presently prescribe the death penalty upon conviction, the nominee maintained that such laws are inflexible and fail to accommodate the principle of judicial discretion.

He further made reference to Article 4 of the African Charter on Human and Peoples' Rights, which affirms the inviolability of human life, and reiterated the need for Ghana to align its legal framework with this regional human rights instrument.

Establishment of a Separate Constitutional Court

The nominee was invited to express his opinion on whether Ghana should establish a separate Constitutional Court dedicated solely to the interpretation and

enforcement of constitutional matters. In his submission, the nominee held the view that such a move was unnecessary under the current constitutional arrangement.

He argued that the 1992 Constitution already confers exclusive jurisdiction for constitutional interpretation and enforcement on the Supreme Court, a mechanism which, in his opinion, has served the Republic effectively. The creation of a separate constitutional court, he suggested, may fragment the judicial system and inadvertently dilute the authority of the Supreme Court as the final arbiter of constitutional issues.

Human Dignity and Criminal Justice

The Committee further enquired whether the practice of prosecutors conducting press briefings which disclose identities of suspects before trial undermines the principle of human dignity and the presumption of innocence. The nominee responded in the affirmative, citing Article 15 of the 1992 Constitution and corresponding provisions of the African Charter on Human and Peoples' Rights.

He emphasised that suspects must not be portrayed as guilty prior to conviction by a competent court. According to the nominee, such practices carry the risk of social prejudice, reputational damage, and undermine the foundational principle that an accused person is innocent until proven guilty. He called for a re-examination of the conduct of press briefings by prosecutorial

authorities to ensure that they do not pre-empt judicial outcomes or degrade the dignity of suspects.

Challenging Parliamentary Decisions in Court

The nominee was questioned on whether Members of Parliament (MPs) may challenge the rulings or interpretations of the Speaker in the Supreme Court, within the context of the doctrine of separation of powers. In his response, the nominee affirmed that while the Executive, Legislature, and Judiciary operate independently, constitutional interpretation remains the legitimate preserve of the Judiciary.

He cited Articles 2 and 130 of the 1992 Constitution, which empower any individual to seek the Supreme Court's interpretation where there is an allegation of inconsistency or contravention. In his view, the Court's intervention in such cases does not undermine Parliament but rather reinforces constitutionalism and provides clarity in governance.

Contributions to Children's Rights and Gender Equality

On his contributions to the promotion of children's rights and gender equality, the nominee stated that he had engaged in public advocacy, academic lecturing, and scholarly publications on these themes. He referenced his stance against plea bargaining in cases involving child defilement, indicating that such compromises are detrimental to the protection of vulnerable children.

He further asserted that his work in both judicial and academic spaces has aimed at reinforcing the rights of women and children and ensuring that justice systems are sensitive to their needs.

Criminalising Child Marriage and Witchcraft Accusations

When asked about legislative interventions to address child marriage and witchcraft accusations, the nominee expressed unequivocal support. He described accusations of witchcraft as archaic, harmful, and detrimental to societal harmony. With regard to child marriage, he stressed that it violates children's rights and obstructs their educational and personal development.

He thus welcomed legislative proposals to criminalise these acts and called for their speedy passage and enforcement, underscoring their importance in Ghana's human rights and social protection agenda.

Ensuring Gender Parity in the Judiciary

Addressing the matter of gender parity within the Judiciary, the nominee emphasised the centrality of sustained training and capacity-building for judicial officers. He called attention to the Judicial Training Institute as a critical institution that must be adequately resourced to deliver targeted training, including modules aimed at bridging gender disparities.

The nominee urged Parliament to protect the budget lines allocated for

judicial training, stating that continuous professional development is necessary to advance merit-based gender representation at all levels of the bench.

Environmental Protection

On the subject of environmental governance, the nominee pointed to Articles 36 and 41 of the Constitution, which impose duties on citizens to protect and safeguard the environment. He lamented that Ghana's challenge is not the absence of laws but the ineffectiveness of enforcement mechanisms.

Citing illegal mining activities in protected areas such as the Atiwa Forest, the nominee urged for collective responsibility in environmental protection. He asserted that enforcement must not rest solely with the police but requires the active participation of all stakeholders, including citizens and the Judiciary.

Constitutional Amendments

The Committee sought the views of the nominee on proposals to modernise Ghana's governance framework through constitutional reform. In response, the nominee proposed two specific amendments.

Firstly, he recommended that district assembly elections be conducted on a partisan basis, contrary to the current non-partisan approach prescribed by the Constitution. He argued that the present system is at odds with political reality, where partisan influences are already prevalent. Acknowledging this

contradiction, he maintained that legalising partisanship at the district level would promote transparency, legitimacy, and accountability.

Secondly, the nominee called for an end to the practice of assigning judges of higher courts to sit as additional judges in lower courts. He contended that this practice, uncommon in other jurisdictions across Africa, risks compromising public confidence and judicial impartiality. He further noted that the country currently has a sufficient number of judges to manage caseloads at each level of the Judiciary, rendering such deployments unnecessary.

Automating Court Processes

The nominee was asked to comment on the prospect of fully automating court operations in Ghana. He gave a strong endorsement of the initiative, arguing that digital transformation of the Judiciary is vital for improving the efficiency, transparency, and accessibility of justice delivery.

He outlined his vision for a comprehensive e-justice system encompassing electronic filing, case management, virtual hearings, and electronic judgments. However, he was forthright in acknowledging the current limitations in infrastructure and urged for significant investment in the technological capacity of the Judicial Service. In his view, automation is indispensable to addressing systemic delays and improving the overall administration of justice.

Judicial Dress Code in Ghanaian Courts

On the question of whether the judicial dress code—particularly the wearing of wigs and gowns—is still relevant in Ghana's climate and context, the nominee offered a robust defence of the tradition. While acknowledging the country's hot climate and the lack of air-conditioning in many courtrooms, he asserted that the wig and gown symbolise the authority, dignity, and solemnity of the judicial office.

He recalled a previous attempt to relax the dress code, which inadvertently led to cases of impersonation within the courts. As such, he expressed firm support for retaining the traditional attire, noting that it not only distinguishes the legal profession but also reinforces public trust in the institution of justice.

Tax Obligations

Regarding his tax obligations, the nominee was asked whether his Tax Clearance Certificate (TCC) reflected all sources of income, particularly from part-time teaching engagements. He clarified that he had duly submitted all relevant income information to the Finance Department of the Judicial Service and had relied on the department to compute his taxes appropriately.

However, it emerged during the vetting process that his TCC accounted only for his primary salary and not for additional income from teaching. The nominee expressed his readiness to rectify the discrepancy and promptly

update his records with the Ghana Revenue Authority (GRA). He reaffirmed his commitment to full compliance, and the Committee Chair granted him leave to regularise the matter.

Nominee's Honorary Position

The Committee sought clarification on an honorary title listed in the nominee's Curriculum Vitae. The nominee confirmed that he was knighted by Pope Benedict XVI into the Order of St. Gregory the Great on 18th October 2005. This papal honour conferred upon him the title of 'Sir'.

He explained that the honour was in recognition of his distinguished contributions to the Church, the nation, and humanity at large. The Committee acknowledged the recognition as a mark of distinction and service.

Nominee's Legal Education and Qualification

The nominee was requested to provide clarification on his academic background, particularly regarding his legal qualifications. In response, the nominee stated that he obtained a Bachelor of Arts (B.A.) degree in Law and Linguistics. He explained that, at the time of his study, holders of both B.A. Law and LL.B. degrees were eligible for admission into the Ghana School of Law, subject to academic performance and rankings.

He further indicated that he was admitted to the Ghana School of Law in

1991 and successfully completed the then two-year professional course in 1993. This qualification, he asserted, duly conferred on him the status required to be called to the Bar.

Retirement Age for Supreme Court Judges

On the issue of whether the retirement age for Supreme Court Judges should be extended beyond the current threshold of seventy (70) years, the nominee expressed opposition to any such extension. He noted that the pressures and workload associated with judicial service are considerable, and many judges experience a deterioration in health soon after retirement.

In the view of the nominee, raising the retirement age could pose risks to the health and well-being of judges and may not necessarily serve the public interest or the sustainability of judicial performance.

Nominee's Views on Judicial Precedents and Legal Interpretations

The Committee sought the nominee's views on the Supreme Court's recent interpretation of injunction procedures, particularly in the matter of *Vincent Ekow Assafuah v Attorney-General*. The nominee explained that the Court's decision—that the filing and service of an injunction application no longer serves as a stay of proceedings unless an express court order is issued—has now brought finality to a long-standing jurisprudential divergence.

He acknowledged that both schools of thought—automatic stay versus formal court order—had coexisted in the common law tradition. However, the current binding ruling of the Supreme Court must be respected, although courts may still assess circumstances on a case-by-case basis within that framework.

Function of the Judicial Council in the Appointment of Supreme Court Justices under Article 144(2)

In clarifying the role of the Judicial Council in the appointment process for Supreme Court Justices, as provided for in Article 144(2) of the 1992 Constitution, the nominee referred to the Supreme Court's unanimous decision in the case of *Ghana Bar Association v Attorney-General*.

He explained that while the Judicial Council may interview candidates and provide recommendations, the power of nomination rests solely with the President. The President is therefore not bound by the Judicial Council's order of merit or recommendations, provided that the mandatory consultations with the Council of State and approval by Parliament are duly observed. This interpretation, according to the nominee, aligns with the constitutional separation of functions and has been affirmed by the Supreme Court.

Executive and Prosecutorial Discretion in Deportation Cases

The nominee was asked to elucidate whether the executive's power to deport foreign nationals overrides the Attorney

General's prosecutorial discretion, particularly in the context of illegal mining activities.

He responded by distinguishing between the two spheres of authority. The Attorney General, under the Constitution, exercises independent prosecutorial discretion, while the Executive possesses administrative authority under the Immigration Act to deport foreign nationals.

He emphasised that deportation, when carried out in accordance with the law, is lawful but does not preclude prosecution. The Attorney General retains the discretion to prosecute regardless of any prior or concurrent deportation action taken by the Executive.

Nominee's Views on Presidential Term Limits

The nominee was invited to clarify his interpretation of Article 66 of the 1992 Constitution, particularly in relation to presidential term limits. He responded unequivocally that the provision is clear and unambiguous, stating that no person shall hold the office of President of the Republic of Ghana for more than two four-year terms, whether consecutively or non-consecutively.

The nominee maintained that any attempt to circumvent this provision would amount to a violation of the constitutional order, and affirmed his commitment to upholding this democratic safeguard.

Judicial Equity in Cohabitation Disputes

With regard to the application of judicial equity in family law disputes arising from cohabitation, the nominee clarified that such matters are not considered as matrimonial property cases. Instead, they are treated as joint property acquisition disputes, with a focus on establishing each party's financial or material contributions.

He asserted that emotional relationships or domestic partnerships do not, in themselves, confer proprietary rights. The party making a claim must provide evidence of substantive input toward the acquisition or enhancement of the disputed property. He concluded that the courts are obliged to apply equity with fairness, grounded in tangible contributions, irrespective of the relational context.

Regulating Article 146 Proceedings

On the matter of Article 146 proceedings relating to the removal of judges, the nominee expressed support for the introduction of a Statutory Instrument (SI) or Constitutional Instrument (CI) to outline clear and codified procedures. He opined that such an instrument would ensure transparency, consistency, and procedural fairness in handling allegations of misconduct against judges.

Understanding Stated Misbehaviour under Article 146

The nominee was asked to explain the scope of stated misbehaviour as contemplated under Article 146 of the Constitution. He clarified that it extends beyond criminality to include breaches of judicial ethics and professional conduct.

Examples he cited included a judge unjustifiably expelling a lawyer from a courtroom or engaging in conduct that violates the Code of Conduct for Judges and Magistrates. He advocated drawing upon international jurisprudence, where comprehensive examples of judicial misconduct have been developed, to guide Ghana's evolving standards in this regard.

Presidential Succession

On the question of presidential succession, the nominee firmly stated that succession, as envisioned by the 1992 Constitution, is strictly limited to the President, Vice President, and Speaker of Parliament. He explained that this design was intentional, ensuring orderly and legitimate transition of power, and does not contemplate the inclusion of the Chief Justice in the succession line.

He referred to the doctrine of capping legitimacy, arguing that succession must be limited to specific constitutional officers, and stressed that one of the three should always be available in the country to avoid creating a power vacuum.

Absence of the President, Vice President, and Speaker

The nominee addressed the implications of the simultaneous absence of the President, Vice President, and Speaker. He acknowledged that the Supreme Court had issued interpretations on this matter, but opined that those decisions diverged from a purposive interpretation of the Constitution.

He submitted that the purpose for which constitutional provisions were enacted—determined by context, timing, and evolving circumstances—must inform their interpretation. Emphasising the living nature of the Constitution, he stated that judicial interpretations may justifiably evolve over time to respond to contemporary realities.

Provisions of Article 60

In relation to Article 60, the nominee commented on the views expressed by the late Professor Kludze in *Asare v Attorney-General*. He respectfully disagreed with the obiter dicta of Professor Kludze, contending that constitutional interpretation must be contextual and faithful to the purpose and spirit of the law.

He noted that Professor Kludze's references to pre-independence constitutional arrangements—such as the Chief Justice signing bills into law in the absence of the Governor-General—are no longer applicable and should not inform current constitutional jurisprudence.

How to Resolve Misconduct When the Arbiter Becomes an Actor

The nominee was asked to express his view on situations where an arbiter, such as the Chief Justice, appears to transition into the role of an actor in a matter that may later require judicial adjudication. He unequivocally stated that an arbiter must never become an actor, as doing so undermines the independence and impartiality of the Judiciary.

The nominee explained that while politicians and Members of Parliament, by virtue of their electoral mandate, may take on advocacy roles, the Chief Justice, as a judicial officer, is constitutionally expected to remain neutral, detached, and above partisan or administrative involvement. He warned that the entanglement of judicial officers in Executive or Legislative roles erodes public confidence and compromises the legitimacy of subsequent judicial processes.

Holy Trinity Chambers

The nominee clarified that under Ghanaian law, companies may be registered as limited liability companies, unlimited liability companies, or companies limited by guarantee. In addition to these, individuals may operate businesses registered as sole proprietorships or partnerships.

He noted, however, that where a firm engages in fraudulent activity, the law permits that liability be extended beyond the firm to the personal assets of the

owner or partners. This legal principle, he explained, forms the basis for why no country permits law firms to be registered as limited liability companies. The rationale is to ensure that legal practitioners and their firms are held fully accountable for any professional misconduct or fraudulent acts undertaken in the course of their operations.

According to the nominee, this legal safeguard preserves public trust, upholds the ethical standards of the profession, and prevents legal entities from using the corporate veil to evade liability or disciplinary consequences.

Expanding Access to Legal Education

The nominee responded to a question on the challenges and opportunities in expanding access to legal education in Ghana. He acknowledged that legal education in the country has long been constrained by limited infrastructure and intake capacity, especially at the Ghana School of Law (Makola).

He noted that although additional campuses such as GIMPA and KNUST have been established, the number of law graduates from both public and private universities, including foreign institutions, continues to exceed the available slots for professional legal training.

In response to this persistent challenge, the nominee proposed that a policy shift be considered to allow some accredited law faculties to provide the

professional training component, while the Ghana School of Law serves as the central examining and accreditation body. He cautioned, however, that this transition should be underpinned by feasibility studies, robust monitoring, and quality assurance frameworks to safeguard the integrity of legal education and ensure that only institutions with the requisite capacity are permitted to offer professional legal training.

Emerging Artificial Intelligence, Fake News, and Fake Accounts

In response to a question on the criminalisation of fake news, misinformation, disinformation, and the use of fake social media accounts, particularly in the context of emerging technologies and artificial intelligence (AI), the nominee expressed unequivocal support for legislative intervention.

He argued that false information dissemination poses a grave threat to national cohesion, individual reputation, and public order. In his view, if the same acts are criminal in traditional media, then their replication on digital platforms and social media must equally be punishable under the law.

The nominee acknowledged concerns regarding the potential chilling effect on free speech, but rejected the suggestion that such legislation would amount to censorship. He referenced the Communications Act, which already criminalises certain acts of false communication, and contended that extending such legal controls to online conduct is consistent with existing legal

principles. He concluded that while freedom of expression is sacrosanct, it does not include the freedom to spread falsehoods or commit cyber-related offences with impunity.

Reforms to Restore Trust in the Judiciary in the Face of Declining Public Confidence

On the issue of declining public confidence in the Judiciary, the nominee proposed a multi-pronged strategy aimed at reforming and restoring institutional trust. He advocated for the institutionalisation of ethics training as a core component of all programmes at the Judicial Training Institute. According to him, this training must target judges, magistrates, and judicial staff, with the goal of internalising ethical values and reinforcing the culture of integrity within the judicial service.

The nominee also underscored the importance of public education on judicial processes and ethical expectations. He encouraged citizens to report incidents of misconduct, rather than resorting to unsubstantiated allegations. Drawing from his own experience as Director of Judicial Training, he noted that the most effective way to combat corruption is to raise ethical consciousness and enforce accountability through disciplinary and criminal sanctions against errant officers.

He concluded by calling for the prosecution of public officials who engage in corrupt acts, including those within the Judiciary, as a clear signal that misconduct will not be tolerated.

Legal System and Environmental Protection

On the role of the Judiciary in environmental governance, the nominee stated that Ghana is transitioning from a traditional to a modern judiciary, and that this evolution must include environmental jurisprudence.

He observed that many judges are introduced to environmental law only during their university education and not adequately during professional training. As such, he strongly recommended continuous capacity building for both judges and lawyers on environmental legal principles and enforcement mechanisms.

He emphasised the Judiciary's role in the adjudication of environmental infractions, including air and water pollution, deforestation, and illegal mining (galamsey). The nominee called for enhanced judicial competence in environmental matters to ensure that justice delivery is aligned with Ghana's constitutional and statutory mandates on environmental protection.

Recommendation

The Committee recommends to the House by Majority Decision the approval of the nomination of JUSTICE SIR DENNIS DOMINIC ADJEI for appointment as Justice to the Supreme Court. All the National Patriotic Party Members of the Committee (Opposition) voted against the Nominee.

Justice Gbiel Simon Suurbaareh

(Justice-designate to the Supreme Court)

Background

Justice Gbiel Simon Suurbaareh was born on 11th January 1958 at Nadowli, Mwaawaar, in the Upper West Region of Ghana. He began his formal education at Moyiri Primary School, where he studied from 1964 to 1970. He proceeded to the St. Francis Xavier Junior Seminary, Wa, for his Ordinary Level education, which he completed from 1970 to 1976, and subsequently attended the Navrongo Secondary School, where he pursued his Advanced Level education from 1976 to 1978. He holds a Bachelor of Laws (LL.B.) degree from the University of Ghana, awarded in 1981, and a Barrister-at-Law Certificate (Professional Law) from the Ghana School of Law, Accra, obtained in 1983.

Justice Suurbaareh has served in several distinguished leadership positions within the Judicial Service of Ghana. He commenced his judicial service under the National Service Scheme at the Regional Public Tribunal in the Northern Region from 1985 to 1987. He was appointed as Chairman of the Regional Public Tribunal, with jurisdiction over the Brong Ahafo, Northern, Upper East, and Upper West Regions, a position he held from 1985 to 1993. He was subsequently appointed a Circuit Court Judge in 2000, a role he discharged until 2004, after which he was elevated to the High Court in May

2004. He has served as a Justice of the Court of Appeal from 2015 to date.

Between 1993 and 2000, the nominee was the Chairman of the Community Tribunal in Obuasi, with additional jurisdiction over Huntado, Bekwai, and New Edubiase. He later chaired the Circuit Tribunal in Koforidua from 2000 to 2004 and served as Supervising High Court Judge for the Northern Region from 2007 to 2008. His service as a Faculty Member of the Judicial Training Institute spanned 2009 to 2010, and again in 2023. He also held the position of Supervising High Court Judge in the Eastern Region from 2009 to 2014, and later in the Central Region from 2014 to 2015. In 2014, he was appointed an Additional Judge of the Court of Appeal, and in 2015, he was designated as the Judge with Oversight Responsibilities for the Central and Western Regions. He served as President of the Court of Appeal for the Northern Sector from 2022 to 2024.

Justice Suurbaareh is an active member of the Association of Magistrates and Judges of Ghana (AMJG) and the Commonwealth Magistrates and Judges Association (CMJA). His professional development has been marked by participation in numerous conferences and capacity-building workshops, which have significantly enhanced his judicial knowledge and practical competence.

His conference participation includes sessions on Legal Documentation Association with Financial Instruments in 2024, International Commercial

Arbitration in 2021, the World Trade Organization Virtual Workshop in 2021, and seminars on the Banks and Specialised Deposit-Taking Institutions Act, 2016 (Act 930) and Financial Administration and Procurement Laws in 2019. He has also taken part in specialised workshops on Case Management, International Business Transactions, and Judicial Craft—particularly in relation to avoiding judgment debt—in 2014. Other engagements include training on Land Case Management, Survey Techniques, Map Reading, and Locus in Quo investigations in 2013, as well as intensive workshops on Adjudication of Electoral Disputes during the general elections of 2004, 2008, 2012, 2016, 2020, and 2025.

Justice Suurbaareh's development portfolio further includes several workshops focused on judicial administration, gender equity, customary law, and anti-corruption initiatives. Notable among these are the Validation Workshop on the Development of Gender Policy for the Judicial Service (2011), training for High Court Judges handling SSNIT cases (2011), the Ascertainment and Codification of Customary Land Law Project (2011), and a workshop on Developing a Monitoring and Evaluation System for Judges and Magistrates (2010). He also participated in multiple sessions on Land Law for Judges (2008 and 2009), a Maritime Law Seminar (2009), and training on Administrative Procedures, Leadership Skills, Corporate Governance, and Public Sector Management (2009).

Further workshops attended include sessions on Human Trafficking and Illegal Migration (2009), Case Management for First Instance Courts (2008), Institutional Support towards Governance and Poverty Reduction (2008), and engagements on Emerging Trends in the Justice Delivery System, particularly focusing on Alternative Dispute Resolution (2007). He also attended the World Intellectual Property Organisation (WIPO) Colloquium for the Judiciary on Intellectual Property Rights in 2007.

In his personal life, Justice Gbiel Simon Suurbaareh enjoys observing nature, gardening, and reading.

Response to Questions

Bribery and Corruption

When the nominee was asked whether he had ever been offered a bribe in the course of his duties within the Judicial Service, he responded unequivocally that his membership in any organisation or religious group would not compromise his impartiality in the administration of justice. He underscored his commitment to the judicial oath, stating emphatically that he would not allow monetary inducements or gifts to influence his judicial discretion or decision-making. The nominee expressed confidence in the Supreme Court's ability to exercise its discretion fairly in matters concerning

corruption and misconduct within the Judiciary.

Investigative Journalism in Exposing Corruption

The nominee acknowledged the critical importance of maintaining a balance between investigative journalism aimed at exposing corruption and the need to safeguard individual rights. He expressed support for undercover investigations, noting that such journalistic efforts are legitimate so long as they are carried out ethically and with due regard for procedural fairness. The nominee further emphasised the need to address public perceptions surrounding judicial corruption without compromising the fundamental rights of individuals in the pursuit of accountability.

Proposal for Consideration by the Constitutional Review Commission

When asked to present his personal recommendations for the consideration of the Constitutional Review Commission, the nominee outlined two major proposals. First, he advocated that the majority of Ministers appointed under Article 78(1) of the Constitution should be drawn from outside Parliament, in order to enhance parliamentary effectiveness and promote separation of powers. Secondly, he recommended that the procedure for the removal of the Chief Justice—currently outlined under Article 146—should be extended to all Superior Court Judges, to ensure consistency and fairness in judicial accountability mechanisms.

According to the nominee, both proposals are intended to strengthen constitutional practice and address gaps in the current institutional arrangements.

Extension of the Retirement Age

On the matter of whether the retirement age for Supreme Court Judges should be extended beyond 70 years, the nominee indicated that he does not support such a measure, at least personally. He explained that, having served the nation for over four decades, he would prefer to retire at the current statutory age, citing physical demands and the need for rest. While he acknowledged that others may have different views, he maintained that the current retirement age was appropriate and allowed for the infusion of new energy into the Judiciary.

Partisanship of the Composition of the Supreme Court

Responding to concerns over the perceived partisanship of the Supreme Court's composition, the nominee rejected the notion that judicial decisions are influenced by political considerations. He attributed such perceptions to a lack of public understanding of the judicial decision-making process. He clarified that judges are bound by their judicial oath, which commits them to uphold the Constitution and administer justice impartially. The nominee insisted that all judicial decisions are based on the facts and circumstances of each case, and not on political affiliations, and affirmed the independence and integrity of the Bench.

Public Disclosure of Assets by Judges

The nominee acknowledged that judges are required to periodically declare their assets, emphasising the importance of transparency in maintaining public trust. He confirmed that he had duly fulfilled this obligation by declaring his assets before being transferred to Accra in November 2024. The nominee expressed his support for the practice of public asset disclosure within the Judiciary, stressing that it aligns with the core principles of accountability and integrity essential to the administration of justice.

Balancing Cultural Norms with International Regulations (LGBTQ+)

The nominee addressed the challenge of reconciling local cultural norms with international human rights obligations, particularly in matters relating to LGBTQ+ rights. He referenced existing Supreme Court decisions on such issues, stating that these rulings often reflect societal values and cultural attitudes prevalent in Ghana. The nominee cautioned that this balance must be approached with careful consideration, ensuring that both cultural context and universal rights standards are respected in a manner that is consistent with Ghana's constitutional commitments and international treaties.

Achieving Gender Equity in The Judiciary

The nominee strongly emphasised the need to achieve gender equity within the

Judiciary, describing it as a critical national issue that requires deliberate institutional commitment. While acknowledging that progress has been made, he observed that greater effort is required to ensure that women are not only represented, but are also given equal opportunity to rise based on competence and merit. He cautioned against tokenism, stating that appointments to the bench should not be based merely on gender representation, but also on the requisite professional qualification and performance. The nominee pledged to support initiatives that promote women's advancement and build gender equity in the judicial system.

Efforts to Empower the Youth to Pursue Legal Education

The nominee informed the Committee of his active involvement in mentoring youth in the Upper West Region, particularly those with aspirations in legal education. He cited his personal contributions in providing financial support, academic materials, and books to students, as part of efforts to empower the next generation of legal professionals. The nominee reaffirmed his commitment to the development of legal education, noting that the future of the profession depends on the cultivation of talented and dedicated young minds.

Key Principles on Compensation of Victims

On the matter of compensation for victims of miscarriages of justice, the nominee stated that the Supreme Court exercises discretion in determining such

awards based on the facts and circumstances of each case. He emphasised that factors such as the duration and impact of wrongful incarceration, the personal experience of the victim, and the broader context must all be taken into account. The nominee suggested that the introduction of clear legislative guidelines could help ensure consistency and fairness in the process of awarding compensation, thereby reinforcing public confidence in the justice system.

Establishment of an Independent Judicial Commission

When asked whether he would support the creation of an Independent Judicial Commission to oversee the appointment of judges, the nominee expressed reservations. He questioned the composition of such a body and whether it would indeed be free from executive influence. He pointed out that the current constitutional arrangement, which includes consultation with the Judicial Council, Council of State, and Parliamentary vetting, already offers substantive checks and balances. The nominee concluded that unless the Constitution is amended, any new proposals should be routed through the Constitutional Review Commission, and in the meantime, the status quo should be respected.

Inadequate Number of Judges in the Northern Parts Of Ghana

On the issue of the limited number of courts and judges in the northern parts of Ghana, the nominee acknowledged that

many rural and underserved areas continue to suffer from a shortage of judicial personnel. He attributed this to the perception among some judges that being posted to remote locations may hinder their career growth and exposure. According to the nominee, legal practice in such regions tends to be less active, with fewer lawyers and cases, thereby limiting intellectual engagement and professional advancement. He further observed that judges starting their careers in such low-volume courts may face difficulties in adapting when eventually transferred to high-demand jurisdictions such as urban centres, where the caseload and legal complexity are substantially higher.

The Re-Introduction of the Public Tribunal System

On the proposal to reintroduce public tribunals, the nominee explained that the inclusion of regional tribunals in the 1992 Constitution was intentional and grounded in the desire to ensure swift and targeted justice, particularly in cases of public interest. According to him, the establishment of such tribunals was originally designed to deal effectively with corruption and corruption-related offences, especially during the PNDC era, when such crimes posed significant threats to public confidence and the governance structure of the State.

Capping of the Number of Justices of the Supreme Court

When asked about his views on whether there should be a cap on the number of Justices of the Supreme

Court, the nominee expressed a firm position against such a move. He stated that the volume and nature of work undertaken by the Supreme Court, including its constitutional, appellate, and supervisory functions, require adequate human resources. He warned that imposing a rigid numerical limit could hinder the Court's ability to discharge its constitutional mandate effectively and efficiently.

Tagging of the Judiciary

On the matter of political tagging and the public perception of the Judiciary, the nominee expressed concern about the increasing tendency of some individuals to label judges along partisan lines. He attributed this phenomenon to ignorance and a lack of understanding of the Judiciary's institutional role, decision-making procedures, and its independence from political influence.

Addressing Judicial Independence and the Appointment of Supreme Court Justices

When questioned on whether the appointment of Supreme Court Justices by the Executive compromises the independence of the Judiciary, the nominee firmly dismissed such concerns. He reaffirmed his commitment to upholding the Constitution and the principles of justice, indicating that every judge takes a judicial oath to act impartially and fairly.

The nominee emphasised that allegiance is not to the appointing authority but to the Constitution and the

rule of law. He clarified that appointment by a particular administration does not translate into judicial bias, and decisions must be based on evidence, facts, and the law.

He explained that Supreme Court decisions are made through panel deliberations, and a unanimous decision does not signify political alignment, but rather legal consensus. He also noted the multiple layers of accountability in the current appointment process, including advice from the Judicial Council, consultation with the Council of State, and Parliamentary vetting.

While defending the existing system, the nominee expressed openness to a constitutional review and acknowledged discussions around the establishment of an Independent Judicial Appointments Commission. However, he cautioned that the composition and appointment procedure of such a body would also require scrutiny to avoid new forms of executive control.

In his recommendations to the Constitutional Review Committee, he proposed the standardisation of the removal procedure for all superior court judges, aligning it with that of the Chief Justice, and a review of the constitutional requirement for the President to appoint the majority of Ministers from Parliament.

Provision Regarding the Removal of Superior Court Judges

When asked about the adequacy of the current removal provisions for superior

court judges, the nominee acknowledged the protections under Article 127(3) of the Constitution but suggested that improvements could enhance fairness and transparency. He noted that judges can only be removed for misbehaviour, incompetence, or infirmity of body or mind.

He specifically recommended aligning the removal process for Supreme Court justices, Court of Appeal judges, and regional tribunal chairpersons with that of the Chief Justice, which involves broader institutional oversight. This, he asserted, would enhance public confidence and protect judges from external pressure.

The nominee further stated that while the current system has not been abused, any proposal to clarify or strengthen these provisions through a constitutional review process is welcome. He encouraged that such reforms be subjected to public scrutiny, parliamentary debate, or a national referendum, as constitutionally required.

Protection of the Rule of Law: Articles 127 And 179(4) of the 1992

Constitution

On the issue of protecting the Rule of Law, the nominee highlighted Articles 127 and 179(4) as crucial constitutional safeguards. He reiterated that a strong, independent, and well-resourced judiciary is indispensable to upholding constitutional governance and ensuring accountability under the law.

Financial Autonomy of The Judiciary – Article 179(4)

Expounding further, the nominee emphasised that the financial autonomy of the Judiciary, as enshrined in Article 179(4), must be respected. He noted that this provision mandates the Chief Justice to submit the Judiciary's annual estimates directly to the President for inclusion in the national budget.

He expressed concern that in practice, this process is sometimes diluted or modified during budgetary negotiations, which undermines the independence and functionality of the courts. The nominee advocated for full and faithful implementation of Article 179(4) and insisted that the Judiciary's budget estimates should not be arbitrarily revised without consultation.

He concluded by emphasising that timely and adequate resource allocation is essential for the Judiciary to operate effectively, particularly in rural and underprivileged areas, to guarantee access to justice for all Ghanaians.

Decision Making at the Supreme Court

During the vetting session, the nominee, Justice Gbiel Simon Suurbaareh, was asked about how decisions are made at the Supreme Court and whether individual Justices have the opportunity to influence or make suggestions during deliberations.

In his response, the nominee clarified that the Supreme Court operates as a

panel, and decisions are not made unilaterally by any single judge. He explained that each Justice on the panel is expected to independently assess the case, apply the law, and contribute meaningfully to the final judgment.

He stated that Justices are free to express their opinions, raise questions, or make suggestions regarding the interpretation of the law, legal precedents, or how a case should be resolved. These contributions are made during the Court's internal discussions and conferences. If consensus is reached among the panel, a unanimous decision is rendered. In cases of disagreement, dissenting or concurring opinions are issued, which also form part of the Court's jurisprudence.

He emphasised that this exchange of ideas, legal reasoning, and differing perspectives is essential to the Court's decision-making process. This collaborative approach, he noted, enhances the quality and depth of the Court's rulings and ensures that decisions are grounded in sound legal reasoning, not partisan or personal bias.

Justice Suurbaareh also reaffirmed that all suggestions and opinions within the Supreme Court must be guided by the Constitution, the law, and the Judicial Oath, and not be influenced by external or political considerations.

Clarification of Employment History (2000–2004): Circuit Court and Circuit Tribunal

The nominee was asked to clarify a point in his Curriculum Vitae (CV) concerning his service between 2000 and 2004, where he was listed as having

served as both a Circuit Court Judge and a member of the Circuit Tribunal. This raised concerns regarding potential overlap or confusion between the two roles.

In response, the nominee clarified that at the time, the Circuit Tribunals were part of the regular court structure, fully integrated under the Judiciary. He explained that the same judges often performed both functions depending on postings and judicial assignments. Therefore, his dual listing was not indicative of two separate appointments but rather reflected the structural arrangement of the courts during that period.

He emphasised that there was no contradiction or misrepresentation in the CV and that his work involved handling both tribunal-related and regular circuit court matters. The nominee reassured the Committee that his career history was verifiable and consistent with the judicial framework of Ghana at the time, adding that he was prepared to provide supporting documentation if necessary.

Justice Gbiel Simon Suurbaareh's Most Difficult Judicial Decision

When asked to reflect on the most difficult decision he had made during his judicial career, the nominee cited a particularly complex land litigation case.

He described a case that came before him on appeal, which had originally been adjudicated in 1984 and resurfaced in 2022. The case spanned six volumes, with extensive documentation and

numerous maps, some of which were large and difficult to interpret. He recalled, “I needed half of my table just to spread the maps out. Sometimes, I even had to use a magnifying glass to read them.”

Justice Suurbaareh emphasised that the case was especially challenging due to its volume, technical nature, and the need for precise interpretation of geographical boundaries, historical claims, and overlapping evidence.

Despite its complexity, he stated that he thoroughly reviewed all documents, applied the relevant legal principles, and arrived at a judgment guided by the facts and the law. While the case stood out in terms of difficulty, he noted that every case requires thorough preparation, and that the key to good judgment lies in study, objectivity, and reasoned application of the law.

He also shared that, when necessary, he consults academic resources, fellow judges, and may assign legal research to students or lawyers to ensure his judgments are well-informed.

Citizenship in Ghana

The nominee was asked about the definition of citizenship in Ghana, especially in light of recent controversies surrounding the use of birth certificates as proof of citizenship. The question addressed practical concerns, such as individuals being denied recognition as Ghanaians despite being born in Ghana, and the policy changes that occurred

around the 2020 voter registration exercise.

In response, Justice Suurbaareh deferred to the authority of the Supreme Court, emphasising that judicial precedent and constitutional interpretation by the Supreme Court are binding and must be respected by all state institutions and the public.

Although he did not elaborate on personal views concerning the policy implications or societal impacts, his answer reaffirmed his commitment to the rule of law, constitutionalism, and the finality of Supreme Court decisions, unless overturned through the appropriate legal procedures.

Nominee's View on the Activeness of the Regional Tribunals

Justice Suurbaareh was asked to share his opinion on the status and potential revival of Regional Tribunals, which were established under the 1992 Constitution but have become inactive in recent years.

In his response, the nominee affirmed that the inclusion of Regional Tribunals in the Constitution was intentional, based on their historical effectiveness. He noted that during the PNDC era, the predecessor Public Tribunals achieved significant success in handling corruption-related cases and other serious crimes efficiently.

He explained that Regional Tribunals were designed to deal with specific categories of offences, particularly:

Corruption-related offences; Narcotic drug cases; and other serious criminal matters affecting the state.

He emphasised that reactivating these tribunals could help expedite justice delivery, particularly for serious crimes, since such tribunals would focus exclusively on criminal matters, unlike the regular courts which handle a mix of civil and criminal cases.

In conclusion, the nominee expressed support for the operationalisation of the Regional Tribunals, stating that it would strengthen the judicial system and align with the constitutional vision of a specialised and responsive court structure.

Capping the Number of Supreme Court Judges

The nominee was asked whether Ghana should consider placing a constitutional cap on the number of Supreme Court Justices, as a way of managing public perceptions about excessive appointments and to preserve institutional consistency.

In response, Justice Suurbaareh explained that the increasing volume and complexity of cases before the Supreme Court require flexibility in judicial appointments. He stated that the current constitutional arrangement, which allows the appointing authority (the President), in consultation with the Judicial Council and with Parliament's approval, to appoint as many Justices as are necessary, is practical and responsive.

He expressed confidence that this discretion would be exercised responsibly and that the system provides adequate checks to prevent abuse. He cautioned that imposing a rigid numerical limit might impair the Court's effectiveness, particularly as demand for judicial services evolves over time.

View on Parliamentary Quorum and Voting

Justice Gbiel Simon Suurbaareh was questioned about the interpretation of Article 104(1) of Ghana's 1992 Constitution, which outlines the quorum and voting requirements for decision-making in Parliament. The question arose within the context of recent constitutional debates, particularly Justice *Abdulai v. the Attorney-General*, which examined how quorum should be determined in legislative voting.

The relevant provision, Article 104(1), states:

Except as otherwise provided in this Constitution, matters in Parliament shall be determined by the votes of the majority of members present and voting, with at least half of all the members of Parliament present.

In response, the nominee explained that:

The Constitution is clear, and the issue of quorum should be determined based on the number of parliamentarians and what the law provides as the majority of those present.

He refrained from offering personal interpretations of the recent Supreme Court ruling in the Abdulai case, noting that the judgment had already settled the legal position. While he confirmed reading the case, he indicated he could not comment in detail without refreshing his memory on its specifics. He maintained that it would be inappropriate to express personal views on a binding Supreme Court decision in such a context.

Justice Suurbaareh reaffirmed that decisions in Parliament must be guided by the letter of the Constitution and that quorum requirements should always be understood within the framework of constitutional law, not political convenience.

Public Perception on Decisions of the Supreme Court

The nominee was asked about public perceptions surrounding the decisions of the Supreme Court, particularly the notion of a so-called “Unanimous FC” or alleged partisan alignments such as an “NPP Bench” or “NDC Bench.”

In his response, the nominee firmly rejected these characterisations, asserting that such perceptions stem from a misunderstanding of how the Court functions. He clarified that Supreme Court decisions are based on the facts and legal issues of each case, and that Justices are bound by their judicial oath to act independently, impartially, and in accordance with the Constitution. He stated:

“There is no Unanimous FC, no NPP or NDC Bench, a judge is bound by his judicial oath and his allegiance is to the law.”

Justice Suurbaareh explained that unanimity in some Supreme Court rulings simply reflects a shared legal interpretation among the panel, not political collusion. He pointed out that all judges on a panel review cases independently, engage in legal discussions, and arrive at decisions—sometimes unanimously, sometimes by majority.

He further mentioned that decisions of the Supreme Court are not final because they are infallible, but rather, they are infallible because they are final, emphasising that judgments may be reviewed in exceptional cases if necessary.

In conclusion, Justice Suurbaareh reaffirmed that the independence and integrity of the Judiciary remain intact, and that Justices do not take decisions based on political influence, but based on the law and their interpretation of the Constitution.

Constitutionality of the Distribution of the MPs' Common Fund

The nominee was asked to provide his legal opinion on whether the current practice of allocating portions of the District Assemblies Common Fund (DACF) directly to Members of Parliament for development initiatives in their constituencies is constitutional. This question was framed within the

context of Article 252(2) and Article 253 of the 1992 Constitution.

Article 252(2) states:

Parliament shall make provision for the allocation of not less than five percent of the total revenues of Ghana to the District Assemblies for development, and the amount shall be paid into the District Assemblies Common Fund in quarterly instalments.

Article 253 adds:

Monies accruing to the District Assemblies in the Common Fund shall be distributed among all the District Assemblies on the basis of a formula approved by Parliament.

In response, Justice Suurbaareh respectfully declined to provide a definitive legal opinion on the matter, stating that he had not had the opportunity to study the constitutional provisions and the practical implications of the current distribution method in sufficient detail. He said: “I have never had any opportunity to look at it and I cannot offer any opinion sitting here now.”

This response reflects his judicial restraint, a principle that discourages judges—especially those being vetted for higher office—from making prejudicial comments or binding interpretations on matters that may later come before the Supreme Court.

Tax Clearance

Justice Gbiel Simon Suurbaareh was extensively questioned regarding the issuance and authenticity of his Tax Clearance Certificate, a document required for all public office nominees.

The Committee sought to verify whether: the nominee personally handled his tax computation and submission; he had signed the tax declaration documents submitted to the Ghana Revenue Authority (GRA); or the process complied with legal and administrative procedures.

Justice Suurbaareh explained that, upon being requested to submit a Tax Clearance Certificate, he contacted the Human Resource Department of the Judicial Service and was directed to an officer who assisted him. He stated that he had no private business income aside from his salary as a judge, and thus relied on the Judicial Service’s internal accounts unit to handle the tax computations.

Upon reviewing the certificate during the hearing, he noted that there was no column for his signature on the document submitted, implying that he may not have been required to sign it at all.

Some Committee Members raised procedural concerns, noting that typically, individuals are expected to personally sign tax declaration documents before submission to the GRA. Others, however, defended the process, stating that in practice, the

accounts department often handles tax filings for public officers with no other sources of income, and such arrangements are standard administrative practice.

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Justice Suurbaareh expressed his willingness to follow up if the Committee required further clarification, though he could not recall the name of the officer who handled the process for him.

Recommendation

The Committee recommends to the House by Majority Decision the approval of the nomination of JUSTICE GBIEL SIMON SUURBAAREH for appointment as Justice to the Supreme Court. All the National Patriotic Party Members of the Committee (Opposition) voted against the Nominee.

Justice Philip Bright Mensah

(Justice-designate to the Supreme Court)

Background

Justice Philip Bright Mensah is a distinguished Justice of the Court of Appeal of Ghana. He was born on 12th February 1956 in Amosima, a town in the Central Region of Ghana. The nominee is a Christian, married with four children, and is proficient in English and Fante.

His early education commenced at Amosima Methodist Primary School (1960–1966), followed by the Amosima D/A Middle School (1966–1970). He

continued at the Commercial Service Institute in Cape Coast from 1971 to 1974. Justice Mensah later entered the University of Ghana, where he obtained a Diploma in Public Administration (1988–1990), followed by a Bachelor of Laws (LL.B.) (1991–1994). He then proceeded to the Ghana School of Law in 1994 and was called to the Bar in 1996 after earning the Qualifying Certificate in Law (QCL).

In pursuit of academic advancement, he undertook a Master of Laws (LL.M.) degree from the University of Ghana between 2013 and 2015, specialising in Oil and Gas Law. As part of his LL.M. programme, he submitted two significant research papers: *Managing Ghana's Petroleum Resources through the Petroleum Resources Management Act [Act 815] – Seeking to avoid mismanagement and corruption in the Oil and Gas Industry in Ghana*; and *A Case Study of the Exxon Valdez and the BP Deep-Water Horizon Disasters and Lessons for Ghana's Preparedness for a Major Oil Spill*.

Justice Mensah's career in the Judicial Service of Ghana spans several decades and includes the following notable roles: Court Recorder (1975–1977); Clerical Officer (1977–1979); District Court Registrar (1983–1988); High Court Registrar (1991–1996); Regional Administrative Officer, Judicial Service, Western Region, Sekondi (1996–1997); Deputy Chief Registrar, Sekondi High Court (1997); Circuit Court Judge, Dormaa Ahenkro (2002–2004); Circuit Court Judge, Kumasi (2006–2008); Justice of the High Court, Accra (2008–

2015); Justice of the High Court, Sekondi (2015–2019); and subsequently, Justice of the Court of Appeal, Accra and Koforidua with additional High Court duties (2019–present).

In addition to his judicial functions, Justice Mensah serves as the Chief of Amosima and Nyimfahen of the Asebu Traditional Area.

Justice Mensah has actively participated in several conferences and seminars, both local and international. Key engagements include: International Judicial Training Programme on improving judicial education at the Dean Rusk International Law Center, University of Georgia School of Law (Aug–Sept 2002); Seminar on *The Role of the Judiciary in the Application of the Labour Act* in Kumasi (June 2008); Value-Added Tax Seminar for High Court Judges by the Judicial Training Institute (JTI) (May 2009); Sensitisation Programme on Court-Connected Alternative Dispute Resolution (CCADR) (March 2014); Workshop on the Role of Courts and Judges in Arbitration, Abuja, Nigeria (March 2016); Training on Efficient Case Management in Civil and Criminal Cases, organised by JTI and NITA (March 2019); Bench, Bar and Faculty Conference, Labadi Beach Hotel, Accra (July 2019)

Further, Justice Mensah has contributed as participant, facilitator, or chair in the following: Two-Day E-Justice and Digitalisation Workshop for selected superior court judges (March 2021); Workshop on Ghana Tax Laws

for selected judges (July 2021); Resource Person at a training workshop for Chiefs and Staff of Northern Region House of Chiefs on the Chieftaincy Act, 2008 (Act 759) (August 2023); Chaired a week-long Moot Court session on Maritime Crimes at Burma Camp, Accra (May 2024); and a One-Day Training for Registrars and Court Clerks of the Court of Appeal on effective judicial support (October 2024)

Justice Mensah's excellence has been recognised through awards such as the John Mensah Sarbah Prize for being the Best Graduating Student in both Part I and Part II of the Ghana Bar Examinations in 1996.

His contributions to judicial associations include Regional Secretary, Judicial Service Staff Association of Ghana (JUSAG) (1983–1988), and Assistant General Secretary, Association of Magistrates and Judges of Ghana (AMJG)

He also served as a Member of the E-Judgments Committee, which publishes judgments of Ghana's superior courts.

Justice Mensah was a Resource Person at a GIABA international conference in Cotonou, Benin, in 2020, where he delivered a paper on *Prosecuting Money Laundering/Economic Crimes in Ghana*. He has also been actively involved in judicial training programmes on topics including international organised crime, cybercrime, and money laundering.

In military justice, he served as Judge Advocate in a Court Martial, Burma

Camp, Accra (September 2013), and Court Martial, Air Force Station, Takoradi (April 2019). From June 2023 to January 2025, Justice Mensah was Ghana's Judiciary's Representative on the Advisory Board of the Ministry of Chieftaincy and Religious Affairs.

He brings to the Supreme Court a rich array of skills in critical thinking, legal expertise, research, problem-solving, collaborative work, and technical proficiency, all honed under intense professional environments.

His interests include legal research, gospel music, and backyard gardening, and he remains committed to continuous learning and professional growth.

Response to Questions

Judicial threat

In response to a question on what he considered to be a threat to the Judiciary, the nominee stated that he was not privy to any specific developments or issues which could pose danger or serve as a threat to the independence or integrity of the Judiciary.

Sufficient power in protecting judicial independence

The Committee enquired whether the Judicial Council, as established under Article 153 of the Constitution, possesses sufficient power to protect judicial independence. The nominee clarified that Article 125 of the Constitution is the primary safeguard, stressing that no person or authority,

including the President or Chief Justice, has the mandate to influence a judge's decision-making.

However, he emphasised that administrative matters, including infrastructure and budgetary allocations, do require collaboration with the Executive, since the funding of the Judiciary is reliant on government allocations.

Optimum number of Supreme Court Judges

When asked whether the current number of Justices of the Supreme Court was adequate in view of its increasing caseload and wide jurisdiction, the nominee responded that the Supreme Court's broad jurisdiction—covering original, appellate, constitutional, and supervisory matters—necessitates an expansion of the bench. He pointed out that, unlike the Nigerian Supreme Court, the Ghanaian Supreme Court entertains a wider range of cases. He explained that panels typically consist of five (5) Justices, with review panels requiring seven (7) or more. Therefore, to allow for efficient rotation and timely adjudication, he proposed an optimum number of twenty (20) Justices. This would make it possible to empanel at least four panels simultaneously.

The nominee affirmed that the Constitution does not impose a ceiling on the number of Supreme Court Justices, only a minimum, and as such, no constitutional amendment would be required for an expansion—only administrative and budgetary planning.

Premium placed on judicial service

Responding to whether sufficient premium is placed on the Judicial Service, particularly in the area of training and capacity building, the nominee stated that in his view, not enough investment has been made in the training and welfare of Judicial Service staff, especially registrars, whose role is critical to justice delivery.

Citing his own experience rising from court recorder to the appellate bench, he described mentorship and opportunity as key drivers of his professional growth. He called for enhanced training opportunities for clerks, registrars, and administrative staff, in addition to judges. He acknowledged the Judicial Training Institute (JTI) and called for it to be better resourced.

He also advocated for improved working conditions, including court infrastructure, judicial accommodation, and security, especially in rural and underserved areas.

Gun ownership in Ghana

The nominee was asked to share his personal view on gun ownership in Ghana. He affirmed that the law permits gun ownership, but underscored that it must be strictly regulated.

He maintained that lawful authorisation and registration are required before any individual can legally possess a firearm, and that unregistered possession is a violation of the law. The nominee stressed the need

for rigorous enforcement to prevent misuse and to safeguard public safety.

Doctrine of separation of powers

Asked to explain his understanding of the doctrine of separation of powers, particularly in the context of judicial involvement in parliamentary matters, the nominee described the doctrine as a political principle that mandates independent yet interdependent functioning of the Executive, Legislature, and Judiciary.

He explained that each branch has its distinct role, and the doctrine is designed to avoid domination by any one arm. Addressing a follow-up on judicial intervention in parliamentary processes, he clarified that the Judiciary only intervenes when a matter involves constitutional interpretation.

He argued that such action is not judicial overreach but rather the exercise of a constitutional mandate, and that such interventions uphold accountability and constitutional checks in Ghana's democracy.

Recommending Judicial Reforms

When asked whether he had recommendations for reform in Ghana's judicial system, the nominee proposed several substantial reforms. He recommended the abolition of the Jury System, labelling it outmoded and ineffective. He cited examples where untrained jurors delivered verdicts inconsistent with the evidence and judicial summation. In place of juries, he

suggested a three-judge panel system for serious offences, similar to practice in other jurisdictions.

The nominee further recommended the curbing of frivolous interlocutory appeals, which he claimed have been used tactically by defence lawyers to stall trials, sometimes even before the prosecution closes its case.

He called for the full digitisation of court processes to address delays, reduce corruption risks, and improve transparency, citing Tanzania and Kenya as examples where digital reforms have significantly enhanced judicial efficiency.

Additionally, he urged for a review of obsolete laws, especially the Criminal Procedure Code of 1960, and advocated for strengthening the Career Magistrate System by sending magistrates to law school and supporting their advancement to enhance justice delivery in rural areas.

Curbing the menace of galamsey

With regard to the role he would play, if appointed as a Justice of the Supreme Court, in curbing the menace of illegal mining (galamsey), the nominee acknowledged the devastating environmental consequences, particularly the degradation of water bodies and forest reserves. He noted that although existing laws provide for stiff penalties, the core issue lies in enforcement.

He advocated for a stronger partnership between the Judiciary and

law enforcement agencies, stressing the need for swift and effective prosecution of offenders. Notably, he raised concerns about foreign nationals, especially Chinese illegal miners, and recommended that judges be trained in basic Chinese to improve case handling involving such foreign offenders.

Professional obstacles as a judge

Responding to a reflective question on the challenges in his judicial journey, the nominee recounted a motivational account of his career progression—from court recorder to registrar, and ultimately to a Supreme Court nominee. He stressed that the path to becoming a judge requires sacrifice, hard work, competence, and integrity.

He shared how he was once bonded to the Judicial Service after studying public administration, and how he encountered institutional resistance when seeking to pursue legal education. Through the intervention of the late Justice Agyapong, he was able to commence his legal training. He encouraged a system where promotion is based on merit, not on connections, asserting that hard work, humility, and dedication will always create opportunities.

Extending retirement age to 75

On whether the retirement age for Supreme Court judges should be extended from 70 to 75 years, the nominee firmly opposed such an extension. He acknowledged that while some jurisdictions such as the United States permit lifetime appointments, the

judicial workload in Ghana renders such a policy unwise.

He described the role of a Supreme Court judge as intensely stressful, stating, “Unless you want to be a lazy judge, this job is extremely stressful,” and therefore advocated for the maintenance of the current 70-year limit.

Review of Terms for President

In response to whether Article 66 of the Constitution, which limits the President to two terms, should be reviewed or amended, the nominee expressed unambiguous support for the status quo. He stated that the provision is clear and adequate, stipulating a four-year term with the possibility of only one re-election. He emphasised that there was no ambiguity or deficiency, and therefore no justification for any constitutional amendment in this regard.

Age and likely short tenure

Given the nominee's advanced age and the mandatory retirement age, the Committee raised concerns about the short tenure he would serve on the bench. In response, the nominee acknowledged the short duration, but emphasised the importance of experience, readiness, and the impact of service. He declared that even if given one year, he would contribute meaningfully from day one, citing his extensive judicial career as a foundation.

He concluded that it is not the length of service, but the quality and effectiveness that matters, and age

should not be a barrier to offering one's best.

Capping of Supreme Court Justices

The nominee was asked for his opinion on whether the number of Supreme Court Justices should be capped. He noted that the 1992 Constitution does not impose a limit, but rather provides a minimum number.

He argued that considering the scope and jurisdiction of Ghana's Supreme Court—especially when compared to Nigeria's Supreme Court under the 1999 Constitution—having twenty (20) Justices would not be excessive. He emphasised that Ghana's Supreme Court handles constitutional interpretation, among other matters, and thus requires more capacity.

Judicial reforms

On the issue of judicial reforms, the nominee proposed a comprehensive overhaul of the current system. He praised the e-Justice system and called for its sustenance and expansion. He recommended the introduction of time limits for Appeal Court cases to prevent undue delays. The nominee noted that Ghana's current judicial system is colonial in origin and requires modernisation, drawing on examples from India and South Africa.

His suggestions included reviewing outdated laws, streamlining processes, and enhancing public confidence in the Judiciary.

Ghana School of Law

When asked about the challenges faced by law students in gaining admission to the Ghana School of Law, the nominee recognised these challenges and called for reforms to make legal education more accessible. He noted that while student and faculty numbers have increased, infrastructure at Makola and Kumasi campuses has not kept pace. He recommended that the General Legal Council consider temporary admission pathways to clear the backlog. He also called for a national dialogue among academia and stakeholders to find a lasting solution.

Judicial independence

Asked about his interpretation of Article 125 of the Constitution, which guarantees the independence of the Judiciary, the nominee affirmed that no authority, including the President, may interfere with judicial decisions.

However, he acknowledged that in practical terms, the Judiciary remains dependent on the Executive for salaries, accommodation, and logistics. He was clear, however, that in matters of decision-making and adjudication, the Judiciary operates free from interference and remains committed to the rule of law.

Lawyers' presence across the country

Addressing the issue of the absence of lawyers and judges in certain parts of the country, the nominee emphasised the urgent need for improved conditions of service to attract young and newly

qualified legal professionals to rural and underserved areas.

He proposed the adoption of deliberate policy interventions to encourage legal professionals to accept postings to lower courts in remote communities. In his view, this would help to bridge the justice delivery gap and offer valuable grassroots experience to lawyers and judges, fostering career progression from the foundational levels of the Judiciary.

Life lessons and inspiration for youth from disadvantaged

Backgrounds

When asked to reflect on life lessons from his journey in public service, particularly as it relates to youth from disadvantaged backgrounds, the nominee stressed the importance of hard work, strategic planning, and perseverance.

He recounted his own path, which began as a recorder, highlighting that his career trajectory was shaped through deliberate planning and inspiration from both judges and legal practitioners. The nominee encouraged young people—especially those from low-income families—to remain resolute and to define their own destiny. He maintained that one's origin must never be seen as a limitation, and that discipline, ambition, and self-determination are key to social mobility and professional fulfilment.

Judicial philosophy and transformative adjudication

The nominee was asked to explain his understanding of judicial activism and how it fits within Ghana's constitutional

framework. In his response, he asserted that Ghana's Constitution is a living document, capable of adaptation to meet evolving societal challenges.

He cited judicial philosophies from Canada and Australia, where constitutions are interpreted as organic instruments, akin to a growing tree. He pledged a commitment to pragmatic adjudication, affirming that he is not a "timorous soul" and would interpret the Constitution boldly and reasonably, where the spirit and purpose of the law require such interpretation in the public interest.

Nevertheless, he acknowledged that judicial creativity must remain legally grounded, and that all decisions must be reasonable, sound, and in alignment with constitutional principles.

Balancing traditional and judicial roles

In response to concerns regarding his dual role as a gazetted chief and a judge, the nominee assured the Committee that he had taken deliberate steps to ensure that neither role undermines the other. He described both his traditional leadership and judicial service as honourable callings, and emphasised that he manages his responsibilities with utmost integrity.

He reaffirmed his commitment to judicial independence, ensuring that there is no conflict of interest, nor perception of bias, arising from his parallel roles.

Mentorship of Young Lawyers

Responding to whether he mentors young legal practitioners, the nominee confirmed his consistent support for junior lawyers, especially those who appear before him in court. He recalled that even the Ranking Member of the Committee had once appeared before him as a young lawyer, and he has always fostered a courtroom atmosphere that encourages growth, confidence, and professional development.

He highlighted that some young lawyers are often intimidated by court proceedings, and harsh treatment by judges may discourage them. Hence, he deliberately fosters constructive engagement, patience, and professional guidance to help shape the next generation of the Bar.

Judicial activism and constitutional interpretation

On the question of judicial activism, the nominee reiterated that although judges do not make laws, they are constitutionally mandated to interpret the law in a manner that ensures justice, particularly where legal ambiguities exist.

He cited the landmark case of *Mensah v. Mensah*, where the Court applied equitable principles in the absence of legislation on spousal property settlements. According to the nominee, such decisions are examples of judicial responsibility, not overreach.

He declared his readiness to adopt a purposive and progressive approach to constitutional interpretation, particularly when such interpretation advances human rights, equity, or ensures that the law remains responsive to contemporary society.

Reference to *Tuffuor v. Attorney-General* and living constitutionalism

In further elaboration on constitutional interpretation, the nominee referenced the celebrated case of *Tuffuor v. Attorney-General*, where the Supreme Court affirmed the Constitution as a living organism. He associated himself with the philosophy of living constitutionalism, emphasising that judges must give effect to the spirit and intent of the Constitution in light of present-day challenges.

The nominee stressed that such an interpretative approach advances democratic governance, promotes justice, and ensures the rule of law remains dynamic and effective.

Understanding of judicial activism

The nominee was asked to clarify his understanding of judicial activism within the framework of Ghana's constitutional democracy, especially in cases where Parliament has failed to legislate as mandated by the Constitution. In his response, the nominee defined judicial activism as the courageous and principled exercise of judicial authority to interpret the law and the Constitution in a manner that ensures justice,

particularly where there exists a legislative vacuum.

He referenced Article 22 of the 1992 Constitution, which required Parliament to enact laws on spousal property rights within six months of the Constitution's adoption—a mandate that remained unfulfilled. He cited the decision in *Mensah v. Mensah*, where the Supreme Court applied equitable principles to bridge the legislative gap, as a classic case of judicial activism.

He further remarked that in instances where the law is silent, ambiguous, or inadequate, the Judiciary must “grease the wheels” of justice to ensure the system remains functional. However, he emphasised that such activism must be anchored in constitutional principles and used with restraint where necessary.

View on Article 132 – supervisory jurisdiction of the Supreme Court

The nominee was asked to share his views on the application of Article 132, which grants the Supreme Court supervisory jurisdiction over all lower courts, particularly in relation to certiorari, mandamus, and prohibition. He acknowledged that some legal practitioners resort to the Supreme Court under Article 132 as a faster route than the appellate system. He warned, however, that such remedies must be applied with great caution, especially when directed at superior courts of record.

The nominee emphasised that judicial review is not a substitute for appeal, and

such remedies are reserved for exceptional circumstances, such as lack of jurisdiction or manifest error on the face of the record. He explained that differences in panel dispositions should not be misconstrued as inconsistency, but rather as expressions of judicial prudence. Each application, he maintained, must be assessed on its merits, guided by constitutional safeguards.

Judicial mandate and judicial constraint

The nominee was questioned on why the Judiciary appears to act with restraint in the exercise of its constitutional interpretative authority under Articles 2 and 130.

He rejected the perception that the Judiciary is unduly cautious. Rather, he asserted that the courts exhibit judicial discipline, applying the law deliberately and responsibly. He cited *J.H. Mensah v. Attorney-General* as an example where the Supreme Court interpreted the Constitution boldly, declaring that ministers from a prior administration could not continue in office without fresh parliamentary approval.

The nominee affirmed that judicial constraint is not a failure to act, but a principled adherence to the boundaries of judicial power. He emphasised the need for measured intervention, institutional humility, and constitutional fidelity.

Judicial leadership and human rights

In response to whether the Supreme Court has failed to provide leadership in advancing constitutional justice and human rights, the nominee disagreed with this generalisation.

He noted that the Supreme Court has on many occasions issued landmark rulings that have protected individual rights and promoted good governance. He drew attention to Article 129(3), which permits the Court to depart from previous decisions in exceptional circumstances, thereby demonstrating its flexibility and responsiveness.

He concluded that judicial leadership involves acting principally, contextually, and with constitutional clarity, rather than seeking activism as an end in itself.

Case of Nii Nueh Odonkor v. EOCO

The nominee was questioned on the decision in *Nii Nueh Odonkor v. Executive Director, EOCO*, and whether his interpretation of procedural timelines resulted in denial of fundamental human rights.

He explained that the law at the time required a defreezing application to be made within one year, and though the applicant was abroad and not served, the statute offered no exceptions.

He asserted that equity must follow the law, especially when statutory timelines are clear and unambiguous. The nominee pointed out that the decision was upheld

on appeal, and the Supreme Court declined to intervene, thereby affirming the judicial position. While the outcome may appear harsh, he maintained that judges are bound by the law, not sentiment.

The role of the Supreme Court in shaping democracy

The nominee was asked to reflect on how the Supreme Court should shape Ghana's democracy in the next two decades, especially in the face of constitutional interpretation challenges.

He responded that the Court must act as the guardian of constitutional governance, committed to rule of law, justice, and human dignity. He rejected being labelled as either an "activist" or "restrained" judge, choosing instead to uphold legal soundness and fact-based adjudication. He affirmed that bold interpretation is necessary when required, provided it stays within the judicial mandate. The Court, he said, must remain pragmatic, adaptive, and responsive to Ghana's evolving democratic needs.

Active political engagement by public servants

The nominee was asked to comment on the constitutional restriction on public servants' political activity, particularly Article 94(3)(b) and the case of *Kpogo Adra v. Attorney-General*.

He confirmed that the Supreme Court's decision in *Adra* is binding and upheld the restriction as applying only to the services listed in the Constitution.

While acknowledging concerns over practical inequities, he asserted that any expansion or revision of the law must come via constitutional amendment, not judicial reinterpretation.

He stressed the need for legal clarity, noting that judicial interpretation must be faithful to the text and intent of the Constitution.

Dual nationality and public office

In discussing the issue of dual citizenship and eligibility for public office, the nominee reaffirmed the Supreme Court's position that dual nationals are barred from holding certain strategic offices. He noted that the restriction is grounded in the need for exclusive allegiance and national security considerations.

While recognising the value of diaspora contributions, he stated that reform must be pursued lawfully through constitutional review, not judicial activism. The nominee stressed that Article 17's equality provisions do not override specific allegiance clauses, and any perception of discrimination must be assessed in light of national interest imperatives.

Bail and personal liberty

The nominee was asked to articulate his views on how Article 14(3) of the 1992 Constitution, which guarantees personal liberty, should influence the interpretation and application of bail, especially when conditions imposed are

onerous and burdensome for economically disadvantaged persons.

In response, the nominee acknowledged that personal liberty is a fundamental human right and emphasised that bail must never be treated as a form of punishment prior to conviction. He reiterated that under both the Constitution and Act 30 of the Criminal Procedure Code, the primary consideration in granting bail is whether the accused is likely to appear for trial.

He stressed that judicial discretion in setting bail conditions must be guided by the principles of fairness, equity, and proportionality. The nominee observed that excessive or unreasonably difficult conditions—such as requiring multiple sureties with uncommon qualifications—may amount to constructive denial of bail, and therefore undermine the constitutional right to liberty.

He further noted that case law supports the position that bail must be accessible, and urged that courts consider the financial and social circumstances of the accused in every case. Where conditions prove burdensome, the nominee advised that applicants may seek a variation or review from a higher court.

He concluded by affirming that equal access to justice requires that bail conditions do not discriminate on the basis of economic status, and that the court must remain vigilant in safeguarding the presumption of innocence.

Ensuring equal access to justice

The nominee was further asked to reflect on the systemic challenges within Ghana's bail system, especially regarding how stringent bail conditions may obstruct justice for the poor. In his response, the nominee emphasised that the Judiciary must be conscious of the real-life implications of its decisions. He noted that in many cases, accused persons are not granted bail in practical terms—not because bail is refused, but because the conditions imposed are beyond their means.

He warned that when socioeconomic barriers prevent access to pre-trial liberty, the result is a justice system tilted against the poor, thereby eroding public confidence and the principle of equal protection under the law.

The nominee proposed that judges should apply a contextual and humane lens when assessing bail applications, especially in non-violent offences or where the accused poses no flight risk. He reaffirmed that bail is not meant to be punitive, and pre-trial incarceration must be the exception—not the rule.

He encouraged the strengthening of judicial training on bail and human rights protections, and emphasised the importance of a responsive judicial culture that actively supports the accessibility of justice for all. The nominee concluded that equality before the law must translate into equality in the courtroom, and this includes ensuring that the right to liberty is not dictated by wealth or status, but by

the merits of the case and the demands of justice.

Recommendation

The Committee recommends to the House by Majority Decision the approval of the nomination of JUSTICE PHILIP BRIGHT MENSAH for appointment as Justice to the Supreme Court. All the National Patriotic Party Members of the Committee (Opposition) voted against the Nominee.

Justice Janapare Adzua Bartels-Kodwo (Justice-designate to the Supreme Court)

Background

Her Ladyship Justice Janapare Adzua Bartels-Kodwo was born on 20th November, 1961, in Tamale in the Northern Region, but hails originally from Afeviefie, Peki in the Volta Region of Ghana. Her early education began in September 1966 and extended through to June 1973, during which period she attended several primary and middle schools including E.P. Primary School in Peki and Ho Dome, Myoung Barracks Primary School in Takoradi, South Labadi Experimental School in Accra, and Ola Girls' School in Cape Coast.

She proceeded to Achimota Secondary School in Accra, where she pursued her Ordinary Level Certificate from 1973 to 1978, and subsequently enrolled at St. Monica's Secondary School in Ashanti-Mampong, earning her Advanced Level Certificate between September 1978 and June 1980. From October 1980 to June 1985, she studied at the University of

Cape Coast, where she obtained a Bachelor of Arts degree in English and a Diploma in Education.

Justice Bartels-Kodwo entered the Ghana School of Law in October 1989, and was called to the Bar in June 1993. She later obtained a Master of Laws (LL.M) in Information Technology and Commerce from the University of Southampton in the United Kingdom.

Following her academic pursuits, she undertook national service as a Teaching Assistant in the Department of English at the University of Cape Coast from August 1985 to August 1987. She later served as an English Language and Literature teacher under the Ghana Education Service between September 1987 and December 1994, before assuming the role of Legal Officer with the Value Added Tax (VAT) and Internal Revenue Service Divisions of the Ghana Revenue Authority from March 1995 to October 1997.

Her judicial career commenced in 1997, when she was appointed as a Magistrate, a role she held until 2004, after which she was elevated to Circuit Court Judge and served from 2004 to 2010. She became a High Court Judge in July 2010, serving until December 2019, when she was appointed as a Justice of the Court of Appeal, a position she continues to occupy.

Her leadership qualities were evident from her days as a student, having served as Dining Hall Prefect at St. Monica's Secondary School, Treasurer of the

Student Representative Council at the University of Cape Coast, and later as Slessor Housemistress at Achimota School.

She is an active member of several distinguished professional associations including the Magistrates and Judges Association of Ghana, the Commonwealth Association of Judges and Magistrates, and the International Association of Women Judges (Ghana Chapter).

Justice Bartels-Kodwo has participated in a variety of international conferences and training programmes, focusing on Alternative Dispute Resolution, Commercial Law, and both Civil and Criminal Procedure. She attended the International Association of Women Judges Conference in Zambia (July 2011), Côte d'Ivoire (November 2023), and South Africa (April 2025).

She is married with three children and lists reading and listening to music among her personal interests.

Response to Questions

Gender-equity and social justice

When asked whether the absence of paternity leave for men amounts to discrimination, the nominee acknowledged that while the advancement of women's rights remains essential, there is a valid concern regarding potential discrimination against men in the context of paternal leave. She advocated for a balanced and inclusive approach that recognises the

rights of both genders, without undermining gains made by women. The nominee supported the proposal for legislation establishing paternity leave, highlighting its role in promoting gender equality and shared caregiving responsibilities. She recommended a comprehensive legal framework to include both maternal and paternal leave.

Balancing biological realities with gender equality

In addressing the challenge of biological differences in the pursuit of gender equality, the nominee recognised that childbirth is biologically linked to women. However, she emphasised that postnatal caregiving responsibilities should be shared by both parents. Drawing from personal experience, she asserted that maternal bonding in the early stages is crucial, and mothers should be supported to spend time with their newborns without pressure. Nonetheless, she maintained that shared parenting remains essential to building gender equity in family roles.

International human rights commitments

The nominee affirmed that international human rights obligations should influence judicial interpretation, particularly when they promote good practices like paternity leave. She argued for a legal framework that integrates international standards with local realities, thereby enriching national laws and ensuring alignment with gender equality principles.

Judicial role in dispensing gender justice

On the Judiciary's role in gender justice, the nominee maintained that courts play a critical role in interpreting and enforcing laws that protect all genders. In cases where men are denied paternity leave, she emphasised that such matters should be adjudicated based on evidence and clear legal standards.

State interest in adjudicating cases

Responding to whether she would consider the state's interest as a first principle in adjudication, the nominee underscored the need to consider the broader societal implications of judicial decisions. She reaffirmed that her decisions would be guided by fidelity to the law and available evidence, not by undue deference to the state.

Encouraging young lawyers discouraged by female judges

When asked about how to encourage young lawyers who may be discouraged by the conduct of female judges, the nominee stated unequivocally that she has no history of such behaviour and does not support such attitudes. She committed to maintaining professionalism and fairness in all courtroom interactions.

Democratic legitimacy and the constitutional design of the Council of State

On whether the Council of State enhances or undermines democratic

legitimacy, the nominee opined that its existence does not undermine accountability. She acknowledged that weaknesses in execution may exist, but insisted that such shortcomings should be strengthened through reform, not abolition.

Interface role of the Council of State with the public

Asked whether the Council of State should explain its decisions to the public or institutions like Parliament, the nominee cautioned that while public accountability is important, it is not always feasible for the Council to explain every decision. However, she agreed that in some instances, the Council's actions or inactions could and should be clarified.

Comparative constitutional models

On replacing the Council of State with a second parliamentary chamber, the nominee argued that this was unnecessary. She advocated for strengthening the Council, stating that its role goes beyond being advisory. She believed that current constitutional structures can uphold checks and balances if properly empowered.

LGBTQ rights and constitutional interpretation

Regarding whether LGBTQ rights could be read into Article 33(5) of the Constitution, the nominee declined to offer a direct opinion. While acknowledging previous Supreme Court pronouncements, she refrained from citing specific cases. On whether sexual orientation could be construed as an implied constitutional right, she

emphasised that statutory silence on such matters means they cannot be interpreted as implied rights. She stressed that any recognition must be determined by the courts if cases are brought before them.

Protection of spouses and children in estate matters

In addressing the protection of surviving spouses and children, the nominee asserted that Parliament has fulfilled its mandate by enacting relevant legislation. However, she noted that the Judiciary has a role to play in ensuring that these laws are applied justly and expeditiously. When asked how estate matters could be expedited, she highlighted that such cases are often treated with urgency, especially where the welfare of children is concerned. The nominee commended the establishment of specialised probate courts for improving the efficiency of estate administration. While she acknowledged that cultural practices can sometimes delay justice, she emphasised that the Judiciary generally endeavours to resolve estate disputes promptly, unless the case is highly contentious.

Limiting the jurisdiction of the Supreme Court

When questioned on whether capping some appellate cases at the Court of Appeal would help reduce the burden on the Supreme Court, the nominee answered in the affirmative. She proposed that certain cases, especially those originating from lower courts such as Magistrate Courts, could end at the Court of Appeal. This, she argued, would

allow the Supreme Court to focus more effectively on its original jurisdiction, particularly in constitutional matters.

Effectiveness of legal aid

In relation to the Legal Aid Commission's mandate under Act 977, the nominee acknowledged that while some strides have been made, serious challenges persist, particularly in the areas of funding and the availability of legal professionals. She expressed concern over the Commission's limited national reach and the shortage of lawyers across regional offices. The nominee emphasised that the demand for legal aid far exceeds its current capacity. To improve its effectiveness, she recommended that fresh law graduates be encouraged to undertake national service with the Legal Aid Commission. This, she believed, would help build capacity and potentially attract some graduates to continue working in legal aid after their service.

Politically exposed persons and judicial appointments

On whether the Constitution should be amended to bar politically exposed persons from being appointed to the Judiciary, the nominee responded that such a matter should be decided through national dialogue and broad consensus. She refrained from offering a personal opinion. Addressing perceptions of political influence in judicial promotions, she cited her own career as an example of merit-based advancement,

stressing that her elevation through the ranks was based solely on competence and dedicated service, not politics.

Division of spousal property rights and child support

On the division of spousal property in cases of divorce or death, the nominee noted that in the absence of specific legislation, the courts apply equitable principles based on the facts and merits of each case. Regarding the possibility of introducing a child support regime in Ghana, she clarified that as a Supreme Court nominee, she is not mandated to propose legislation. She emphasised that such a policy would require parliamentary initiative, as it falls within the domain of legislative responsibility.

Separation of powers and judicial intervention

The nominee emphasised the fundamental importance of the separation of powers among the Executive, Legislature, and Judiciary. She noted that although each arm must operate independently, the Judiciary has a constitutional responsibility to intervene when violations occur. Such interventions, she clarified, should not be seen as encroachments on the powers of the other branches, but rather as essential acts to uphold constitutionalism and promote good governance.

Justiciability of the Directive Principles of State Policy

In response to a question on whether the Directive Principles of State Policy under Chapter 6 of the 1992 Constitution are justiciable, the nominee expressed her view that they are indeed enforceable legal standards. She argued that the inclusion of these principles in the Constitution indicates their binding nature. The nominee highlighted that national development aspirations are embedded within these provisions and can be realised progressively through institutions like the National Development Planning Commission.

Judicial training on emerging technologies and trends

The nominee strongly advocated for ongoing judicial training to keep pace with technological advancements. She cited cases involving revenge pornography as instances where the Judiciary had to adapt quickly to new legal challenges. The nominee maintained that continuous training is essential to ensure that judges remain equipped to adjudicate evolving legal matters effectively.

Media freedom and regulation

While acknowledging Ghana's reputation for strong media freedom, the nominee expressed concern over irresponsible journalism, particularly breaches of judicial privacy and court decorum. She stressed the need for responsible reporting and proposed closer collaboration between the Judiciary and media practitioners. She recommended that court reporters be

given regular training, possibly through the Judicial Training Institute, to enhance professional standards.

Gap between age of sexual consent and minimum age of marriage

On the discrepancy between the legal age of sexual consent (16 years) and the minimum age of marriage (18 years), the nominee acknowledged the issue as problematic. She stated that while the law has evolved, bridging this gap will require a multi-pronged approach, including legal reform, cultural sensitisation, and public education, to ensure coherence and better protection of minors.

Nominee's position on replacing the Council of State

The nominee rejected the suggestion to replace the Council of State with a second chamber of Parliament. Instead, she called for strengthening the Council's advisory functions, rather than abolishing it. She noted that enhancing the transparency of the Council's role would improve public trust and governance impact.

Appointment of members of the Council of State

The nominee addressed concerns regarding the President's dominance in appointing Council of State members. She argued that the existing arrangement, which includes regional representatives elected by assemblies, ensures a fair balance of representation. She did not consider the current

composition to pose a threat to the Council's independence, and rejected proposals to adjust the ratio of presidential appointments.

Checks and balances on executive power

When asked whether constitutional checks on the executive are sufficient, the nominee responded affirmatively. She maintained that existing mechanisms—Parliament, the Judiciary, and other oversight institutions—are operating within the limits of the Constitution and do not reveal any significant gaps undermining accountability.

Article 71 office holders and public sector pay

Responding to the question of how Article 71 salary arrangements compare with Ghana's Single Spine Salary Structure, the nominee opposed any amendment to Article 71. Instead, she suggested that the government should focus on improving the conditions of service for non-Article 71 workers, rather than reducing the benefits of Article 71 officeholders. She also opposed any judicial reinterpretation of Article 71, stressing that disparities in remuneration should be corrected by elevating standards for the broader public sector.

Nominee's view on adverse possession and property rights

On the application of the doctrine of adverse possession, the nominee stated

that it does not conflict with Article 20 of the Constitution, which protects the right to property. She clarified that adverse possession arises only when a property owner has been negligent over a prolonged period. She emphasised that the doctrine serves to balance property rights with responsible ownership, and courts assess such claims based on the specific facts and evidence presented.

Constitutional term limit for the President

The nominee reaffirmed her strong support for the presidential term limit enshrined in Article 66 of the 1992 Constitution. She emphasised that the provision is clear, unambiguous, and should be upheld in its current form. The nominee stated that her position on the matter would not change, as the two-term limit is a critical element of democratic governance and leadership renewal.

Small Claims Court

On the establishment of more Small Claims Courts to address the slow pace of case resolution, the nominee expressed the view that the current court infrastructure already accommodates such cases. She did not believe that creating additional Small Claims Courts would necessarily solve the problem of case delays. Rather, she suggested that attention be given to enhancing case management processes and judicial efficiency within existing structures.

Comfortable uniform for lawyers and judges

Responding to a question on whether legal attire—particularly wigs and gowns—is comfortable for judges and lawyers, the nominee indicated that, in her opinion, they do not pose a discomfort. However, she acknowledged that if there is need for a national conversation on the matter, it can be discussed openly.

Provision of gifts and bribes

When asked about judicial integrity in relation to bribery and inducement, the nominee stated that an individual judge's posture and conduct often deter or invite such attempts. She emphasised that judges must be constantly aware of their ethical responsibilities, noting that integrity is non-negotiable and must be preserved at all times. A judge's reputation, she said, should speak for itself and discourage any perception of impropriety.

Recommendations for judicial reforms

The nominee recounted that the Judicial Service she joined 28 years ago has undergone significant transformations, particularly in infrastructure and digitisation. She advocated for the expansion of the e-Justice system beyond Accra, stressing that access to justice should be available in all regions of Ghana. She noted that rolling out comprehensive judicial reforms would require a substantial injection of funds, referencing Kenya as

an example of a country that has invested heavily in e-Justice. She called on the State to “take the bull by the horn” and pursue nationwide reforms.

Reforms

On broader reforms, the nominee called for continuous legal education for judges, beyond the initial training upon appointment. She advocated for the provision of timely and adequate book allowances, given the high cost of law books, and the establishment of well-stocked libraries accessible to all members of the Judicial Service. She stressed that knowledge resources are fundamental to effective adjudication and judicial growth.

E-Justice

Regarding e-Justice, the nominee described it as a holistic system, already familiar to the Judiciary but still underutilised. She proposed a gradual but deliberate expansion in areas such as online filing, virtual evidence-taking, and electronic delivery of rulings. She remarked that Artificial Intelligence (AI) is not yet a top priority for Ghana's judiciary, but digital justice solutions can significantly improve efficiency and accessibility, especially in remote areas. The nominee suggested that weekend virtual sittings could help address challenges such as delays in bail hearings, particularly in criminal matters involving the 48-hour rule.

Congestion at the prisons and inadequate allocation for prisoners

The nominee expressed concern over the congestion in Ghana's prisons and the inadequate allocation for inmate welfare. She recommended the use of non-custodial sentences for minor offences as a strategy to reduce prison overcrowding. Additionally, she proposed the construction of two new prisons—one in the middle belt and another in the northern zone—to support the existing facilities. Such measures, she asserted, would greatly improve living conditions and the effectiveness of corrections.

Recommendation

The Committee recommends to the House by Majority Decision the approval of the nomination of JUSTICE JANAPARE ADZUA BARTELS-KODWO for appointment as Justice to the Supreme Court. All the National Patriotic Party Members of the Committee (Opposition) voted against the Nominee.

Justice Hafisata Amaleboba

(Justice-designate to the Supreme Court)

Background

Her Ladyship, Mrs Justice Hafisata Amaleboba, was born on 7th June 1973 in Accra, Greater Accra Region, and hails from Wa, in the Upper West Region. She commenced her early education at Jack and Jill International School (1976–1978), followed by Kotoka Primary School at Burma Camp,

Accra (1978–1984). She proceeded to St. Rose's Secondary School in Akwatia, Eastern Region, where she earned both her Ordinary and Advanced Level Certificates between 1984 and 1991.

Justice Amaleboba obtained her Bachelor of Laws (LL.B.) from the University of Ghana (1992–1996), and subsequently pursued professional legal training at the Ghana School of Law, graduating in 1998. She is currently enrolled in a Master of Laws (LL.M.) programme in Data Protection and Intellectual Property Law at the University of Law, London (Online Campus), which she began in February 2024.

Her Ladyship completed her National Service at Kamgbunli Junior High School, Axim District (1991–1992), and later at the University of Ghana (1998–1999). Her legal career spans over two decades, with notable positions at: Justking and Associates as Intern, Pupil, and Junior Associate (1998–2001); Peasah Boadu and Company as Associate Counsel (2001–2008); and Amal Law Consult as Managing Partner (2008–2014).

She entered the bench in August 2014, serving as a High Court Judge until December 2022, where she presided over diverse jurisdictions including the General Jurisdiction, Land Court, and Divorce & Matrimonial Causes Court. In 2022, she was elevated to the Court of Appeal, where she continues to serve until her nomination to the Supreme Court.

Justice Amaleboba has contributed significantly to judicial service reform and oversight. She served at the Complaints Unit (2020–2023), and currently serves on the Legal Service Board. Additionally, she has played active roles on key Judicial Committees, including those addressing fraudulent divorce certificates, digital attestation systems, and HR policy validation within the Judicial Service.

During her academic years, she also demonstrated leadership, serving as Club Services Director of the Rotaract Club at the University of Ghana (1994) and as Sarbah Hall (Annex A) JCR Representative (1995/96).

Justice Amaleboba is known for her meticulous work ethic and deep understanding of various aspects of civil and criminal law. She enjoys reading in her spare time.

Response to Questions

Potential bias in the empanelling of justices

The nominee was asked whether she shared the view expressed by Justice S.K. Date-Bah in his publication *Reflections on the Supreme Court of Ghana*, that the power vested in the Chief Justice to empanel Supreme Court justices could influence the outcome of cases. In response, the nominee respectfully disagreed, explaining that the Chief Justice's empanelling authority is an administrative function enshrined in the Constitution. She was emphatic that this role does not and must not

interfere with the independence of the Judiciary. She further stated that justices of the apex court are guided by law and conscience, and are not swayed by the composition of a panel.

Causes of delay in justice delivery

On the issue of delays in justice delivery, even in cases such as land and matrimonial matters, the nominee identified inadequate judicial personnel as a key factor. She cited a specific instance where a single judge was handling over 300 divorce cases, highlighting the heavy workload on some judges. Additionally, she noted that time-consuming procedural rules, such as those governing filing and pleadings, also contribute to delays. She recommended a review and streamlining of procedural timelines to improve efficiency.

Mandatory national service for all young lawyers

The nominee expressed strong support for the idea that young lawyers should undertake one year of mandatory national service at the Legal Aid Commission. She stated that this would not only enhance access to justice for the underprivileged but would also serve as a practical training ground for young legal professionals. In the absence of such a policy, she suggested making pro bono legal service mandatory for all lawyers as a contribution to public service.

Judges serving as traditional leaders

When asked why judges may serve as traditional leaders but Members of Parliament may not, the nominee explained that the chieftaincy institution is expected to remain non-partisan. Allowing individuals who are actively engaged in politics to hold traditional leadership roles could politicise the chieftaincy and undermine its neutrality.

Capping the number of Supreme Court Justices

The nominee expressed agreement in principle with proposals to cap the number of Supreme Court Justices, but cautioned against a hasty approach. She argued that the decision must be evidence-led, taking into account the current case backlog and the broad jurisdiction exercised by the Court. She called for a thorough assessment before any amendment is made.

Re-introduction of regional tribunals

Regarding the re-introduction of regional tribunals, the nominee noted that such bodies are still legally recognised and expressed no objection to their re-establishment, should the relevant policy authorities find it necessary.

Retirement age of Supreme Court Justices

When asked why Justices of the Supreme Court retire at age 70, whereas other public servants retire at 60, the

nominee justified the distinction. She stated that judicial work requires depth of experience, legal knowledge, and wisdom, which often improves with age. Accordingly, she maintained that the retirement age for judges is appropriate and necessary.

Non-partisan nature of Ghana's District Assembly elections

The nominee rejected the idea of making District Assembly elections partisan, stating that the current non-partisan model promotes national cohesion and inclusive development at the local government level. She argued that introducing partisanship into local elections could erode community-based governance.

Challenges of Appeals Court Justices

The nominee observed that one of the major challenges she faces as a Court of Appeal Judge is the limited access to legal research support. She stressed the need for a dedicated pool of trained legal research assistants to support judges in managing caseloads and delivering timely, high-quality judgments.

Suggestions to improve justice delivery

The nominee acknowledged the significant contributions of the e-Justice system, particularly at the High Court level. She recommended its expansion to all courts across the country to increase access, streamline court processes, and enhance justice delivery nationwide.

Supreme Court's approach to child welfare in judicial decisions

The nominee affirmed that in all matters concerning children, the welfare of the child is paramount. She explained that the Supreme Court is guided by the principle of best interest of the child, which overrides any competing claims, including those of parents. In situations of conflict between parental authority and the child's welfare, the Court is enjoined to uphold the latter. This judicial posture, she noted, is aligned with constitutional standards and international child rights obligations.

The role of the Supreme Court in promoting Alternative Dispute Resolution (ADR)

In response to the role of the apex court in advancing Alternative Dispute Resolution (ADR), the nominee acknowledged ADR's growing significance in reducing case backlog and promoting amicable settlement of disputes. She referenced the ADR Act, 2010 (Act 798) as the statutory framework governing mediation and arbitration in Ghana. Although ADR is often used at lower court levels, she noted that the Supreme Court plays a role in procedural issues, such as enforcement or setting aside of arbitral awards. The nominee emphasised that the Court can enhance legal certainty by delivering landmark rulings that interpret and clarify procedural and constitutional issues related to ADR.

Lawyers representing chiefs in chieftaincy proceedings

The nominee was asked whether, despite the Constitution not explicitly providing for legal representation at the Traditional Council level, lawyers should be allowed to represent parties in chieftaincy proceedings, especially given that the Chieftaincy Act permits such representation before Judicial Committees. She was also asked for her opinion on integrating legal practitioners into these committees to enhance fairness.

In her response, the nominee supported the inclusion of legal practitioners as part of the Judicial Committees' panel. She indicated that strengthening the institutional capacity of these Committees through qualified legal representation would enhance due process, ensure procedural fairness, and reduce the incidence of appeals arising from legal errors. She noted that such reforms would help in streamlining justice within the chieftaincy system and contribute to judicial efficiency.

Inclusion of the Ghana Prisons Service in the Judicial Council

When asked whether the Ghana Prisons Service should be included in the composition of the Judicial Council, the nominee responded affirmatively. She acknowledged the critical role played by the Prisons Service in the administration of justice, particularly in the context of correctional services and rehabilitation. Including the Service, she argued, would provide valuable insight into the

challenges and operations of Ghana's correctional system and promote holistic policy formulation within the judicial governance structure.

National service history

The nominee informed the Committee that she had undertaken two periods of national service. Her first posting was at Kamgbunli Junior Secondary School in the Axim District following her Advanced Level education. The second was at the Faculty of Law, University of Ghana, where she served as a Teaching Assistant after being called to the Bar.

When asked about documentation, she explained that although she had fulfilled her national service obligations, she did not receive a formal certificate for her first service. However, she maintained that the duties were duly carried out as required under the national service scheme.

Presidential sanctions and constitutional mandates on asset declaration

The nominee was asked whether the President has constitutional authority to impose sanctions—such as salary fines—on appointees who fail to comply with the asset declaration requirements under Article 286 of the 1992 Constitution.

In response, the nominee explained that Article 287 vests the Commission on Human Rights and Administrative Justice (CHRAJ) with the exclusive mandate to investigate breaches of

Chapter 24 relating to the conduct of public officers. However, she stated that where the President introduces internal administrative measures to ensure compliance within the Executive, such actions do not necessarily usurp CHRAJ's authority.

She acknowledged a constitutional lacuna due to the absence of clearly defined sanctions in Article 286 and suggested that this calls for broader legal reforms, potentially via a Constitutional Instrument (C.I.) or through the ongoing constitutional review. The nominee affirmed that aggrieved parties may seek redress through the courts, and that CHRAJ retains its original mandate to adjudicate constitutional breaches.

Presidential directives on asset declaration compliance

The nominee was asked if the President could lawfully require appointees to file their asset declarations and provide evidence of compliance, such as receipts from the Auditor-General.

She confirmed that the President's directive is valid within the Executive's administrative structure. Such a directive, she explained, does not conflict with Article 287, which mandates CHRAJ's role, but instead complements it by promoting transparency and discipline within the public service. She reiterated the need for legislative clarity, stating that long-term solutions should be pursued through statutory or constitutional reform.

Judicial intervention in cases of constitutional breach

The nominee was asked whether the Supreme Court could intervene where there is a clear breach of the Constitution. She answered affirmatively, explaining that the Supreme Court is the apex constitutional court and is duty-bound to act when a matter involving constitutional interpretation or enforcement is properly brought before it. She emphasised that such intervention is integral to the rule of law and constitutional governance in Ghana.

Recommendation on legal basis for sanction regime under Article 286

The nominee was asked whether she supports the introduction of a sanction regime under Article 286 via a Constitutional Instrument (C.I.), Executive Order, or other legal mechanism.

She agreed on the need for reform and recognised the absence of a defined punitive framework as a constitutional gap. She recommended a national consultative process involving stakeholders such as CHRAJ, the Bar Association, Judiciary, Legislature, Executive, and civil society, to determine the most appropriate legal pathway—whether by C.I., statute, or constitutional amendment.

Supreme Court's role in addressing gaps in constitutional sanctions

The nominee stated that while the Supreme Court may address legal gaps, it can only do so when properly seized

with a matter. She stressed that the Court cannot act *suo motu*, but where a matter regarding asset declaration enforcement is submitted for interpretation or adjudication, it may provide the necessary constitutional guidance.

Limiting the President's role in enforcing asset declaration

The nominee stated that the President's administrative authority over his appointees is constitutional, provided it does not contravene the law. She noted that the oversight function must be exercised within the bounds of due process, and that any limitation of such authority should be discussed through legal and policy reform mechanisms.

Whether dual sanctions by the President and CHRAJ amount to double jeopardy

The nominee clarified that administrative sanctions by the President and investigative sanctions by CHRAJ serve distinct legal purposes. She stated that this does not amount to double jeopardy, which is limited to criminal proceedings as per Article 19(7) of the Constitution. However, she advised that such processes must remain proportional, fair, and non-repetitive.

Public trust in CHRAJ

Responding to a question on the public perception of CHRAJ, the nominee noted that administrative measures by the President do not infringe upon

CHRAJ's mandate under Article 287. She stated that she did not perceive a loss of public confidence in the Commission's authority or independence due to executive oversight actions.

Electoral Commission's power to create new constituencies

The nominee affirmed that the Electoral Commission's authority to create constituencies is derived from Article 47 of the Constitution. She emphasised that though the EC is independent, its actions must remain constitutional and subject to judicial review when necessary.

Creation of District Assemblies

The nominee was asked to comment on the legal framework governing the creation of District Assemblies and the safeguards necessary to ensure transparency and constitutionality in the process.

In response, the nominee referenced Article 241 of the 1992 Constitution and the Local Governance Act, 2016 (Act 936). She explained that the power to create new districts lies with the President, acting on the advice of the Electoral Commission and in consultation with the Council of State. The legal process, she noted, is executed through a Legislative Instrument (L.I.) that must be laid before Parliament,

ensuring transparency and parliamentary oversight.

On making District Assemblies partisan

The nominee was asked to express her opinion on proposals to amend the Constitution to allow partisan politics at the District Assembly level.

She declined to offer a personal opinion, but stressed that any such move should be approached with broad national consensus. The nominee maintained that the matter involves policy choices with far-reaching implications, which must be addressed through consultation and civic engagement.

The role of the courts in upholding standards of political governance

The nominee was asked what role the Judiciary, particularly the superior courts, should play in setting and upholding standards of political governance. She responded that the Judiciary is the guardian of the Constitution, tasked with ensuring constitutional order, rule of law, and democratic accountability. The courts, through their powers under Articles 2 and 130, have the authority to review executive and legislative actions, ensuring they conform with constitutional standards. She emphasised that although the courts do not engage in partisan politics, they play a critical role in defining legal thresholds in areas such

as elections, public office qualifications, asset declaration, and human rights protection.

On the shortcomings of Ghana's two main political parties

When asked to comment on the perceived shortcomings of Ghana's two dominant political parties, the nominee declined to comment on the matter.

On the role and limits of the Legislature under the Constitution

The nominee was asked how the courts should respond when it is alleged that Parliament has acted unconstitutionally.

She responded that the legislative powers of Parliament, though extensive, are not absolute. She affirmed her belief that Parliament generally operates within its constitutional mandate, but also acknowledged that the courts have a responsibility to intervene where constitutional breaches are properly brought before them for adjudication.

The nominee's view on qualifications of Parliamentarians and Judges

The nominee was asked to assess the adequacy of constitutional qualifications for individuals seeking to become Members of Parliament and Judges of the Superior Courts.

In response, she acknowledged that while Articles 94, 128, and 136 set out minimum qualifications, they may not

fully reflect the ethical, civic, and professional standards expected of public officeholders. She supported continued scrutiny and dialogue to align constitutional requirements with evolving democratic values, including integrity, national service, and public commitment.

On the shortcomings of the Executive arm of government

When asked to comment on perceived shortcomings of the Executive arm of government, the nominee declined to offer a view.

Journey and inspiration for Northern youth

The nominee was asked to reflect on her personal journey and how it may serve to inspire youth, particularly from the regions in north and underserved communities.

She narrated her trajectory from modest beginnings, beginning education in Roman Catholic schools, attending St. Joseph's Secondary School, pursuing legal education at the University of Ghana, and co-founding her own law firm. She emphasised her rise through hard work, integrity, and discipline, culminating in her appointment as a High Court Judge in 2014, elevation to the Court of Appeal, and current nomination to the Supreme Court. She expressed a desire to be remembered as a hard-working, principled judge who sets enduring legal precedents.

Duty of the State in religious and educational rights

The nominee was asked about the duty of the State in upholding religious and educational rights under the Constitution. She affirmed that the Constitution guarantees the right to education and freedom of religion, and that it is the State's responsibility to respect, protect, and fulfil these rights. She called for balance and tolerance in managing diversity within educational institutions, particularly in faith-based schools. She noted that these rights must be enforced without discrimination or coercion, in line with constitutional guarantees.

Balancing institutional and individual rights in court decisions

The nominee was asked how the courts should handle situations where individual rights come into conflict with institutional interests. She responded that the Constitution must guide such decisions, with emphasis on fundamental human rights. She stressed the importance of balancing competing rights, but asserted that courts have a sacred duty to protect the individual, while ensuring institutions operate lawfully.

Freedom of religion and individual rights

The nominee was questioned on how Article 21 of the 1992 Constitution, which guarantees freedom of religion, applies particularly in the context of

mission schools, especially regarding the rights of students of other faiths to practice their religion freely in those schools.

She affirmed that Article 21 guarantees religious freedom, but highlighted the reality that students are usually aware of the religious orientation of mission schools before enrolling. She noted that while the Constitution upholds religious rights, there are reasonable limitations within institutional settings. The nominee stated that attending church, in her view, does not constitute discrimination, but stressed the importance of reasonable accommodation and inclusivity, especially in schools, to ensure that religious diversity is managed constitutionally and respectfully.

Legal remedies and the position of intersex persons facing ridicule

The nominee was questioned on the constitutional and legal protections available to intersex persons in Ghana. She responded that the Constitution offers general protection to all persons and stated that intersex persons are born with their condition, and this fact alone entitles them to the full protection under Ghana's constitutional guarantees. She noted that where surgical intervention is done at birth, such persons are considered to have an identifiable sex, and therefore enjoy equal rights under the law.

She explained that the general constitutional guarantees, such as the right to liberty, the right to property, and

freedom from discrimination, apply equally to intersex individuals. The nominee emphasised that she does not see the need for separate legislation to protect intersex persons, since the existing legal framework already covers all citizens, regardless of their biological conditions. She reiterated that no specific restrictions exist under Ghanaian law targeting intersex persons.

Technology and justice delivery

In responding to a question about how technology is enhancing justice delivery in Ghana's courts, the nominee highlighted the benefits of the e-Justice system, especially in Accra High Courts.

She explained that the system enables real-time transcription of proceedings, allowing both lawyers and judges to access records immediately, thus improving the efficiency of court processes. She cited that the ability of lawyers to prepare and submit written addresses on time, and judges' enhanced capacity to access court records and issue orders promptly, are key strengths of the system.

The nominee strongly recommended the nationwide rollout of the e-Justice system, noting that its expansion would help address systemic delays in the justice delivery chain and ensure greater access to legal services.

Judicial constraints and challenges

When asked about the peculiar constraints facing appellate judges, the nominee noted that while judges at that

level diligently conduct legal research and deliver judgments, a key limitation remains the lack of legal research assistants.

She stressed that the provision of dedicated legal researchers would significantly enhance judicial efficiency and effectiveness. The nominee underscored that legal researchers would improve turnaround time on decisions and allow judges to concentrate on core judicial functions rather than being overburdened with basic legal and clerical tasks.

Recommendation

The Committee recommends to the House by Majority Decision the approval of the nomination of JUSTICE HAFISATA AMALEBOBA for appointment as Justice to the Supreme Court. All the National Patriotic Party Members of the Committee (Opposition) voted against the Nominee.

Justice Kweku Tawiah Ackaah-Boafo

(Justice-designate to the Supreme Court)

Background

Justice Kweku Tawiah Ackaah-Boafo was born on 22nd May 1970 in Accra, within the Greater Accra Region of Ghana. He hails from Aboso/Insu-Siding in the Western Region. A Christian, he is married with two children, and is fluent in several languages including English, Wassa, Fante, Twi, Sefwi, and Nzema. His educational journey began at LA

Primary School, Asawinso-Adwumamu in the Brong Ahafo Region from 1975 to 1978, and continued at Methodist Primary School, Insu-Siding, in the Western Region, from 1981 to 1982, where he pursued his Middle School education.

He proceeded to St. Augustine's Secondary School in Bogoso from 1982 to 1985, and thereafter enrolled at Winneba Secondary School, where he obtained his GCE "O" Level Certificate in 1987. He undertook his Advanced Level studies at Sekondi Secondary School (SEKCO) between 1987 and 1989. In 1991, he gained admission to the University of Ghana, completing a Bachelor of Laws (LLB) degree in 1994, before earning his Professional Law Certificate (BL) at the Ghana School of Law between 1994 and 1996.

Justice Ackaah-Boafo's legal and academic training extended internationally. He obtained a Master of Laws (LL.M) in Public International Law (Human Rights) from the University of Helsinki, Finland, between 1999 and 2000. Although he enrolled in a Licentiate (JD) programme at the same university from 2001 to 2002, he did not complete it. In recent years, he undertook a National Accreditation Programme at the University of Ottawa Law School, Canada (2023–2024), and completed a five-month Bar Admission Course at the Law Society of Upper Canada, Toronto.

The nominee also holds an Executive Master of Arts in African Integration and Development from the Ghana Institute of Management and Public Administration

(GIMPA), obtained between February and December 2021. His professional development includes several certifications, notably a Diploma in Globalisation and Human Rights Law from the University of Helsinki, and courses on evidence gathering, national security surveillance, and computer search protocols from York University, Canada. He further obtained a certificate in Core Judicial Skills from the University of Cape Town, South Africa.

Justice Ackaah-Boafo fulfilled his national service at the Aboso PDC Office (1989–1990), and later taught at Wassa Simpa Junior Secondary School as part of his extended service from 1990 to 1991. His pupillage was undertaken at Bosomtwi Sam & Associates, Takoradi. His legal practice began at Kendricks Law Firm (1979–1999), after which he joined Rosseta Offonry & Co Solicitors, London, as a Legal Assistant. He also served as a Tutor at the University of Helsinki, Faculty of Law, in 2001, and later joined the Atuobi Danso Law Office, Toronto, as both Legal Assistant and Articling Student. From 2005 to 2015, he practised as a Sole Practitioner in Toronto, Canada.

Justice Ackaah-Boafo has also made notable contributions to legal education. He has been a Part-Time Lecturer at the Ghana School of Law since 2001, and is a faculty member of the Judicial Training Institute. He currently serves as a Justice of the Court of Appeal, having previously sat as a High Court Judge in the General Jurisdiction Division, Accra.

His judicial expertise encompasses the exercise of judicial power, enforcement of judgments, and the writing of rulings. He has served on numerous committees, including the Judicial Service e-Judgement Committee, the Committee to Draft Practice Direction on Disclosure and Case Management in Criminal Proceedings, the Disciplinary Committee on Judicial Misconduct, and chaired the Committee to Review Curriculum Modules for Paralegal Training under the direction of the Honourable Chief Justice.

Justice Ackaah-Boafo is a member of the Association of Magistrates and Judges (Ghana), the Law Society of Ontario, the Criminal Lawyers Association (Ontario), the Canadian Association of Black Lawyers, and the Ghana Bar Association. He has participated in several conferences and legal fora, including the 13th and 14th Annual Public Defender Conferences in Las Vegas, the Six Minute Criminal Judge Series in Canada, and engagements with the Toronto Lawyers Association. His training includes workshops on arbitration, chieftaincy law, and case management as well as the 12th Maritime Law Seminar for Superior Court Justices.

He has received various awards and recognitions, including the Ghanaian News Canada Achievement Award, Best Graduate Student Award, a Citation for Contribution to Legal Education through Mooting, a Juvenile Diabetes Research Fundraising Award, and a Youth Mentorship Citation. His publications

span topics such as human rights, civil procedure, AfCFTA dispute resolution, African integration, legal education, and land ownership.

In terms of community service, the nominee has actively supported young people by mentoring final-year students, volunteering with the Second Chance Foundation in Toronto, and presiding over the Ghana School of Law's Re: Akoto Moot Court Finals at GIMPA. Despite his demanding professional life, he enjoys reading biographies, Christian literature, singing, watching football, basketball, and ice hockey, and playing table tennis.

Response to Questions

Adequacy of Legal Professionals in Ghana

In responding to the question of whether Ghana has an adequate number of legal professionals, the nominee drew on his extensive background as a law lecturer, providing both historical context and statistical insight. He began by referencing figures from 1877 to 1963, during which period Ghana had only 570 lawyers. He noted that as of May 2025, the number had risen to over 11,000 registered lawyers, with approximately 8,000 in active practice.

Notwithstanding this growth, the nominee asserted that Ghana still lacks a sufficient number of lawyers. He drew a comparative analysis with Canada, stating that while Canada has an approximate ratio of one lawyer per 62

people, Ghana's ratio stands at around one lawyer per 1,700 citizens.

Addressing potential solutions, the nominee acknowledged current discussions around the expansion of professional legal training to universities already offering LLB programmes. However, he cautioned against a hasty rollout, stressing that the issue is not merely one of numbers, but also of ensuring quality control. He posed a rhetorical question—whether these institutions have the requisite faculty strength, facilities, and academic standards to maintain the rigour of professional legal education.

He further highlighted that many law faculties graduate fewer than 100 students per year, with less than 10 per cent successfully passing the Ghana School of Law entrance examination, thus reflecting a systemic challenge. The nominee also raised concerns about post-law school infrastructure, questioning whether Ghana possesses sufficient qualified chambers to offer meaningful pupillage opportunities, given that there are only 1,200 registered law chambers for the 8,000+ practicing lawyers.

The nominee concluded by recommending that any reform of the legal education system must be carefully structured, guided by effective regulation, and preceded by a broad-based national dialogue that is devoid of emotion but grounded in facts, stakeholder engagement, and sustainability.

Freedom of Expression on Social Media Vs. Reputational Rights

On the issue of freedom of expression in the digital age, particularly on social media, the nominee referenced enduring judicial philosophies that seek to balance liberty with responsibility. While acknowledging the transformative role of social media in democratising public discourse, he cautioned that such freedom must be exercised with accountability.

He emphasised that where defamatory content is shared online, individuals have a constitutional right to seek redress in court, and such action should not be misconstrued as an infringement on free speech. Rather, it is a protective measure that defends reputational rights, ensuring that freedom of expression does not become freedom to defame.

The nominee was clear in asserting that freedom of speech is not absolute, and that the rule of law requires that all freedoms are exercised within the bounds of legality and respect for others.

Judicial Impartiality and The Empanelment Process

In addressing concerns about the potential for manipulation in the empanelment of judges by the Chief Justice, the nominee acknowledged that empanelling is an administrative function constitutionally vested in the Chief Justice. However, he pointed out that public perception of partiality in how panels are constituted is growing and must be addressed.

He therefore proposed a statutory reform to introduce electronic empanelment systems. In this envisioned system, the Supreme Court would operate multiple panels headed by senior judges, and cases would be assigned randomly through a digital mechanism. This would, in his view, eliminate suspicions of strategic case allocation and strengthen judicial credibility.

In a follow-up to whether such a move would dilute the constitutional mandate of the Chief Justice, the nominee disagreed. He argued that rather than eroding authority, such reforms would enhance the credibility of the office and provide protection from allegations of bias. The Chief Justice would still have the authority to lead a panel and participate in hearings, but not to unilaterally assign justices to sensitive cases.

He clarified that his proposal was not aimed at undermining the Chief Justice's position, but at fortifying public trust in the principle of judicial impartiality.

Clarification on Language Proficiency

The nominee also responded to a request for clarification on his language proficiency, as indicated in his Curriculum Vitae. He confirmed that he is fluent in both writing and speaking English and Fante. He further explained that although he is conversant in Wassa, Sefwi, Twi, and Nzema, his writing proficiency in these languages has diminished over time due to limited use.

With the leave of the Chairman of the Committee, the nominee was permitted to amend the language section of his CV to accurately reflect the languages he can speak and write proficiently.

Understanding of Stated Behaviour (Article 146)

The nominee was asked to clarify his understanding of what constitutes misconduct within the meaning of Article 146 of the Constitution and the potential consequences of vague or unchecked actions by state officials. In his response, the nominee emphasised that the absence of a precise legal definition introduces regulatory ambiguity and hampers consistent enforcement. He stressed the urgent need for Ghana to revisit its legal framework, recommending the development of clear, codified definitions to guide state behaviour.

He explained that state-level misbehaviour includes acts or omissions by public officers that undermine the Constitution, violate statutory obligations, or breach ethical standards expected of their positions. Such misconduct may manifest in forms including, but not limited to, abuse of power, corruption, negligence, and conduct that is inconsistent with the dignity of public office.

The nominee strongly advocated for the codification of these expectations, asserting that this would bring about greater clarity, accountability, and

constitutional adherence. He concluded by underlining the alignment of practice with principle as a necessary standard for all public officials to ensure that their actions remain within enforceable limits.

Advancements in Technology and Executive Function

On the issue of how technological innovation impacts executive authority, particularly in situations where both the President and Vice-President are outside the jurisdiction, the nominee offered a forward-looking perspective. He recognised the emergence of borderless governance, facilitated by technologies such as virtual meetings, electronic signatures, and real-time digital coordination.

He asserted that physical absence should not be misinterpreted as a leadership vacuum or a lapse in constitutional authority. In his view, Executive power can still be exercised effectively from remote locations, provided that there are clear legal safeguards and protocols in place.

The nominee further recommended a purposive interpretation of the Constitution to account for the realities of modern governance, where digital platforms support seamless and legitimate administration. He concluded by urging for constitutional evolution that recognises technological capacity without compromising accountability or legitimacy.

Separation of Judicial Functions

Responding to a question regarding whether the judicial and administrative functions of the Chief Justice should be separated, the nominee acknowledged that the dual responsibility currently borne by the Chief Justice is both constitutional and practical. He clarified that while the Constitution does not demand a separation of these functions, the execution of both roles simultaneously may at times impede judicial focus, depending on the management style of the individual in office.

To address this, he suggested that the administrative workload be eased through structured delegation to competent officers, particularly a Judicial Secretary and other senior administrative staff. He stopped short of calling for a formal structural separation, noting that such a rigid split could undermine the cohesion and leadership effectiveness associated with the Chief Justice's role.

Ultimately, the nominee proposed that flexibility and institutional judgment be retained, allowing the Chief Justice to balance these dual responsibilities in line with both leadership style and operational demands.

National Service Experience with The Public Defense Committee

The nominee was asked to reflect on his national service with the former Public Defense Committee (PDC). He explained that his role primarily

involved the documentation of public complaints, particularly in land disputes, tenancy issues, and other community-level disagreements. The PDC, he noted, functioned as an arbitration body offering a pragmatic dispute resolution forum in local areas lacking formal court infrastructure.

When queried on whether the PDC's work conflicted with the Judiciary, the nominee clarified that the PDC was not intended to supplant the courts, but rather to complement judicial access by addressing minor community disputes. He described the committee's work as essential during its time, providing a local justice mechanism in underserved areas.

Constitutional Qualifications for Appointment to the Supreme Court

The nominee was asked to demonstrate his compliance with the constitutional qualifications under Article 128(4), specifically concerning high moral character, proven integrity, and a minimum of 15 years of legal practice. In his response, he affirmed that his moral conduct and ethical professionalism have been consistently evident throughout his career. He cited a clean disciplinary record with the Law Society of Ontario, as well as his judicial service, as proof of his integrity.

On the question of experience, he stated that by October 2025, he would have completed 29 years of legal practice, significantly exceeding the constitutional threshold. He reiterated his commitment to ethical standards,

judicial independence, and excellence in legal adjudication.

Ensuring Competence on the Bench and Ways to Safeguard

In response to concerns regarding judicial competence, the nominee acknowledged the perception that some judges may lack the necessary skills to deliver sound judgments. While noting that judges go through vetting processes and are presumed competent upon appointment, he admitted that knowledge gaps can and do emerge.

To remedy this, he strongly advocated for judicial capacity building, including continuous professional education and the establishment of a permanent judicial training structure. When pressed further, the nominee proposed the creation of an independent Judicial Commission responsible for overseeing appointments, promotions, and performance reviews of judges.

Such a commission, he argued, would evaluate judgment quality, analytical skill, and public service records in determining both initial appointments and elevations within the Judiciary. He stressed that such oversight would preserve public confidence, enhance judicial performance, and ensure that judges remain responsive to the demands of modern adjudication.

Public Declaration by Prosecutors

When asked whether public declarations by prosecutors may undermine public confidence in the

Judiciary, the nominee expressed concern that such statements could create the impression of guilt prior to trial, which contravenes the principle of fair hearing. He emphasised that judges must remain impartial, and that their decisions should be based solely on evidence presented in court, not influenced by public narratives or external commentary.

The nominee, a teacher of legal ethics, further cautioned that lawyers commenting on ongoing cases could mislead the public, especially when such comments are inaccurate or speculative. He stressed the importance of judicial independence and warned that prejudicial comments made before certification of a case could compromise the integrity of the judicial process.

Presumption of Innocence and Prosecutorial Communication

In response to a question regarding whether a prosecutor institutes a case based on a belief in the accused's guilt, the nominee explained that a prosecutor typically must have confidence in the case before filing it. However, he clarified that the presumption of innocence remains the court's responsibility and must not be compromised by the personal convictions of the prosecuting attorney.

He concluded that while a prosecutor is entitled to an opinion on the strength of their case, this opinion should not be interpreted as proof of guilt, nor should it influence judicial decision-making. The

line between belief in evidence and prejudgment must be carefully maintained.

Media Communication on Proceedings in Canada

In discussing practices abroad, the nominee noted that in Canada, both the media and legal professionals are prohibited from commenting on ongoing court cases. He emphasised that only qualified lawyers may make public remarks and only under strictly defined circumstances. He pointed out that commentary typically occurs post-judgment, in order to preserve the fairness and sanctity of the judicial process. This standard, he suggested, promotes discipline and restraint within the legal profession.

System of Appeal in the High Court and Supreme Court

The nominee affirmed that Ghana's appeals system provides critical avenues of redress for individuals dissatisfied with High Court decisions. He explained that such individuals have the right to appeal to the Court of Appeal, and if necessary, proceed to the Supreme Court. This multi-tiered process, he noted, ensures that justice is not final at the first instance, and that accused persons can challenge verdicts they believe are unjust. He described the system as essential to safeguarding legal rights, particularly for those under judicial or procedural pressure.

Freedom of Expression Vs. Online Abuse

On the increasingly complex tension between freedom of expression and digital misconduct, the nominee acknowledged the constitutional right to speech but cautioned against its abuse through online platforms. He observed that social media is increasingly being used for defamation, misinformation, and cyberbullying, all of which threaten reputations and undermine public discourse.

The nominee stressed that defamation—whether online or offline—must be addressed through the same legal standards. He called for stricter enforcement of existing cybercrime and data protection laws, and where necessary, reform of legislative frameworks to tackle digital infractions. In his view, the right to expression must coexist with a duty to protect individual dignity and institutional trust.

Misconduct and Judicial Discipline

In addressing whether all breaches of the judicial code should result in removal from office, the nominee advocated for a context-sensitive approach to judicial discipline. He argued that not all infractions constitute misconduct deserving dismissal. Factors such as the severity of the breach, intent, and impact on public confidence should inform the appropriate response.

He proposed a tiered disciplinary system, wherein minor infractions could result in counselling, warnings, or reprimands, rather than termination. He

insisted that judicial accountability must be balanced with institutional dignity and fairness, ensuring that responses are proportionate and uphold the independence of the Judiciary.

Remuneration for Career Magistrates

The nominee was invited to share his opinion on the disparity in conditions of service between career magistrates and those recruited through the mainstream judicial system. He acknowledged that career magistrates often perform equivalent work but receive less remuneration and fewer benefits, despite facing similar workloads.

He asserted that the principle of equal pay for equal work demands a harmonised compensation structure across the Judiciary. He advocated for a comprehensive structural review of salaries, allowances, and retirement benefits, to address this imbalance. In his view, internal equity within the judicial system is vital to ensure morale, retention of talent, and ultimately, the effective delivery of justice.

Separation of Judicial Functions

Revisiting an earlier theme, the nominee was asked again whether the dual responsibilities of the Chief Justice—serving as both administrative head and judicial officer—should be separated. The nominee reiterated that the Constitution does not mandate separation, but acknowledged that administrative burdens can distract from core judicial responsibilities.

He proposed that a strong administrative support structure be instituted, enabling the Chief Justice to focus on adjudication while delegating administrative duties. He cautioned that formal separation could disrupt institutional coherence, and suggested that the decision should rest with the officeholder, who must balance duties based on context and leadership style.

Public Trust in the Judiciary

The nominee was asked to provide his assessment of the current state of public trust in the Judiciary and what measures may be necessary to restore or enhance confidence in the justice system. In his response, the nominee acknowledged that public perception significantly shapes the legitimacy of judicial institutions. He observed that concerns about corruption, political interference, and delays in justice delivery have contributed to an erosion of trust. Nonetheless, he warned against generalised conclusions based on isolated incidents or unverified commentary.

The nominee emphasised that judges function within a broader societal context, and thus institutional integrity is inseparable from the personal integrity of judicial officers. He pointed out that restoring public confidence requires a focus on ethical conduct, transparency, and timely adjudication. He concluded by calling for a national ethical renewal, advocating for sustained civic education, clear judicial communication, and leadership by example across all arms of government.

Child Marriage and Witchcraft Accusations

When asked about harmful cultural practices, particularly child marriage and witchcraft accusations, the nominee unequivocally condemned both practices. He described them as violations of human dignity, especially against women and children. The nominee argued that child marriage deprives girls of educational and professional opportunities, subjecting them to physical and emotional harm.

Regarding witchcraft accusations, he noted the trauma, social exclusion, and often violent outcomes faced by alleged victims, many of whom are elderly women. He advocated for a combination of public education, legal reform, and enforcement mechanisms to eliminate such practices. He stressed the need for a collaborative approach involving state agencies, traditional leaders, civil society, and religious institutions to eradicate all forms of cultural violence and abuse.

Membership of Organisations and Judicial Impartiality

The nominee was asked whether his membership in religious, social, political, or commercial organisations could potentially compromise his judicial impartiality. He disclosed that he holds no membership in any political party or profit-oriented entity, affirming his independence as a judicial officer. While acknowledging his Christian fellowship membership, he insisted that this does not impair his neutrality.

To illustrate his commitment, the nominee cited a personal case where he recused himself due to a familial connection. He explained that even after being asked to adjudicate, he ultimately ruled against his own brother, thereby demonstrating his adherence to judicial ethics and commitment to fairness without favour.

Incomplete Postgraduate Studies

The nominee was asked to clarify why he discontinued a postgraduate academic programme he had earlier commenced. In response, he explained that after enrolling, he realised that his passion lay more in practical legal advocacy than in academic pursuits. With this insight, he opted to relocate to Canada to pursue a career in active legal practice.

He affirmed that this decision was not due to academic incapacity but rather a strategic career redirection based on his desire to serve the profession directly. While valuing academic enrichment, the nominee emphasised that professional growth must align with personal goals and vocational calling.

Public Prosecution Vs. Alternative Dispute Resolution (ADR)

In comparing public prosecution with Alternative Dispute Resolution (ADR), the nominee acknowledged that ADR has become increasingly relevant in civil and commercial matters. He praised its speed, cost-effectiveness, and capacity to reduce court backlog and promote reconciliation.

Nonetheless, he cautioned that ADR is not appropriate for all cases, especially serious criminal offences. He stated that public prosecution serves the public interest, deterring crime and affirming the rule of law. While minor offences may benefit from restorative justice frameworks, core criminal cases must be pursued in open court. He concluded that ADR and public prosecution are complementary, not substitutes, and called for clearer policy guidelines on the appropriate application of each.

African Continental Free Trade Area (AfCFTA)

The nominee was asked for his views on the AfCFTA and its implications for Ghana's legal and judicial system. He welcomed the initiative as a transformational opportunity for intra-African trade and integration. However, he expressed concern that the dispute resolution mechanism currently permits only state parties to bring claims, thereby excluding individuals and SMEs.

He advocated for legal reforms that would broaden access to justice under the AfCFTA protocols. Additionally, he called for proactive training for judges and legal professionals to ensure familiarity with the procedural and substantive elements of AfCFTA litigation. In his view, Ghana has the potential to lead adjudication efforts in cross-border trade disputes on the continent.

Legal System as it Exists in Ghana

The nominee was asked whether Ghana's legal system should evolve in

line with African philosophical and cultural traditions. He responded affirmatively, suggesting that while the common law framework has provided structure, it now requires contextual adaptation.

He recommended a gradual and principled transition, integrating African norms of equity, justice, and reconciliation into mainstream legal doctrine. However, he cautioned that this evolution must not compromise constitutional democracy or human rights. He argued for a home-grown legal identity that remains compatible with international legal standards.

Judicial Integrity

When asked about the foundational value of judicial integrity, the nominee described it as central to public trust in justice delivery. He shared his personal commitment to upholding ethical standards, stating that he views the judicial calling as a sacred trust.

He referenced the Judicial Code of Ethics as his guiding compass and affirmed that he has consistently operated within its principles. On how he would respond to misconduct by a colleague, he said he would escalate serious matters through appropriate channels if informal resolution fails. He believes judges must also hold each other

accountable to protect the dignity of the bench.

Preparedness of the Ghanaian Judiciary Towards the use of AI

When asked about the readiness of the Ghanaian Judiciary to adopt Artificial Intelligence (AI), the nominee stated unequivocally that AI literacy is essential. He described AI as the “new trend” and urged that judicial officers must be trained to understand both the potential and the risks.

He stressed the need for responsible and informed adoption, referencing judicial guidelines developed in Canada and the UK. He called for national-level training to ensure that judges are equipped to engage with emerging technologies without compromising judicial discretion and fairness.

Public Declaration by Prosecutors

When the nominee was asked whether public declarations by prosecutors may undermine public confidence in the Judiciary, the nominee expressed concern that such declarations could create the impression of guilt before a fair trial has occurred, thereby potentially eroding trust in the judicial process. He emphasised that judges must remain impartial and should base their decisions solely on the evidence presented in court, irrespective of public opinion or media commentary.

The nominee further acknowledged that while prosecutors may, in certain circumstances, share information with the public, they must refrain from

making premature assertions that suggest a case is a "done deal," as such conduct risks compromising the integrity of the judicial process.

Identifying himself as a teacher of legal ethics, the nominee criticised the practice of lawyers making public comments on ongoing cases, noting that such statements may misrepresent courtroom proceedings. He stressed the importance of maintaining judicial independence and cautioned that prejudicial remarks, especially those made before a case has been certified, could significantly undermine public trust and the fair administration of justice.

Presumption of Innocence and Prosecutorial Communication

In responding to a question as to whether a prosecutor may institute proceedings with the belief that the accused is guilty, the nominee explained that a prosecutor would ordinarily have confidence in the strength of their case prior to initiating prosecution. He noted that such confidence is based on the available evidence, which may lead the prosecutor to believe in the accused person's culpability.

However, the nominee was clear in stating that the presumption of innocence is a constitutional guarantee and is primarily the responsibility of the court to uphold. The prosecutor's belief, however strongly held, must not influence the adjudication of the matter or prejudice the accused's rights before the law.

The nominee further clarified that although a prosecutor is entitled to an

opinion on the merits of their case, this should never be mistaken for a judicial presumption of guilt. He stressed the need for strict adherence to due process and the principle of fair trial, which places the burden of proof firmly on the prosecution and recognises the accused person's right to be presumed innocent until proven guilty by the court.

Media Communication on Proceedings in Canada

The nominee indicated that in Canada, both the media and legal practitioners are restrained from commenting on ongoing legal proceedings, in strict adherence to established legal and ethical rules. He emphasised that public commentary is generally discouraged during the pendency of a case, as it may prejudice the court or the public.

He further noted that in the Canadian legal system, only qualified lawyers are permitted to comment on legal matters, and even then, such commentary is typically deferred until after judicial decisions have been rendered. This, according to the nominee, is intended to preserve the integrity of the judicial process and uphold public confidence in the courts.

System of Appeal in the High Court and Supreme Court

The nominee affirmed that the system of appeals within the High Court offers a critical remedy for accused persons dissatisfied with judicial decisions rendered against them. He explained that individuals retain the right to appeal to

the Court of Appeal, and where necessary, proceed further to the Supreme Court, thereby ensuring multiple avenues for redress.

This multi-tiered appellate structure, the nominee noted, is a fundamental safeguard embedded within Ghana's judicial system. It is designed not only to protect the rights of the accused but also to mitigate any undue pressure or miscarriage of justice that may arise during the trial process.

Recommendation

The Committee recommends to the House by **majority decision**, the approval of the nomination of Justice Kweku Tawiah Ackaah-Boafo for appointment as Justice to the Supreme Court. All the National Patriotic Party (NPP) Members of the Committee (Opposition) voted against the nominee.

Conclusion and Recommendation

The Committee, acting in accordance with the provisions of Article 144(2) of the 1992 Constitution of the Republic of Ghana and Order 217 of the Standing Orders of Parliament, duly examined the seven nominees submitted by His Excellency the President for appointment to the Supreme Court of Ghana.

Upon careful deliberation, the Committee notes that all the nominees demonstrated outstanding competence, deep knowledge of the law, and a firm grasp of judicial ethics. They addressed questions posed by the Committee with

professionalism, clarity, and intellectual rigour, reflecting their capacity to uphold the independence, integrity, and dignity of the highest court of the land.

The Committee is satisfied that the nominees possess the requisite qualifications, judicial temperament, and commitment to constitutional values expected of Justices of the Supreme Court.

In conclusion, all Members of the NPP, Minority, were opposed to and voted against the nomination of all the Justices, on grounds that:

i. the appointment of seven new justices was inconsistent with the suspension of the Chief Justice, stating that it was not about filling vacancies but reshaping the constitutional order;

ii. the Supreme Court abdicated its constitutional duty and remained silent when fundamental principles of natural justice were being violated;

iii. the NDC had previously opposed the nomination of two justices, citing judicial bloat.

Hence, the decision of the Minority in opposing and voting against all the nominees. The Members of the National Democratic Congress, Majority, voted in favour of all the nominees.

The Committee, therefore, recommends to the House by **majority decision**, the adoption of this Report and

the approval of the following nominees for appointment as Justices of the Supreme Court of Ghana:

- i. Justice Senyo Dzamefe
- ii. Justice Sir Dennis Dominic Adjei
- iii. Justice Gbeil Simon Suurbaareh
- iv. Justice Philip Bright Mensah
- v. Justice Janapare Adzua Bartels-Kodwo
- vi. Justice Hafisata Amaleboba
- vii. Justice Kweku Tawiah Ackaah-Boafo

The Committee respectfully submits this Report for the consideration and approval of the House.

Respectfully submitted.

5.17 p.m.

The Speaker: Yes, Hon Member?

Mr Kwame Anyimadu-Antwi: Thank you, Mr Speaker. I rise to reluctantly support the Motion—*[Uproar]*—And I would want to second the Motion and speak on the point that the Minority would want to put across.

Mr Speaker, in seconding the Motion, I would not want to go far but to go to the conclusion of the Report. Mr Speaker, with your permission, I would want to read the last but one page.

“The Committee, acting in accordance with the provisions of Article 144(2) of the 1992 Constitution of the Republic of Ghana, and Order 217 of the Standing Orders of Parliament, duly examined the seven nominees submitted by His Excellency the President for appointment to the Supreme Court of Ghana. Upon careful deliberation, the Committee notes that all the nominees demonstrated outstanding competence, deep knowledge of the law, and a firm grasp of judicial ethics. They addressed questions posed by the Committee with professionalism, clarity, and intellectual rigour, reflecting their capacity to uphold the independence, integrity, and dignity of the highest court of the order. The Committee is satisfied that the nominees possess the requisite qualifications, judicial temperament, and commitment to constitutional values expected of justices of the Supreme Court. In conclusion, all members of the NPP, Minority, were opposed to and voted against the nomination of the justices on the grounds that”—

Mr Speaker, the first ground is that the appointment of seven new justices was inconsistent with the suspension of the Chief Justice, stating that it was not about filling vacancies but reshaping the constitutional order.

5.27 p.m.

Mr Speaker, in this country, this is important because, we as a House must develop the jurisprudence of this country. Never in life, Mr Speaker, ever since I have witnessed that we have had 14 Justices of the Supreme Court.

This House, Mr Speaker, and during President Akufo-Addo's era, there were 14 Justices of the Supreme Court. Mr Speaker, some of them left and they were replaced. His Excellency President Akufo-Addo left office with 14 Justices.

Mr Speaker, at the last minute, there were two Justices that were supposed to be promoted to the Supreme Court. Our friends on the other Side stood up and said that the two Justices that were being added, we were changing Ghana and that we were boosting the Supreme Court and they opposed that. Here we are, Mr Speaker. As I have said, it is not that the Justices are incompetent. We have no doubt about their competence. Mr Speaker, but if two is flooding the courts, this is the first time we are having seven Justices at a time and if they had 13 and we add seven, that would be 20.

Mr Speaker, are we redrafting the jurisprudence of this country or the laws of this country? Even though there are laws, and, Mr Speaker, we have never had a ceiling of the Supreme Court Judges. Mr Speaker, if at this time we do not have any question about raising the Judiciary, the bar, the ceiling to 20 and more, then, Mr Speaker, it is about time that we redraft this in the Constitution. This is why we are opposed to that. But if the other Side can oppose to two being

added to the Judiciary, to the Supreme Court, then seven must not be allowed. Whereas, even if the current Chief Justice is not part of it, then we would have 19. Mr Speaker, this is unprecedented. It has never happened in the country. This is our point and this must not be allowed.

I would not be surprised if tomorrow the other Side would come with a proposal and flood the courts to a number that we cannot mention to the extent that they have reached 20, now they can go to the extent of raising up to 30. So, on this basis, Mr Speaker, even though we recognise the performance of special Judges before this House, and I have had direct contact with some of them. For instance, Sir Denni Adjei, I was in the same office with him and I know his competence. Even though Sir Justice Mensah is my junior, I practised before him when he was a Circuit Court judge in Kumasi. Justice Thurubaru, Mr Speaker, was the first Judge that I ever visited and I did my first case before him at a court around Bekwai area called, Wuntaado court. So, we do not doubt their competence. But, Mr Speaker, a precedence is being set and this is dangerous for the nation and that is why we are oppose to this.

Thank you, Mr Speaker.

[Hear! Hear!]

The Speaker: Hon Members, the proposal is that the Minority has agreed that the Leader will take the time yielded by the rest to submit for and on behalf of the Minority Caucus. On the Majority

Side, my instruction is to allow two plus the Majority Leader. So, the proposal is for the two from the Majority to make their submissions. Then, the Minority Leader can then come in and then we end it with the Majority leader. That is the instruction I have been given. I want to hear from your Side whether you are also ceding to the Majority Leader or you want to take your bite before the Majority Leader. Then, we know what to do. Yes?

Mr Ayariga: Mr Speaker, the arrangement is that the two will speak —

The Speaker: No. Talk about your Side. I have already stated what they told me. The rest have ceded their time to the Minority Leader. So, they are not going to speak again. It is now left of your Side. Would you want the two to still speak before you?

Mr Ayariga: No, the two will speak. Then, he will speak. Then, I will speak last.

The Speaker: That is what I said.

Mr Ayariga: So, they should go ahead.

The Speaker: So, we will take the two from your Side, then, he will now come in. Then, you will end up.

Mr Ayariga: Yes.

The Speaker: Yes, that was what I put across.

So, who are the two?

Hon Minister for Education?

Alhaji Haruna Iddrisu: Mr Speaker, let me thank you for the opportunity to contribute to the Motion ably moved by the First Deputy Speaker and Chairman of the Appointments Committee that this House approve the nomination of seven Justices of the Supreme Court of Ghana.

Mr Speaker, in doing so, I just listened to my Senior at the bar who espoused and made reference to the Constitution and what the Hon Anyimadu-Antwi considers best practice.

Mr Speaker, the question this House guided by you is to ask is one, is the President of Ghana, President John Dramani Mahama, legitimately and lawfully and constitutionally respecting the tenets of the Constitution? Yes, he has and yes, he does. Mr Speaker, may I refer you with respect to Article 144(2).

So, President John Dramani Mahama is not doing anything than respecting the Constitution of Ghana which in Hon Afenyo-Markin's words and by his learning and training, the grundnorm of the Republic is the Constitution of Ghana. It reads;

“The other Supreme Court Chief Justices shall be appointed by the President acting on the advice of the Judicial Council, in consultation with the Council of State and with the approval of Parliament”.

Not my interest. But Mr Speaker, Article 144(2)—the other Supreme Court Justices shall be appointed by the President acting on the advice of the Judicial Council.

Mr Speaker, President John Dramani Mahama received lawful legitimate advice from the Judicial Council on the appointments of the seven Justices in consultation with the Council of State. Yes, there has been consultation with the Council of State before the President remitted the appointment letter and then finally, with the approval of Parliament. This is what we are coming to do, Mr Speaker. Parliament is coming to approve the nomination. So, I speak in favour of the Motion

Again, with respect, Mr Speaker, I want to address the question raised by the Hon Anyimadu-Antwi and I may again, refer you to Article 128. Mr Speaker, maybe you are now arguing today. Ten years back, it has always been my view that there should be a capping and sealing of the number of Supreme Court Judges. I even made a paper for CDD with Justice Kpegah there. Mr Speaker, what does the Constitution say today? President Mahama is not operating with an anticipated Constitution in the future. He is operating with the 1992 Constitution and not a future Constitution. So, Mr Speaker, if the argument by the Hon Anyimadu-Antwi and many of our Colleagues is to seek an amendment to Article 128, that we have heard them and that we all should resolve, to attract the attention of the Constitutional Review Committee. So that the Constitutional Review

Committee in its work will consider providing...

5.37 p.m.

And that we all should resolve, must attract the attention of the Constitutional Review Committee, so that the Constitutional Review Committee in its work, will consider providing for a capping, so that this question of whether 17, 19 or 20 as he argued—

But Mr Speaker, Article 128 (1) is crystal clear. It reads, and I quote, for the record:

“The Supreme Court shall consist of the Chief Justice and not less than nine other Justices of the Supreme Court.”

Not less than nine. Mathematically, it means it can be more than nine. And 19 is more than 9. 20 is more than nine. Even 21 is more than nine. *[Interruption]* —Judicial mathematics.

Mr Speaker, that is not to say, I am departing from a generally held view, which is also my own view, that we should provide for a cap of a maximum of Supreme Court judges. But until we review the Constitution and make fundamental changes to Article 128, the President is bound to respect the 1992 Constitution and its provisions. In any case, when they kept appointing Justices of the Supreme Court, did they ever consider when Ghanaians said they should provide a threshold? Today, because they are sitting at the opposite Side, they want to obstruct the right of

President Mahama to appoint Justices of the Supreme Court.

Mr Speaker, finally, in the whole of northern Ghana, if there is a matter pending at the Court of Appeal, they are compelled to travel to Kumasi and sometimes to Accra to seek justice. That should not be the case. So, not just the Supreme Court, the expansion of the Court of Appeal to the Upper West Region, Upper East Region, and Northern Region must necessarily occupy our attention.

In conclusion, Mr Speaker, one of the Justices talked about demystifying legal education and expanding legal education. Mr Speaker, running into next year, we will invite this House to make an allocation for the expansion of the School of Law, supported by GetFund. A request has been received by the Government through Prof Raymond Atuguba of the Faculty of Law, and the Government is giving it good attention, so that next year we expand it, in order to train more lawyers.

Mr Speaker, with these comments, I beg to support the Motion that this House approves the nomination of those Justices of the Supreme Court, because the President has only done what is lawful within the Constitution of the Republic of Ghana and what is within his mandate as President of the Republic, to appoint Justices on the advice of the Judicial Council and to go through the process of the Appointments Committee.

Mr Speaker, finally, we are talking about asset declaration, and we are

asking people—I have seen even arguments that Members of Parliament and Ministers should declare their assets publicly. Yes, if we want to do so, it is the right thing to do, but amend the Constitution. If we do not amend the Constitution—The Constitution as it is, provides for the form and nature of the asset declaration. If we do anything outside of it, that is not acceptable. But to deepen transparency and to ensure that incomes that are earned by public officers, whether Ministers or Justices, are commensurate with their income, I share the view that there should be more openness in asset declaration.

But as it is now, within the Constitution, we can only go through the Audit Service Report. With this comment, Mr Speaker, I support the Motion. *[Hear! Hear!]*

The Speaker: Yes, Hon James Agalga?

Mr James Agalga (NDC — Builsa North): Mr Speaker, I thank you for the opportunity to speak in support of the Motion to approve the President's nominations of the seven justices as Justices of the Supreme Court.

Mr Speaker, the eligibility criteria or the qualification for one to be appointed to the Supreme Court is stated clearly in Article 128 of the 1992 Constitution. And the relevant provision, Mr Speaker, is 128(4), which reads as follows:

“A person shall not be qualified for appointment as a Justice of the Supreme Court unless he is of high

moral character and proven integrity and is of not less than 15 years' standing as a lawyer.”

Mr Speaker, this is the eligibility criteria. The Committee, by majority decision, found that the Justices in question are all eligible. In fact, they are men and women of proven integrity and have met the 15-year minimum requirement at the Bar.

Mr Speaker, I know most of the Justices, and I will start with Justice Dzamefe. He has been at the Court of Appeal for 15 solid years. In fact, at the time of his nomination, he was the longest-serving Court of Appeal judge. He has distinguished himself both as a judge serving on the Bench and as one appointed by the President to serve on a Commission of Enquiry, which investigated the 2014 World Cup and its related issues.

Mr Speaker, Sir Dennis Adjei, a distinguished academic scholar, a lawyer of great repute, and a Justice of the African Court on Human and Peoples' Rights. He is a judge whose nomination to serve on the Supreme Court Bench, for me, is long overdue. The same can be said about Justice Gbiel Suurbaareh. These are Justices, Mr Speaker, I have appeared before in the course of my practice as a lawyer and can corroborate the findings the Ahiafor-led Committee has made.

Mr Speaker, the Minority in this House opposed the nomination of the Justices to the Supreme Court, and the grounds, the canvas for so doing, are captured in the statement read by the

Minority Leader, the Hon Afenyo-Markin. I want to read excerpts of the statement he read before the Committee. I quote:

“We convene while our Chief Justice sits suspended through procedurally questionable processes under Articles 146 and 296. An Executive who suspends one Chief Justice while installing seven new justices is not filling vacancies. It is reshaping the constitutional order. The appearance of institutional capture is inevitable and constitutionally catastrophic.”

And it goes on and on. Mr Speaker, this particular statement needs to be interrogated. I do not understand exactly what the Minority Leader meant when he sought to argue that the suspension of the Chief Justice should be the reason Justices cannot and should not be nominated to the Supreme Court.

Mr Speaker, he rightly cited Article 146, which contains the relevant provisions pertaining to the removal of a Chief Justice. In the entire statement he read before the Committee, he failed to point out which rule of procedure provided for under Article 146 was breached or violated.

Article 146 is very clear with respect to the removal of a Chief Justice. With your kind permission, Mr Speaker, I would refer to the relevant provision.

5.47 p.m.

Article 146(6) reads as follows:

“Where the petition is for the removal of the Chief Justice, the President shall, acting in the consultation with the Council of State, appoint committee consisting of two Justices of the Supreme Court, one of whom shall be appointed chairman by the President, and three other persons who are not members of the Council of State, nor members of Parliament, nor lawyers.”

Then, 146(10) reads as follows:

“Where a petition has been referred to a committee under this article, the President may—

(a) in the case of the Chief Justice acting in accordance with the advice of the Council of State, by warrant signed by him, suspend the Chief Justice.”

Mr Speaker, the procedure for dealing with petitions for the removal of a Chief Justice has been provided for explicitly. So, the President takes receipt of a petition for the removal of a Chief Justice based on certain allegations; then, the President constitutes the committee envisaged under Article 146. Even before the committee settles down to work, some advice is sought from the Council of State. The green light is given for the suspension and the President proceeds to suspend.

Mr Speaker, the Minority Leader says there are procedural breaches. Which of the procedures have been breached under Article 146? He failed in his statement to point out to the procedure which was breached. In fact, had the President refused or failed to suspend the Chief Justice, the President would have been in violation of Article 146, which violation could have formed the basis for his own impeachment? He, the President, would have been the one who would stand accused for constitutional violations.

Mr Speaker, the point I am making is that the argument by the Minority Leader that Justices of the Supreme Court should not be nominated or appointed merely because a Chief Justice has been suspended is not borne out of the law and the facts.

Mr Speaker, again, the point needs to be made that if it is about filling the courts—And he talks about the systemic—He talks about the Supreme Court has abdicated its constitutional, repeatedly refusing to intervene. Suits were brought before the Supreme Court and the Supreme Court dismissed the suits. An injunction application was moved before it, seeking to injunct the President from performing his constitutional mandate and the Supreme Court said one cannot injunct the President from discharging his constitutional mandate.

So, the fundamental question to pose is, how did the Supreme Court abdicate its responsibility in this matter? Is it because a Member from the Minority Side applied for the injunction

application but was refused which is why they are now making the argument that the Supreme Court had abdicated its constitutional mandate in that sense?

Mr Speaker, several decisions were handed down by the Supreme Court. In most of the cases, the verdict was unanimous: 7 - 0; 5 - 0. We, on this Side, never argued that the Supreme Court had abdicated its constitutional mandate. We criticised the reasoning on some of the decisions, but we never, at any point, stated that the Supreme Court, merely by sitting on a matter and declining to grant the reliefs sought, had abdicated its mandate.

Mr Speaker, with this, it is very clear that the statement that was made and the reasons contained therein for the decision taken by the Minority to reject the nomination of the President is clearly is not in conformity with the law. Maybe, we can talk about the politics, but as for the law and the procedure, the President is not at fault, but if it is about the numbers—They talk about the packing of the Supreme Court. Let us refresh our memory. President Akufo-Addo, within eight years, appointed 15 Justices of the Supreme Court and all 15 justices of the Supreme Court were approved by this House within a period of 8 years—**[Some Members of the Majority: Ei!]**

Mr Speaker, while in Minority, we never argued that the Supreme Court or the Judiciary was being subjected to state capture. We never said so. In respect of the Court of Appeal, President Akufo-Addo alone, within eight years, appointed 48 justices—**[Some Members**

of the Majority: *Ei!*—Yet, we did not talk about the capture of the Judiciary.

When it comes to the High Court, the situation is even more alarming. President Akufo-Addo appointed 113 justices of the High Court, yet we never accused President Akufo-Addo of attempting to capture the Judiciary. So, with these numbers, the appointment of 176 justices of the superior Court of Judicature by their own former Government, it does not lie in their mouths to finger President Mahama merely for nominating only seven Justices of the Supreme Court.

Mr Speaker, 15 minus seven is a huge number, so even before we get to the threshold where we can start talking about the packing of the Supreme Court, President Mahama has eight more to go. When he appoints eight more, he would have equalised the number that was appointed by President Akufo-Addo. It is only when that happens that it will lie in their mouth to say we should cap it; let us have a ceiling. Not until then, it is regrettable that they have refused to support the nomination of very distinguished juries. All the nominees are Justices of the Court of Appeal. In their case, we had a scenario where somebody was appointed from the High Court after having served for just a few months as a High Court judge.

These are justices of the Court of Appeal who have distinguished themselves. In fact, they served on the High Court bench for so many years. Some of us appeared before them and can bear testimony to the fact that they

made it to the Court of Appeal on merit and are proceeding to the Supreme Court, once again, on merit. Even I speak, I qualify to sit on the Supreme Court bench—*[Hear! Hear!]*—How much less somebody like Justice Sir Dennis Adjei, a Ghanaian Justice, who, on merit, made us proud by joining the African Court on Human and People's Rights? We should be proud of justices of his calibre.

Mr Speaker, so, with these few words, I support the Motion. *[Hear! Hear!]*

The Speaker: Minority Leader?

5.57p.m.

Minority Leader (Osahen Alexander Kwamena Afenyo-Markin): Mr Speaker, in honour of Justice Sophia Bernasko Essah and Professor Richard Frimpong Oppong, I say: the ravelling clouds shall not long be victorious. They shall not long possess the sky.

Mr Speaker, upon this foundation, I proceed to make my submissions opposing the Motion before this House for the approval of seven Justices to the Supreme Court.

Mr Speaker, as I contribute to the Report of the Appointment Committee that vetted and is recommending seven nominees to the Supreme Court of Ghana by majority decision, I would want this Committee to first acknowledge the diligent and detailed work of those nominees that appeared before us. Mr

Speaker, without doubt, these Justices distinguished themselves.

But while we acknowledge the diligent work of the Committee and the detailed Report before us, I must, Mr Speaker, address this House on matters of profound constitutional gravity that transcend the routine consideration of judicial appointments. The Report already recommends by majority decision, but the circumstances surrounding these appointments demand our most rigorous constitutional scrutiny.

Mr Speaker, this is not merely another parliamentary debate on appointments, it is a defining moment that will determine whether we remain faithful guardians of the democratic heritage of Ghana or become complicit witnesses to its systematic erosion. The very foundation of our constitutional democracy hangs in the balance as we consider this Report this very evening.

Mr Speaker, I dare say that there is a constitutional crisis before us. Even as we debate these appointments, our Chief Justice sits suspended through procedurally questionable processes that make mockery of Articles 146 and 296 of our Constitution. Let us be abundantly clear about what we are witnessing. It is an Executive that suspends one Chief Justice while simultaneously installing seven new Justices.

Mr Speaker, is this a routine filling of vacancy? No. It is rather orchestrating a fundamental reshaping of our constitutional order, and it is the reason,

without any urgency, the Report was laid today, and Government is in a rush to take this Report and use its might in numbers to approve them. The confluence of events is neither coincidental nor constitutionally neutral. For the first time in our Fourth Republican history, we face the specter of wholesale judicial transformation executed under the shadow of Executive overreach. The appearance of institutional capture is not merely unfortunate; it is inevitable, and constitutionally catastrophic.

The framers of our 1992 Constitution, in their profound wisdom, established a carefully calibrated system of checks and balances, precisely to prevent such concentration of power. The requirement of Article 144 for Judicial Council advice, Council of State consultation, and Parliamentary approval reflect deep understanding that judicial independence requires democracy's very cornerstone. Today, we must ask ourselves with brutal honesty, are we faithful stewards of their vision or are we presiding over its systematic destruction?

Mr Speaker, the breathtaking hypocrisy of our Friends in Government is hereby exposed by their very conduct. As I stated at the opening of the vetting of the nominees, the hypocrisy of this Government reaches staggering heights that insult the intelligence of every thinking Ghanaian. The same NDC that relentlessly opposed the nomination of Justice Sophia Bernasko Essah and Prof Richard Frimpong Oppong under President Akufo-Addo and cried incessantly that the Supreme Court was

bloated, now presents seven nominees simultaneously, without a hint of shame or self-awareness.

Where was their fervent concern about the court size when two eminently qualified Justices sought appointments? Where were their constitutional principles then? This gross dishonesty and rank opportunism reveals an administration driven entirely by political calculation, not constitutional principle.

When President Akufo-Addo nominated two distinguished legal minds, the NDC discovered urgent constitutional concern about judicial bloat. Now, with seven nominees presented *en masse*, they miraculously find compelling constitutional necessity. Such breathtaking inconsistency exposes a Government that treats our Constitution as a political convenience, embracing principles when expedient; discarding them when convenient.

This hypocrisy, Mr Speaker, is not merely embarrassing; it is constitutionally corrosive. It demonstrates that the NDC Government views judicial appointments not through the lens of constitutional fidelity but through the narrow prism of political advantage. Such an approach threatens the very foundation of judicial independence and constitutional governance.

Mr Speaker, we must confront an uncomfortable truth about the recent conduct of our Supreme Court. When fundamental principles of natural justice

face systematic violation in the suspension of the Chief Justice, our apex courts retreated into comfortable silence when constitutional courage was desperately needed. The reluctance of the Supreme Court to intervene in manifestly flawed processes being used to remove the Chief Justice represents a troubling departure—

The Speaker: Hon Minority Leader, please, the provision on relevance comes to play. Now, you are addressing something which is different from what is before the House. You are addressing the issue of the suspension of the Chief Justice. What we have are nominees for you to give prior approval for appointment to the Supreme Court. So, focus on that one, not on the other issue, please.

Osahen Afenyo-Markin: Very well, Mr Speaker. We always take a cue from you.

When confronted with the procedures that plainly offend constitutional principles, the constitutional timidity sends a chilling message about self-preservation over constitutional principle. Mr Speaker, we ask, are these nominees going to add up to what we are already experiencing? Mr Speaker, what is happening currently, which makes it curious for us to consider the additional nominees, is not merely disappointing; it is constitutionally inexcusable.

The Supreme Court, where these nominees are supposed to join, does not exist to preserve its own comfort or avoid controversy. It exists to courageously

uphold constitutional principles, especially when doing so is uncomfortable or politically inconvenient. The question is, are these nominees ready? Mr Speaker, we dare say that so far, from what we have been experiencing, it appears that the court has abdicated its constitutional duty, precisely when Ghana needs its protection most. What we have witnessed is an institution that has declined multiple invitations to exercise the courage required to restrain Executive overreach. Are these nominees able to challenge Executive overreach?

The institutional cowardice, though perhaps humanly understandable, represents a fundamental failure of constitutional guardianship. The people of Ghana deserve better and expect these nominees to do better. They deserve Justices who understand that judicial independence is not a privilege to be enjoyed but a responsibility to be exercised with unbending resolve.

6.07 p.m.

Mr Speaker, we in the Minority, considering the circumstance of the appointment whereupon the President wrote directly to the Judicial Council and even directed them to expeditiously consider his nominees, find that it is such a rich circumstance that compromises the independence of these nominees.

Mr Speaker, the past procedure had always been that nominations would come from various interest groups within the legal fraternity, the Judicial Council

would deliberate upon and make a recommendation to the President for him to exercise his power of appointment. This is not what happened in this circumstance.

Mr Speaker, by these appointments, we hold a view that the doctrine of Separation of Powers is under siege. Separation of Powers, detailed across Chapter 8, 10 and 11 of the 1992 Constitution, is not an academic abstraction, it is democracy's immune system. When one branch accumulates excessive influence over another, the entire constitutional organism suffers. The independence of our Judiciary is not a professional privilege granted to judges. It is a fundamental right belonging to every citizen who seeks justice in our court. We dare again repeat, under the circumstance of these appointments, are they going to live up to this expectation?

Mr Speaker, history teaches us that democracy can collapse through dramatic military *coup d'état*. However, in situations where there is a gradual capture of independent institutions by political forces, democracy also collapses. We must therefore vigilantly ensure that the highest court remains a temple of justice, not a forum for political convenience.

Mr Speaker, the then NDC in opposition said that there must be merits and seniority in the appointments. What did we see? For the same people who complained that in appointments to the Supreme Court, there must be seniority in their consideration, one of the judges

said he barely spent two years at the Court of Appeal. There are seniors at the Court of Appeal, so where in lies the principles of the NDC? Where in lies the consistency of the NDC? They attacked the Akufo-Addo administration for not being fair. They had the opportunity but did they address their so-called system of unfairness? What are they doing?

Mr Speaker, the sacred trust of constitutional guardianship lies squarely in the hands of our judges. To the nominees who now await our final approval, let me say to them directly. They seek to join an institution whose legitimacy rests not on popular mandate, but on public confidence in their commitment to constitutional fidelity. If confirmed by the Majority, which they are desperate to do, the nominees will become guardians of our fundamental law, trustees of our democratic values, and protectors of rights that belong to all Ghanaians, rich and poor, powerful and powerless alike. They should not be moved by the might of the Government to ponder to them.

Mr Speaker, the Supreme Court's authority derives from its moral standing, not from political alignment. Citizens must believe that when they approach the courts, they encounter justices committed to the law's supremacy, not to any earthly master. This confidence, once lost, proves extraordinarily difficult to restore, and this, I would want our nominees to think about deeply and reflect on.

To our nominees, I say to them, they will inherit a Supreme Court whose

reputation, by virtue of the manner of their appointment, is being brought to question. Their duty is to weather the many storms and ensure that they pass the greatest test. Their task is not merely to occupy seats on that bench, but to elevate its standing through exemplary service that demonstrates judicial appointment based on merit, not malleability.

Mr Speaker, let me, in my further submission, proceed to address Article 125 of our Constitution. Article 125 declares that;

“Justice emanates from the people and shall be administered in the name of the Republic by the Judiciary which shall be independent and subject only to this Constitution”

This independence is not abstract, it must manifest in every decision, every interpretation, and every interaction with other branches of government.

True judicial independence requires both institutional courage and intellectual humility. It means deciding cases based on constitutional text and sound precedent, not political preference. The Government has created an impression that it is sending these nominees merely on the basis of political preference to the Supreme Court. We do not need this as a country. The Judiciary must know that in protecting minority rights against majoritarian excesses, it has to deliver judgement that thoroughly perhaps can disappoint its appointor,

because the Constitution demands nothing less.

Mr Speaker, our Colleagues made allegations of court packing, and this they used to physically prevent the laying of the Report in the Eighth Parliament. Today, what do we see? We see a genuine public anxiety about what the NDC is doing, which questions judicial independence. These concerns can only be dispelled through demonstrated commitment to constitutional principles over political expedience, through words spoken today and judgments delivered tomorrow.

Mr Speaker, we are however happy, in spite of our opposition in principle to these nominations, with views expressed by each of the nominees on Article 66 of our Constitution. Mr Speaker, each one of them expressed a genuine view on Article 66 during the voting process. When confronted with their question, all seven of them made it unequivocally clear that there is no interpretative ambiguity arising from its language. Their unanimous position that, “A person shall not be elected to hold office as President of Ghana for more than two terms” means precisely what it says, no more, no less. It is constitutionally sound and reassuring.

This provision admits of no creative interpretation, and any attempt to circumvent this constitutional limitation will represent judicial legislation of the most egregious kind. We pray that they will put their words into action when they eventually get it.

The Speaker: Hon Minority Leader, once again, I remind you of relevance. The subject matter before us today has nothing to do with second term or third term of a presidential election. Relevance. Let us deal with the issues.

Osahen Afenyo-Markin: Mr Speaker, with respect, ordinarily, I would not challenge you. The report captures Article 66. Mr Speaker, my submission is coming out of the report and it captures Article 66, but I would abide by your — Mr Speaker, if you — *[Interruption]*—

Mr Speaker, I must remind our distinguished nominees of the solemn oath they took before expressing their views to the Appointments Committee. They swore to speak truthfully and honestly about their constitutional beliefs and judicial philosophy. The people of Ghana witnessed their categorical statement on Article 66, and they must not be seen changing these views upon appointment to the Supreme Court by the Majority.

6.17 p.m.

Let me be absolutely clear, the constitutional commitments they demonstrated before the Committee must remain unwavering throughout their tenure at the Judiciary. Citizens can only have confidence if our judges who are before us today get the courage to consistently maintain the views they expressed at the Appointments Committee hearing.

Mr Speaker, we as a Parliament stand at crossroads. Decisions we make today will either restore public confidence in our Judiciary or mark the moment when Ghana's highest court became an instrument of Executive convenience rather than constitutional conscience.

Let me issue this clarion call to our Colleagues opposite me who are so determined and so desperate to go through this approval process. Mr Speaker, what we have for them—we, the Minority, will not join them—*[Uproar]*

The Speaker: Please, you may continue.

Osahen Afenyo-Markin: We are not going to join them in their inconsistency in principles. *[Uproar]*

Future generations of Ghanaians will judge the stewardship of our constitutional heritage and complicit in its erosion. They will ask whether we possess the courage to defend judicial independence when it faced its gravest threats or whether we chose comfortable silence over constitutional duty. History recalls that democracies die not through dramatic collapse but through gradual institutional surrender. Each compromise, each accommodation, and each failure to resist constitutional violation contributes to democratic decay. We must not be the generation that chose convenience over constitutional principle and we say that the Majority is choosing political convenience over constitutional principle.

Mr Speaker, we have already stated in page 137 of the Committee's Report and same can be seen in the final recommendation at page 138. Mr Speaker, with your leave, I beg to quote:

“In conclusion, all Members of the NPP, Minority were opposed to and voted against the nomination of all the Justices on the grounds that:

i. the appointment of seven new justices was inconsistent with the...”

NDC's own principle.

We do not see it as filling vacancies but we see it as reshaping a constitutional order at the very time that they have suspended the Chief Justice and they seek to dismiss her.

Mr Speaker, we also hold the view that the Supreme Court abdicated the constitutional duty and remained silent when fundamental principles of natural justice were violated. It is one of our reasons for opposing these seven nominations.

Mr Speaker, again, we take the NDC by their own word. In the past, they said there was a judicial bloat. What has become of that argument? What has become of those two Justices whose vetting was completed, the Report was to be laid and the NDC in opposition, in Minority, physically prevented the laying of the Report?—*[Uproar]*—And if I should quote the then Minority Chief Whip: “Mr Speaker, if the Majority lays this Report, there will be chaos in the House”.

Mr Speaker, our decision in opposing and voting against all the nominees is not against the person of these nominees. Mr Speaker, unfortunately, they are eating a forbidden fruit. The fruit—The tree, that is bearing them is poison. It is a poisoned tree and the fruit thereof, which is they, themselves, cannot be edible.

Mr Speaker: Hon Minority Leader, may you now conclude.

Osahen Afenyo-Markin: Mr Speaker, I conclude by saying that while we stand to rely on the rules of this House to reject these nominees, we note that even the Majority with their 187, on this day, that they want to push through, have not been able to commandeer their numbers. They do not even have the numbers to take a decision.

Mr Speaker, at the right time, an application will be made to challenge them that they do not have the 138 to take decision and they cannot take decision on this matter today.

Mr Speaker, I so submit.

Thank you very much. [*Hear! Hear!*]

The Speaker: Hon Majority Leader?

Majority Leader (Mr Mahama Ayariga): Mr Speaker, let me start by making some basic corrections of some mistakes in the Report. Page 1 of the Report, line 2 of the Executive Summary mentions six nominees but there are actually seven nominees and that error is also repeated in page 2, line 3. So just those basic corrections.

Mr Speaker, mine is not to bore the House with a very lengthy statement about matters that do not bother on what is before us. Mr Speaker, what is before us is the approval of seven nominees to the Supreme Court. As a House, our basic responsibility is to find out whether the President acted in accordance with the Constitution or not. That is the first fundamental responsibility of the House.

6.27 p.m.

Mr Speaker, at no point has it been canvassed that the President has acted unconstitutionally. So, the Constitution has been complied with.

Mr Speaker, the second set of questions that we ask ourselves would be the competence, the capacity and the ability of the nominees. I have listened to the Minority Leader and Members of the Minority Side who spoke before me, and they all clearly confirmed that the nominees are very competent. Indeed, let me repeat what the Report, which they agree with, says:

“Upon careful deliberation, the Committee notes that all the nominees demonstrated outstanding competence, deep knowledge of the law and a firm grasp of judicial ethics. They addressed questions posed by the Committee with professionalism, clarity and intellectual rigour, reflecting their capacity to uphold the independence, integrity and

dignity of the highest court of the land.”

Mr Speaker, this is the testimony of the Committee made up of both the Majority and the Minority Members. This part of the Report is not disputed. And they add that:

“The Committee is satisfied that the nominees possess the requisite qualifications, judicial temperament and commitment to constitutional values expected of Justice of the Supreme Court.”

So again, the questions that the Minority Leader raised about whether they can uphold the independence of the Constitution or whether they can uphold the balance that is expected of the Constitution between the Legislature, the Executive and the Judiciary, is equally answered by this paragraph, which says that the Committee is satisfied. The Committee, made up of the NDC and NPP Members, is satisfied that the nominees possess the requisite qualifications, judicial temperament and commitment to constitutional values expected of Justices of the Supreme Court. Mr Speaker, on the basis of this, I do not think we should belabour the point about whether or not we should approve these nominees. They are obviously qualified, capable, competent and will do the job. I want to assure the Minority Leader that all the questions that he asked us have been answered in the Report.

Mr Speaker, except to add a few things, my Colleague, Hon Agalga, has

pointed out to this House that within the eight-year period, the NPP, led by President Nana Akufo-Addo appointed 15 Supreme Court justices; appointed 48 Courts of Appeal justices; appointed 113 High Court justices. *[Uproar]* Mr Speaker, after making all these appointments, in the dying days of his tenure as President, he anticipated that some justices would be retiring. And in anticipation that they would be retiring, he then brought nominations to this House in order that when they retire, he would still have the numbers that he wants to have on the Bench. As a Minority, we took a position that we did not know who would become the next President after Akufo-Addo. But we believed that Akufo-Addo had had enough opportunities to fill the Supreme Court and therefore, since it was not the case that we did not have the minimum number to constitute a Bench, he should leave the situation like that until the next President assumes office and also has an opportunity to at least appoint the two nominees that he wanted to appoint. Mr Speaker, this really was fundamentally the basis of the objection of the Minority at that time.

Nevertheless, Mr Speaker, the Minority joined the Majority at that time and we vetted the two nominees. We voted the same way they voted today. They are voting against the nominees. We also voted against the nominees and they voted for the nominees. A report was written and the Report was brought to this House. The only reason the nominations did not go through was that he, as Majority Leader, failed to have the Report taken in this House. *[Uproar]* Mr

Speaker, I am holding a copy of the Report. Mr Speaker, 38th Report of the Appointments Committee on His Excellency the President's Nominations for Appointment as Justice of the Supreme Court, September 2024.

Mr Speaker, the Report was signed by no less a person than the person who sits today as the Deputy Minority Leader, Ms Patricia Appiagyei, who was then the Vice Chairperson of the Appointments Committee. She was the Vice Chairperson of the Appointments Committee and she signed the Report.

[Uproar] The Report recommended that the matter should be decided by this House. Osahen Afenyo-Markin was the Majority Leader and he failed to bring the Report for us to take it in this House to determine the fate of the two justices. *[Uproar]*

Mr Speaker, I am surprised and baffled that a person who had such an excellent opportunity to have the two nominees to the Supreme Court taken in this House and who failed and refused to bring the Report for us to take, sits here today and accuses the NDC for rejecting two nominees. We did not reject them. We voted against them at Committee level and they refused to bring the Report. He failed and I am surprised. I thought he would have glossed over that part of the history of this House because that history is against him.

Mr Speaker, I was also of the mind that perhaps we should have fewer numbers in the Supreme Court. I am being asked today what has changed; I was influenced by the fact that most of my

constitutional jurisprudence was taught to me in the United States. So, I am quite attached to the character of the US Supreme Court where we have just nine judges. Mr Speaker, this was my considered view and indeed, when the Appointments Committee sat, I vehemently canvassed that view; Ms Appiagyei was there. This was until I came across a letter written by the current suspended Chief Justice who explained thoroughly and satisfactorily the need for us to reconsider our view on the matter.

Mr Speaker, Justice Torkornoo, the suspended Chief Justice, wrote a letter on 14th February, 2024, and signed the letter in her capacity as Justice Gertrude Sackey Torkornoo, Chief Justice at that time. Mr Speaker, it is an 11-page letter to the President but I will confine myself to the last paragraph and read just that.

6.37 p.m.

Mr Speaker, it says:

“It is for the above reason that the Chief Justice requests His Excellency the President to consider the appointment of an additional five Judges to the Supreme Court to ensure the speedy resolution of cases and speedy delivery of final decisions for the Nation. This should bring the current number of the Supreme Court to 20 judges, including the Chief Justice. This number will enable the setting of three undisturbed panels of five, two panels of seven or nine judges to

work on any set of cases on a given day, depending on the jurisdiction of the court being exercised in any given week, thereby reducing the spectre of constantly reconstituting panels during a day's sitting and its effect on pre- and post-hearing conferences''.

In that letter, the Chief Justice had made a very strong and compelling case why the Supreme Court should have not less than 20 judges.

Mr Speaker, after reading the letter, I became convinced that the court needs to have, at least, 20 judges. I am surprised that the Minority Leader who, since a petition was lodged against the suspended Chief Justice, has been a key advocate for the suspended Chief Justice and has extolled her virtues, has indicated that she is the best thing that ever happened to the jurisprudence of this country. I am surprised that the Minority Leader is opposed to one major recommendation that she made that the court should be constituted by 20 judges—[*Hear! Hear!*]—I am surprised that he will go to such high heavens to extol her, yet he will be against one key legacy that she sought to leave, which is recommending that we have 20 Supreme Court Judges. But I can understand him; having failed to process two, he cannot understand why we, on this Side, will succeed in processing seven in one day—[*Hear! Hear!*]—Unfortunately, it has to happen. Today, we will approve

seven nominees to the Supreme Court.
[*Hear! Hear!*]

Mr Speaker, on that note, I urge Colleagues to vote adopting the Report. I plead with my Colleagues opposite not to walk out; they should sit, and let us vote. I can see that, in principle, they are not against the nominees. They have extolled their virtues here, except that because you did not succeed in approving the two, they do not see why we should approve seven. But that is our luck, and they would have to live with that.

Thank you very much, Mr Speaker.
[*Hear! Hear!*]

Question put and Motion agreed to.

The Speaker: Hon Members, on your behalf and on behalf of the Parliament of Ghana, I congratulate the seven judges for their recognition, for the public hearing and for the prior approval given by this House. I recommend them into the hands of His Excellency the President to proceed to appoint these judges as Justices of the Supreme Court of Ghana. [*Hear! Hear!*]

Yes, Hon Habib Iddrisu?

Alhaji Habib Iddrisu: Mr Speaker, I struggled to catch your eye before you put the Question.

Mr Speaker, I want to draw your attention to Standing Order 139. I am

fortified by the Constitution in Article 104(1). With your permission, I will just read Article 104 of the Constitution:

“Except as otherwise provided in this Constitution, matters in Parliament shall be determined by vote of the majority of members present and voting, with at least half of all the members of Parliament present.”

Mr Speaker, I struggled to catch your eye. At the time you were putting the Question, we were not up to 138 to form a decision quorum and the decision of the voice vote in this respect, however loud, was not 138. I struggled to catch your eye, but no matter how loud the “Hear! Hear!” was—Mr Speaker, no matter how loud, I had done my counting before raising this issue; we were 128.

Mr Speaker, we were not up to 138 as a decision quorum. I invite you, as a constitutional matter has been raised, with regard to the decision that we have just taken and I urge you, Mr Speaker, to trigger the necessary process to satisfy Article 104 of the Constitution.

6.47 p.m.

Mr Speaker, I so submit.

The Speaker: Hon Member, do you have your Standing Orders with you? Please, kindly read Order 126(2). Please,

may you be on your feet and read the Order to the hearing of everybody.

Alhaji Habib Iddrisu: Mr Speaker, Order 126(2) reads:

“Whenever the Speaker addresses the House, any Member standing shall immediately resume the Member’s seat, and the Speaker...”

—[*Interruption*—Colleagues, let me finish.

Mr Speaker, they are disrespecting your directives, but let me read. Mr Speaker, Order 126(2) reads:

“Whenever the Speaker addresses the House, any Member standing shall immediately resume the Member’s seat, and the Speaker shall be heard in silence.”

Mr Speaker—[*Uproar*]

The Speaker: Order! Order!

Hon Members, please. Hon First Deputy Minority Whip, were you on your feet when I was addressing the House?

Alhaji Habib Iddrisu: Mr Speaker, I was on my—[**Some Hon Members of**

the Majority: Yes or No.]—Mr Speaker, that is how a Majority with a lot of first timers behave; I can understand.

Mr Speaker, with respect, you were making a ruling and I needed to draw your attention to a constitutional matter. So, I was on my feet, and if I offended the Orders, I know you are our father and you will guide me on certain things. I was drawing your attention to a constitutional matter, that was why I was on my feet.

So, Mr Speaker, if I offended you on this Order, I sincerely apologise for that. Mr Speaker, it was not an address. I know you were making a ruling and I needed to draw your attention to a constitutional matter; so, I did not take it as an address, but I sincerely apologise.

The Speaker: Hon Member, what ruling was I making?

Alhaji Habib Iddrisu: Mr Speaker, the decision on the voice vote.

The Speaker: Is that my ruling?

Alhaji Habib Iddrisu: Mr Speaker, my understanding was that—

The Speaker: Your understanding of me announcing the decision of the House amounts to my ruling?

Alhaji Habib Iddrisu: Mr Speaker, I was on my feet before you announced the

decision. So, in your announcement, I wanted to catch your eye to draw your attention to a constitutional matter, that they do not have 138 Members. Mr Speaker, like I said, if I offended you, I apologise sincerely, but it was on a constitutional matter that I rose.

The Speaker: Hon Member, do not allow yourself to be misled by any person—*[Laughter]*—I am using your own answers to ask the questions; so, do not be misled by any person. I want to advise that in many of these situations, please, do not react; respond. There is a vast difference between reacting and responding. You can cross-check. What you were doing was to react because somebody is misleading—*[Laughter]*

Hon Members, with your kind permission, I want the First Deputy Speaker to take the Chair. At least, I need to, for health reasons, stretch my limbs. I have been seated for hours.

In the meantime, is there any other Business? Yes, Majority Leader?

Mr Ayariga: Mr Speaker, if we could take the item numbered 19.

Alhaji Muntaka — *rose* —

The Speaker: Hon Minister for the Interior, were you on a point of order?

Alhaji Mohammed-Mubarak Muntaka: Mr Speaker, I was on a point of relevance.

Mr Speaker, our Colleague, the First Deputy Minority Whip, emphasised and repeatedly put into the records of this House that at the time that we took the vote, the Members in the Chamber were around 120. I can say in confidence that those of us in the Chamber are more than 170— *[Hear! Hear!]*—So, it should not go into the records that we were less than the number 139 required to take a decision. We should not let that stand in the records. This is because the way he repeated it, if we do not challenge it for it to be recorded in the official records of the House that it is not true that we were 120, it will stand in the records as though you did the wrong thing— *[Hear! Hear!]*—Mr Speaker, I think you did the right thing.

Thank you very much.

Mr Boamah — *rose* —

The Speaker: Hon Members, the issue of quorum is not just a matter of fact; it is a matter of law. So, the fact that somebody just mentions a number in the House is not conclusive of the issue of quorum in the House. The fact that he was just mentioning 120 is not the basis for any research fellow to rely on to arrive at the conclusion that the House

was improperly so constituted and was not capable to lawfully take a decision.

That is the position I take, and that is why I could not take away his right of free speech on the Floor. *[Laughter]* He has that right, a right of free speech, provided he does not offend the rules of the House. So, please, allow him.

6.57 p.m.

The Speaker: I saw Mr Patrick Yaw Boamah on his feet, yes?

Mr Patrick Yaw Boamah: Mr Speaker, there is a very important Report that we need to take right now. It is part of the DPOs and the Report was distributed last Friday. It is on the Corporate Insolvency and —

The Speaker: Yes, the First Deputy Speaker will take the Chair, so he will go on.

Yes, Minority Leader?

The First Deputy Speaker will take the Chair.

Osahen Afenyo-Markin: Mr Speaker, whether he would have the jurisdiction on this matter is another matter. But, Mr Speaker, I have an indication from you, so I will not pursue. But just for the record, the Member, however lame his application was, had raised a constitutional issue. Mr Speaker,

I rest my case. He invoked your mandate under Article 104 and did say for the record that we did not have the quorum to take decision.

Mr Speaker, that was the Member's application but Mr Speaker, you are the Presiding Officer, who are we to challenge you when you do not make pronouncements on a constitutional matter?

Mr Speaker, we cannot challenge you but he made an application.

The Speaker: Hon Minority Leader, you know the rules. After a decision has been taken, you are telling me that he has made an application. The rules are very clear on that. The rules of engagement of this House does not permit him to make such an application after a decision has been taken by the House. You know it. Do you want me to still—

Yes, go on.

Mr Ayariga: Mr Speaker, some matters are not just about the rules. They are about our integrity.

Mr Speaker, we debated. You put the Question. At the time you were putting the Question, nobody attempted to arrest the putting of the Question. No — *[Interruption]*— There was no attempt.

Mr Speaker, —*[Interruption]*—listen carefully. You put the Question —

The Speaker: Hon Majority Leader, please resume your seat. Hon Members, I was presiding. None of you was presiding over the proceedings and I know what happened. I need nobody to tell me. I have taken the position; I have given indication and I believe that it has been accepted in good faith. Let us end it here and let us move on. *[Hear! Hear!]*

First Deputy Speaker to take the chair.

7:05p.m. — [MR FIRST DEPUTY SPEAKER IN THE CHAIR]

Mr First Deputy Speaker: Hon Members, Order!

Yes, Leader, any indication?

Mr Ayariga: Mr Speaker, I think the Ministers have been here for long to answer Questions and we varied the order of Business to enable us to take other Businesses while the Ministers waited.

So, Mr Speaker, if we can now go back and at least give the Ministers an opportunity to answer their Questions.

Mr First Deputy Speaker: Yes. I have seen the Minister for Environment, Science and Technology seated. Hon Leader, which Question are we taking?

Hon Leader, do we vary the order of Questions? We have Urgent Questions.

Mr Ayariga: Mr Speaker, that is so. If we can ask the Questions relating to the Minister for Environment, Science and Technology—the Deputy Minority Leader has some very important Questions. So, Mr Speaker, I think we can take those Questions and then continue; the Questioned numbered 45.

Mr First Deputy Speaker: Yes, Minority Leader. The application is to vary the order of Questions and take Question numbered 45.

Osahen Afenyo-Markin: Mr Speaker I thought that because the Minister for Gender and Social Protection has many Questions to answer and also because she is a woman, on the basis of gender, she would be given the opportunity to answer hers first. However, this is a House of Seniority. So, since Dr Murtala Muhammed Ibrahim is also here and he wants to take his first, Mr Speaker, I would not oppose to the application by the Majority Leader. Our Colleagues are ready to proceed with their Questions.

Mr Speaker, thank you.

Mr First Deputy Speaker: Hon Members, the Hon Minister for Environment, Science and Technology has been scheduled to answer Questions. He is here to respond to the Question. May we proceed to look at the Question numbered 45 standing in the name of Mrs Patricia Apiagyei, Member of Parliament for Asokwa. You have the floor.

ORAL ANSWERS TO QUESTIONS

MINISTRY OF ENVIRONMENT,
SCIENCE AND TECHNOLOGY

Commissioning and Operationalising the CNC Machine Tooling Project

Ms Patricia Appiagyei (NPP—Asokwa): Mr Speaker, I beg to ask the Minister for Environment, Science and Technology when the Computer Numerical Control (CNC) machine tooling project will be commissioned and made operational.

Mr First Deputy Speaker: Yes, Hon Minister, you have the floor.

Minister for Environment, Science and Technology (Dr Murtala Muhammed Ibrahim): Mr Speaker, the Computer Numerical Control (CNC) Machine Tooling Centre Project is part of the broader Foundry and CNC Machine Tooling Centre Project, initiated by the Government of Ghana under the Ghana CARES Obaatanpa Programme to promote industrialisation.

The Ministry of Environment, Science, and Technology (MEST) was tasked with designing, constructing, and establishing a Public-Private Partnership (PPP) to operate a modern Jobbing Foundry and a state-of-the-art Machine Tooling Centre utilising CNC technology. To execute this project, the Ministry has engaged the Public Works Department (PWD) and Architectural and Engineering Services Limited (AESL) for the construction, supply, and installation of plant machinery and equipment. The ultimate goal is to build upon this initiative to enhance national capabilities in engineering and machine tooling, reduce reliance on imports, create jobs, and improve productivity.

Project Scope

Mr Speaker, the project has been awarded in phases, with Phase I focusing on the construction of the Main Foundry Building along with ancillary works. Phases II and III involve the construction of the Machine Tooling Centre, Pattern Shop, Canteen, and additional ancillary infrastructure, including a scrap yard,

weighbridge, gatehouse, powerhouse, external power supply, access roads, water systems, and administration blocks. Once completed, the facility will be used for metal casting and the installation of CNC machines for high-precision manufacturing. Project objectives

- **Strengthen Public-Private Partnerships (PPP):** Foster collaboration between the Government and the Private Sector in targeted industries to accelerate local manufacturing, enhance competitive import substitution, and expand light manufacturing exports.
- **Boost Agricultural Productivity:** Promote local value addition through agro-processing and aim to supply over 50 per cent of agro-processing equipment to the agriculture sector within five years.
- **Develop a Goods-Production Industrial Sector:** Lay the foundation for a robust manufacturing industry focused on local production.
- **Create Employment Opportunities:** Support the establishment of local businesses, generating significant job opportunities for both rural and urban populations.
- **Reduce Foreign Exchange Outflow:** Minimise dependency on imported goods by increasing local production and enhancing self-sufficiency.

- **Expand Export Potential:** Produce for export within the ECOWAS market, strengthening regional trade.
- **Leverage AfCFTA Opportunities:** Capitalise on the African Continental Free Trade Area (AfCFTA) to expand market access and boost industrial growth.

Market Analysis

Mr Speaker, in 2019, Ghana's imports of cast articles of iron and steel significantly exceeded exports, with imports exceeding exports by over 33 times. This highlights a significant market opportunity for domestic production.

- **Import Trends:**
 - From 2011 to 2013, imports of cast iron and steel experienced substantial growth, increasing from US\$9.1 million to US\$32.9 million, representing a 262 per cent rise.
 - While imports decreased by 34 per cent by 2017, they gradually regained growth, reaching US\$14.1 million in 2019, driven by increasing demand from the construction and manufacturing sectors.
 - In 2019, 63 per cent of imports comprised grinding media (steel balls) for the cement and mining sectors,

and 29 per cent consisted of malleable cast articles for the construction and agricultural mechanisation sectors.

- India was the largest import source, accounting for US\$8.7 million (61 per cent) of imports in 2019. The United Kingdom was the second-largest source, contributing US\$2.81 million (20 per cent). To capitalise on this market opportunity, a new foundry and CNC machine tooling centre (MTC) are proposed.

- **Foundry:**

- **Production Capacity:** Designed to produce a minimum of 100 tons of grey and ductile cast iron products per month. The induction furnace has a minimum melting rate of 4 tons per hour, with an expected maximum of 6 tons per hour. The Foundry is a sand-casting process and outputs near-net-shaped metal parts.
- **Products:** Will focus on producing grey and ductile cast iron products, including six grades of grey cast iron and four grades of ductile cast iron. Will also produce Compacted Graphite Iron (CGI) or Vermicular Graphite Iron (VGI). Target

markets include automotive, construction, post and pre harvest agriculture, mining, oil & gas. CNC Machine Tooling Centre:

- Services: Will provide CNC precision machining and finishing solutions for a wide range of metal parts, including cast iron, steel, stainless steel, alloys, titanium, and aluminium.
- Products: Will produce spare parts and components for automotive, mining, construction, post/pre harvest agro-processing, food-processing, oil & gas, and machinery's replacement parts.
- Capabilities: Will offer CNC precision machining of metal parts, additive manufacturing (3D printing metals and plastics) services, using CAD-CAM-CAE technologies will offer CNC part programming, [17] part/machine assemble design services, and reverse back engineering of obsolete and difficult to get replacement parts.
- Materials: Will utilise various materials in different forms and sizes, including cast iron parts from the Foundry, round bar, tube, plate, Sheetmetal, and forgings. Mr Speaker, the foundry will supply grey and

ductile cast iron nearnet-shaped sand-casting parts to the CNC MTC as input raw materials for further machining. Both the foundry and the CNC MTC will target common sector customers.

Mr Speaker, the Foundry and CNC Machine Tooling Centre (MTC) will manufacture key products which include agricultural machinery parts like shafts, pulleys, and pump casings; petroleum industry components such as valves, pipes, and bearings; and automotive parts including engine blocks, brake discs, and gearboxes. Additionally, the Centre will produce construction fittings, ceramic and refractory moulds, and manufacturing tools, that will support Ghana's industrial growth and technological advancement.

Employment

The project after completion will provide approximately 5,191 jobs with 691 direct and 4,500 indirect jobs with the following breakdown:

- Machine Tooling Centre: Plans to employ 75 staff in year 1, 58 in year 2, and 58 in year 3, totalling 191 employees.
- Foundry: The number of foundry employees is not specified but will likely fall between the employment levels of small-scale foundries (approximately 500 workers) and large-scale steel foundries

(approximately 4,500 workers) in Ghana.

Operations

- **Shifts:** Both the foundry and CNC Machine Tooling Centre are expected to operate 24 hours a day, 7 days week workings with continental 4 On / 3 Off shifts, with three times 9-hour shifts per day.
- **Order-Driven:** Operations at both facilities will be order-driven, with staffing levels adjusted accordingly. And these will be based on internal markets research, in particularly high quantity running parts.

Mr Speaker, construction began in April 2020 at the Ghana Atomic Energy Commission. The project was initially scheduled for completion within two years, but work was halted in 2021 due to funding challenges. Work resumed in 2024 after the Ministry secured some funding; however, the funds obtained were insufficient to complete the project. Contractors' Interim Payment Certificates issued since last year is yet to be honoured. Status of completion and the way forward

Mr Speaker, after resuming office, on 13th February, 2025, I paid a working visit to the site. The overall progress of the project is currently at 76 per cent. Phase I equipment has been procured and is in storage, awaiting installation. Phase II equipment has been ordered and is currently undergoing payment processing. MEST will work with the

Ministry of Finance to ensure the timely completion and operationalisation of the Foundry and Machine tooling centre. Estimated cost for completion is GH¢ 305,550,01.00. I intend to secure the remaining necessary funding to complete the project. With the required funding in place, the physical works and installation of all equipment will be completed by September this year, and the facility will be commissioned before the end of the year. Additionally, I plan to seek Cabinet approval to engage a private sector operator to operationalise the facility.

Hon Leader and former Minister at the Ministry of Environment, we are very hopeful that the Ministry of Finance has actually released some money for us and by September, we would have finished with the entire structural work and hopefully by the end of the year, sometime December, we should have the project commence works.

7.07 p.m.

Mr First Deputy Speaker: Hon Members, Order!

Hon Members, may you humbly resume your seats. Hon Member, please resume your seat.

Yes, any supplementary?

Ms Appiagyei: Yes, Mr Speaker, I have a follow-up.

First, I want us to make a correction over here, I did not really have the indication that it was GH¢305 million, because it is not rightly spelt out.

He mentioned that they are expecting the Ministry of Finance to advance that money, I think he indicated September and most likely the end of the year for the completion of the project. Do we have his assurance that definitely by the end of the year, the project would commence?

Thank you.

Dr Ibrahim: Mr Speaker, I am very convinced. Initially, it was GH¢290 million so, in the Budget which was read, that was taken care of. Some monies have actually been released, and hopefully by next week, we shall be advancing some monies for the payment to Architectural & Engineering Services Limited (AESL) and Public Works Department (PWD). So, I am very convinced. As I speak to you, the contractors are on site working and when I visited the last time, it was about 76 per cent completed. I am very hopeful that by September, we should finish with the entirety of the project. The machinery has already been brought in and they are set. What is left to be done by PWD is after AESL finishes with the entire project, the structure, the roads, the canteen and everything, then PWD has the responsibility to install the machines which are already available. So that is why I am very convinced that by the close of this year, I shall be inviting the Hon Leader to come and witness the commencement of the Boundary Project.

Thank you, Mr Speaker.

Ms Appiagyei: Mr Speaker, the Minister has given a very elaborate position on the Project and I thank him very well for responding to the call of the House.

Thank you.

Mr First Deputy Speaker: Thank you, Hon Deputy Minority Leader.

Hon Members, let us proceed to Question Number 47 standing in the name of Hon John Darko, Member of Parliament for Suame.

Steps to Address Plastic Waste Menace

Mr John Darko (NPP— Suame): Thank you very much, Mr Speaker.

I beg to ask the Minister for Environment, Science and Technology, the steps the Ministry is taking to address the plastic waste menace in the country.

Thank you.

Mr First Deputy Speaker: Yes, Hon Minister?

Minister for Environment, Science and Technology (Dr Murtala Muhammed Ibrahim): Thank you, Mr Speaker.

Mr Speaker, it is estimated that Ghana generates around 0.84 million tonnes of municipal plastic waste annually. As of this morning, the figure has actually been revised, it is now 1.1 million metric

tonnes of plastic waste annually increasing by 5.4 per cent annually. Owing to the rapid increase in the Ghanaian population, plastic waste is growing at 2.2 percent per annum alongside a 3.4 per cent increase in per capita plastic consumption. Despite significant government, industry and civil society commitments to address their environmental impacts, plastic leakage into the country's water bodies is projected to grow by 190 per cent between 2020 and 2040, from approximately 78,000 tonnes per year to 228,000 tonnes per year.

A total of 8 million tonnes of plastic waste leaks into the ocean each year. By 2050, it is estimated that there will be more plastic than fish in the ocean if we do not take urgent, collective action. Ghana generates approximately 840,000 tonnes of plastic waste per year out of which approximately 9.5 per cent of that is collected for recycling.

So, if we generate about 1.1 million metric tonnes, and only 9.5 per cent is collected, it means that the other more than 90 per cent find their way into the water bodies, and some of them, unfortunately, some microplastics may even be found in our bodies, and that is the danger.

Mr Speaker, currently, Ghana is taking steps to address the plastic pollution issue with strong alignment with proposals in the National Plastics Management Policy (NPMP), the ECOWAS Regional Action Plan on Plastics Management & Circular Economy and the International Legally

Binding Instrument (ILBI) which is scheduled to be concluded in 2025. In the short to medium term, measures are being taken to address the challenges associated with orphan plastics, and single-used plastics in general. Through the African Ministerial Conference on the Environment (AMCEN), the Ministry is providing leadership for the Africa Group of Negotiators (AGN) in the Intergovernmental Negotiating Committee to develop an international legally binding instrument on plastic pollution, including in the marine environment, which could include both binding and voluntary approaches, based on a comprehensive approach that addresses the full life cycle of plastic, taking into account, among other things, the principles of the Rio Declaration on Environment and Development, as well as national circumstances and capabilities. In fact, Ghana is the Chair of the African Group of Negotiators, and it is important to state that the challenges that are confronting us have to do with the position, the interested groups have all taken.

Negotiating is a very difficult thing. Some are looking at the entire cycle of plastic generation, from the production to the finished product, and those who are also producing this, particularly the Gulf countries, they get them from oil—those are also having challenges. They think that we should not look at the entire cycle, we should look at the plastics that are already generated, and that Mr Speaker, is a challenge. And that is why for the Global Environmental Day celebration, Plastic was the theme, how we could all collectively fight this.

The circular economy is one of the means. The Ministry has actually advanced some money through assistance from international funding sources to support about eight plastic recycling companies in Ghana. Initially, we identified 11, and eight were given money. We gave them to the tune of about CAD450 million and that is how far we have gone. We really need to do a lot. We are working on getting some international funding for that purpose. So, we are doing everything possible to ensure that we curb this, because the consequences are just uncontrollable.

Current Situation in Ghana

Mr Speaker, currently, Ghana is implementing the National Plastics Management Policy (NPMP), which was launched in 2020, with special focus on the creation of economic opportunities for reusing plastic waste, encouraging recycling and the recovery of secondary material for plastics production and consumption.

- The Policy covers the management of plastics throughout the full lifecycle of plastics, including production, importation, packaging, distribution, consumption, disposal, collection, reuse, recycling and the final disposal, and how this would be done in an environmentally sound manner. Its foundation for achieving success with plastics management is based on the principles and practices of

Circular Economy at each stage of the product lifecycle.

- The Policy recognises the inter-linkages among multiple sectors and government agencies that are associated with the production, consumption disposal and management of waste in general, and plastics in particular, therefore the need for inter-sectoral collaboration. The Policy recognises the importance of the roles of both producers and consumers of plastics, and therefore the need for effective education and awareness creation for all stakeholders.
- The Policy also recognises the role that informal actors play in the economy of Ghana, especially in the collection and recycling of plastic waste, and therefore the need to support actors in the informal sector to achieve a just transition to Circular Economy for the plastics sector.
- The Policy also addresses the need for effective mobilisation of funds, accompanied by transparent and accountable utilisation of the funds to ensure long-term sustainability. It also addresses the need to involve the private sector and provide incentives for them to invest and participate actively in the implementation of the policy.
- The Policy called for the establishment of the Resource

Recovery Secretariat (RRS) as a unit under MEST to handle all matters related to plastics, with the active involvement of stakeholders from relevant sectors and government agencies. Finally, the Policy recognizes the need for effective data collection and the use of technology and innovation in the management of plastics.

Mr Speaker, Ghana is also receiving support from the Global Environment Facility (GEF) to implement the “Establishing a Circular Economy Framework for the Plastics Sector in Ghana” project. The primary objectives of the project are three-fold:

- To strengthen the national capacity of Ghana to transit to a circular economy framework with particular focus on reducing plastic leakage into the country’s oceans and waterways.
- To facilitate sustainable plastics management by operationalising the National Plastic Action Partnership (NPAP/GPAP) and the National Plastic Management Policy (NPMP); and
- To reduce releases of Unintentional Persistent Organic Pollutants (u-POPs) into the environment. Planned project activities are grouped along four components, and the subject of this consultancy assignment is Project Component 2.

Mr Speaker, through this project, eleven (11) SMEs/ pilot companies are being technically and financially supported to the tune of US\$4,050,000.00 to implement various pilot projects in the plastics management space. The project aims to achieve a 493494 tonnes/annum capacity increase in the plastic recycling industry, which is approximately 4 per cent of the total plastic recycling market of Ghana. With the submitted pilots, approximately 7,500 tonnes of marine litter can be avoided per year. A further 32865 tonnes of oil-based plastic bags will be replaced with biodegradable bags annually and the production of 0.01 tonnes of PET bottles and water sachets will be avoided.

The proposed pilot projects would significantly reduce the amount of open plastic burning and could help avoid the release of 8,896 tonnes of CO₂ equivalent (CO₂e) annually. Further, with recycling, 57,524 tonnes of CO₂e could be saved. In total the pilot projects would achieve 66,420 tonnes of CO₂e release reduction.

Mr Speaker, in 2021, Ghana committed to participating in the International Atomic Energy Agency’s (IAEA) Nuclear Technology for Controlling Plastic Pollution (NUTEC Plastics) project. This pioneering project aims to develop a pilot-scale plant that utilizes ionizing radiation as a complementary technique for plastic recycling. Through this engagement, Ghana, represented by the Ghana Atomic Energy Commission (GAEC), joined the IAEA Coordinated Research Project (CRP) titled “Recycling of Polymer

Waste for Structural and Non-Structural Materials by Using Ionizing Radiation”.

Currently, under this project, research activities are actively underway to evaluate the feasibility of employing ionizing radiation technology in recycling single-use water sachet packaging films made of low-density polyethylene (LDPE) and high-density polyethylene (HDPE) pellets. The objective is to repurpose these recycled materials for the production of pavement blocks, thereby contributing to sustainable waste management and infrastructure development in Ghana.

I wish to also inform the House that under a related collaborative project between the IAEA and GAEC, significant research efforts are underway to understand the occurrence, distribution, and impacts of microplastics within Ghana's freshwater and agricultural environments.

These initiatives exemplify the Ministry's commitment to innovative and science-driven approaches in addressing the plastic waste menace, complementing existing waste management strategies to safeguard our environment for present.

Mr Speaker, the Ministry is collaborating with UNIDO in the implementation of a CAD 7 million funding support from Global Affairs Canada (GAC) to establish the Ghana Circular Economy Center of Excellence. The Ghana Circular Economy Centre project aims to assist Ghana-based organizations and individuals, including early-stage

entrepreneurs, to develop and deploy innovative circular economy technology solutions and businesses. The Project will contribute to multiple SDGs, especially:

- SDG 5: (Gender Equality), SDGs 8 (Decent Work and Economic Growth);
- SDG 9: (Industry, Innovation and Infrastructure);
- SDG 12: (Responsible Consumption and Production), and
- SDG 13: (Climate Action)

The ultimate outcome of the project is to achieve an enhanced circular economy-based inclusive economic prosperity and state of the environment, particularly for women and youth in Ghana. The project would achieve this outcome through two intermediate outcomes:

- Increased use of financial and/or business and technology development services by small-scale entrepreneurs supported by the Circular Economy Centre, particularly women and youth; and
- Increased adoption of circular economy technologies and practices by the private and informal sectors with support from a local ecosystem.

I am particularly delighted to acknowledge the selection of Ho Technical University as the Host Institution for the Circular Economy Centre of Excellence and the other selected institutions that will lead the

various value chains of the project as follows:

- Cape Coast University for the Plastic Value Chain
- Or Foundation for the Textiles Value Chain
- College of Agriculture and Natural Resources, Kwame Nkrumah University of Science and Technology for the Agriculture Value Chain.

Looking Ahead – Steps for the Future

Mr Speaker, MEST with World Bank support through the ProBlue Trust Fund initiative has initiated the process of drafting legislation for an Extended Producer Responsibility (EPR) scheme that will compel companies that introduce plastic packaging products onto our market to assume responsibility for the collection and recycling of plastic waste. The legislation will make the EPR mandatory, and it will provide resources for private sector entities to establish plastic collection centers in strategic locations across the country. Additionally, an e-registry of all actors in the plastics value chain including importers and recyclers will be developed and managed by the EPA.

Mr Speaker, it is high time the Government considered a market shift towards alternatives to plastics while phasing out/banning single-use plastics. The Ministry's intent is to engage more on the possibility to ban and not disrupt the activities of stakeholders within the

plastics industry. Therefore, starting this year, the Ministry and its partners will focus on a concerted public engagement and awareness creation effort to elicit information on the readiness of the country to ban selected single-use plastics such as *olonka* rubber, *banku* rubber, straws, food wrappers, plastic carrier bags less than 20 microns, *et cetera*.

Activities related to that include:

- Nationwide media engagement and documentaries on National Plastics Management Policy with emphasis on behavioral change, circular economy principles and EPR.
- Campaign on orphan and legacy plastics, with special attention given to open areas and roadsides.
- Public awareness of the provision of financial and technical support for the SMEs that are involved in the execution of the GEF-funded project, and others that are involved in orphan plastics recycling and pyrolysis.

Thank you, Mr Speaker.

Mr First Deputy Speaker: Mr John Darko, any follow-up question?

Mr Darko: Yes.

Mr Speaker, at the vetting of the Minister, I asked him a question about this and he told the people of Ghana that when he gets to the Ministry, he would take this issue seriously. What would he say he has done in his about four months of being in office, to avert the situation—in the last four months? What action has he taken to bring the problem down?

Dr Ibrahim: Thank you, Mr Speaker.

Mr Speaker, it is amazing to state that we did not even have a law on plastic waste in this country and that for me was a shocker. It is interesting also to state that we do not even have a law on climate change. For some of them we only have the policy framework but we do not have the legal regime. For some we have the laws, we do not have regulations. So, we have engaged a legal firm to work in consultations with the various agencies so that we can have appropriate legal instruments that regulates the activities of everybody in this country, particularly within the plastic space. And that is precisely what we are doing.

The other one is the financial assistance we have given to these selected plastic recycling companies and for some of them we have given them up to \$200,000 because we got the funding from our donor development partners and this money is actually doing a lot. Apart from the fact that they gather these plastics, it is also an opportunity to create jobs for the people. For four or five months, I am not saying that it is too short a time, but if you look at what we have done, one, to get the legal regimes, and two, the direct financial assistance to

these selected recycling companies, for me, I think that is a major step. But I do admit that what we are collecting is just 10 per cent—less than 10 per cent and it is a very serious matter. If you look at this year's budget, we factored in the assistance we can add with what we have gotten from these development partners for the purposes of the expanding. The moneys we released to these selected plastic collecting companies was just about 20 per cent of the total amount of money.

7.17 p.m.

It is a pilot programme, so going forward, how do we decide that when the piloting expires, we will have money? He admits that the fiscal space was so limited. And mind you, at the Ministry—And I am happy the Leader is here—A lot of the projects we execute under the Ministry are donor funded. Some of them are exhausted and some are at the last stages of the funding life cycle, and we are making every effort to ensure that we have some assistance to expand in those. And we use those that are left to the maximum, to support our objective, and achieve our successes. So that is what we are doing currently, Mr Speaker.

Mr First Deputy Speaker: Any further questions?

Mr Darko: Yes, Mr Speaker. My other question to the Minister is whether, looking at the effect of plastic waste, he will recommend to the Government to tax the importers and manufacturers of these plastic products in order to avoid single-use plastic. This is because when

it is expensive, I believe that the use of single-use plastics will go down. So, would he recommend to Government to tax these manufacturers and the importers of these plastic products?

Mr First Deputy Speaker: Would you recommend?

Dr Ibrahim: Thank you, Mr Speaker. Looking at the Legislative Instrument I said we are working on, we are looking at even the producers of the plastics having to do some payment. We think that those who produce them should also have a responsibility of ensuring that these plastics are collected. This is because they produce plastics, make their profit and leave the responsibility to the State to collect them, which is extremely difficult. So, looking at some of the Legislative Instruments we will bring—I am happy the Chairman of the Committee on Environment, Science and Technology is here, and I know he also serves on the Subsidiary Legislation Committee. We are bringing those things, and I am very convinced that we will have the needed support.

Let me also admit that there is a pushback from these plastic manufacturing companies. They think that Government should not tax them for what they do. But we think it is fair that if they are generating a lot of money from it, they should have a role to play in the collection of the plastics. We have floods in our cities now because the gutters are choked, the water bodies are also choked with plastics and fishermen no longer get the quantity of fish they used to get.

Mr Speaker, what we are also doing is to invest in research and development. Other countries have done that. In Africa, 40 years after the Lagos Declaration, where African leaders committed at least one per cent of their Gross Domestic Product (GDP) for the purposes of research and development, it is disheartening to state the average commitment of GDP for research and development in Africa is around 0.42 per cent. So, there is a limited space. I can understand sometimes that policymakers and African leaders have what are called competing policy decisions to make.

So, if we invest in research and development, we get the benefit, but not in the present. It may happen five years, sometimes 10 years or four years later. But we are torn between investing in research, which will be beneficial in the future, or providing the basic needs of your people, and I guess African leaders tend to focus on this.

So, what we are doing as a Ministry—And it is important, Mr Speaker, when I visited the various agencies under the Ministry, almost all the agencies under the Ministry's core mandate are to research and innovate.

Mr First Deputy Speaker: Hon Minister, the question is, will you recommend tax to the Government.

Dr Ibrahim: Yes, but Mr Speaker, it is important I state this for justification why we think that they should pay.

Now, I realise that there are a lot of research outputs in the decks. So, we are creating what we call Environment Science and Technology Forum, where we bring together research institutions and the private sector, so that we can challenge them to conduct researches that will also help to give them money, so that the state does not necessarily need to provide the resources for the research institutions. Council for Scientific and Industrial Research (CSIR) and Ghana Atomic Energy Commission (GAEC) will be able to generate money to do some of these things.

So, we are looking at taxing people, particularly plastic manufacturing companies, and also empowering the research institutions to generate money internally, to be able to do some of the things that we want them to do. Thank you.

Mr Darko: Mr Speaker, that would be all for him.

Mr First Deputy Speaker: Very well. Yes, Hon Jerry Ahmed Shaib?

Mr Jerry Ahmed Shaib: Thank you very much, Mr Speaker.

Mr First Deputy Speaker: Why are you not speaking from your designated seat?

Mr Shaib: Mr Speaker, I came here to engage my Colleague.

Mr Speaker, I heard the Minister indicate that we have had issues with plastic, including plastics causing flooding, and fishermen going to the high sea and coming back with plastics. I am tempted to ask whether the Ministry is considering banning the usage of plastics.

Dr Ibrahim: Mr Speaker, it is a difficult question, and I guess this same question was put to me when I was being vetted. Some countries have actually banned the use of plastics. Rwanda and Kenya are two classical examples. His Excellency the President announced on the day we celebrated the World Environment Day, that Government intends to ban the use of plastic. But we do understand that we are dealing with human beings, so we are working to get alternatives. This is because once we ban it and people do not have any alternative, it has social consequences. So, we are engaging the private sector and some of the funders, so that we can build the capacity of the private sector to be able to come out with alternative packaging.

Mr Speaker, we have had companies that have submitted proposals to us where they can use bamboo to produce the things that can help in packaging. So, these are some of the things we are looking at. It is a gradual process. Kenya and Rwanda have done that. They did not just get up one day and say they were banning the use of plastics. They put in the necessary mechanisms to ensure that at least about 50 to 60 per cent of the

alternative uses of what they otherwise were using plastics to do, were put in place before they banned it.

We are very convinced that looking at some of the things that we have started doing, and the support from our partners, we will be able to do that. For me, that also encourages us to hold this forum, because I have received some research institutions who have said that they can research to provide answers to some of the challenges that we have. So, these are some of the things we are looking at doing. So, we will ban, but it will not just be immediate. It is a gradual process, just like the other countries have done. Thank you.

Mr First Deputy Speaker: Prof Kingsley Nyarko, you are also not speaking from your designated seat.

Prof Kingsley Nyarko: Mr Speaker, you are right. I just came to keep her company because I was feeling lonely in my seat.

Mr First Deputy Speaker: You are feeling lonely?

Prof Nyarko: In my seat. *[Laughter]*

Mr First Deputy Speaker: Please, the Rules are clear, that a Member must rise from his place and catch the eye of the Speaker. So, if you are feeling lonely in your designated seat, it is not a justification for you to speak from a seat that is not designated to you. So please, go back to your designated seat.

Prof Nyarko: Mr Speaker, you are right. You know, I am always in my seat.

Mr First Deputy Speaker: The reason is not tangible.

Prof Nyarko: All right. I withdraw the reason and plead with you to indulge me to be here.

Mr First Deputy Speaker: Please ask the question.

Prof Nyarko: Thank you, Mr Speaker. So, the response the Hon Minister gave to Hon Shaib, for me, is a step in the right direction. I want to know from him the alternative solutions his Ministry is considering. When are we going to see the end to this? Because I heard him say they are considering, engaging and all that. These are words that we use too often. But I would be glad if he can tell us concrete steps taken and the anticipated end time to this whole waste menace.

Mr First Deputy Speaker: Yes, Hon Minister?

Dr Ibrahim: Mr Speaker, I thought my answers were very clear. I said that is what we intend to do. But we also understand that we are dealing with human beings and we are concerned about conveniences and inconveniences by any action that we take. So, if we just outrightly ban plastic, the question would be, what is the alternative? And that is why I said we are engaging private sector and I have a lot of proposals on some of the innovative ways by which people can help in packaging on my

desk, because largely, that is what we use, and even bottling.

I was in Geneva last two weeks. What they do now is that even the plastic bottled water cannot just be opened for the cap to fall. It must be hanging and it is a law. This is because they realised that people open water, drink it, then the covers end up in their water bodies. So, these are some of the things we are looking at. And of course, when I talked about engagement, it includes engagement with some Members of Parliament who have enormous capacities in the area of plastics.

7.27 p.m.

So, we are engaging everybody. I have had some conversations with the Chairperson of the Committee on Environment, Science and Technology and we are looking forward to having more of such. But we have received a lot of proposals from the private sector which are all looking forward to seeing Government assist them to build the capacity. And largely, we are dependent on donor funding. We have made some progress; we met some of them in Ghana and we shall be travelling with a consultant to meet others after we have had positive meetings with their representatives in this country and the signals are very positive. They are looking forward to giving us the funding to support the private sector to be able to come up with such innovation.

Mr First Deputy Speaker: Yes, Hon Kabiru?

Dr Tiah Abdul Kabiru Mahama: Mr Speaker, I come under Order 89(1) and (3) to seek your leave to ask the Minister two questions.

The first question has to do with the Answer he gave. The Hon Minister answered to the effect that some money was received which has so far been disbursed to seven companies, with each taking an amount of about US\$200,000 if the numbers are right. But the substantive matter is that some money was received.

I would like to find out from the Hon Minister the funding agency for this money when it was received and then the companies that received this support if he is so minded to provide the House with that information.

Dr Ibrahim: Mr Speaker, thank you. We got some funding from United Nations Industrial Development Organization (UNIDO) specifically and the Ministry did not just disburse it. The Ministry did the disbursement with UNIDO.

When I moved in as a Minister, the decision, assessment, and the disbursement were already decided upon. I said I was not going to sign the cheques until I visit those companies. So, when I visited, it was only one company that I had problems with. In fact, UNIDO also had problems with that particular company and we then disbursed the moneys. That was the first tranche. What we did—If you look at the entire project, total money was around CAD 7 million.

But what we disbursed was just a percentage of what we were supposed to give. There were 11 private companies that were identified, but we were able to disburse the money, I think, to about seven or eight of such companies. We shall have the disbursement of the first tranche to the other three and then we will have the second tranche. Because mind you, the Ministry does not just give out this donor funded moneys. There is too much strict compliance and proof for which the Ministry can give those monies.

So, we got the moneys from UNIDO and we are also working on getting some moneys from United Nations Development Programme (UNDP) and Africa Development Bank (AfDB) to help build the capacity.

Mr Speaker, I raised questions that we did not have some of the companies in Ashanti Region, for example. And I felt that, apart from Accra, I do not think that there is any city in this country that can generate so much plastics than Kumasi, looking at the size. So, I insisted that the last three, we should get a company in Kumasi so that we can extend such facilities too. So, that is how far we have gone.

Thank you.

Dr Mahama: Thank you very much.

Mr First Deputy Speaker: Hon Members, in view of the fact that we have a lot of Questions, do we go beyond one supplementary question?

Is there any guidance?

Very well.

Next Question stands in the name of Dr Yaw Opoku.

Addressing the Upsurge in the Use of Unapproved Pesticides and Herbicides

Dr Isaac Yaw Opoku (NPP — Offinso South): Mr Speaker, I beg to ask the Minister for Environment, Science and Technology the steps the Ministry is taking to address the upsurge in the use of unapproved pesticides and herbicides.

Dr Ibrahim: Mr Speaker, in response to the Question concerning the alleged increase in the use of unapproved pesticides and herbicides, the Ministry, through the EPA, outlines ongoing efforts to address the issue through a comprehensive, multi-pronged strategy. Actions taken include, but are not limited to the following:

Regulatory Strengthening

The newly enacted Environmental Protection Act, 2025 (Act 1124), introduces stronger legal provisions to combat pesticide counterfeiting, ensures residue monitoring, and mandates training for dealers because we realised that a lot of the dealers do not have the capacity. And we feel that, as a Ministry, we need to build the capacity by training them as captured in the EPA law. The requirement for both imports licenses and separate import permits tightens control over pesticide entry.

Mr Speaker, EPA needs to operate at the ports and our border entry. Unfortunately, sometime in 2018, EPA was asked to leave the ports and our airports. So, currently I am in communication with the Minister for Transport to find a space, so that we can repost EPA officials to the airport and our border entries and also the ports. So, that is what we are doing. Additionally, import clearance *via* Integrated Customs Management System (ICUMS) is restricted to registered products only.

Pesticide Registration and Surveillance

All pesticides (insecticides, herbicides, fungicides, rodenticides, *et cetera*.) must undergo registration before importation and use. This ensures rigorous screening and restricts market access to only approved products. Post-registration surveillance, including sampling of products like Paraquat and Glyphosate, is underway to monitor quality and compliance.

Training of Dealers and Public Awareness

We think that the dealers need to be trained to build their capacity and we must have education drive, so that the public can be sensitised and be made aware of some of these things. Within the first half of 2025, over 889 pesticides dealers have been trained across 15 regions to, among other things, detect, avoid, and report unapproved products. Concurrently, the EPA conducts farm-level awareness campaigns, the most recent this month, in Ashanti Region, on

safe and approved pesticides use. Law enforcement agencies, including Police, Customs, and Immigration officers, have also received training to enhance border control to prevent the entry of illegal pesticides.

Enforcement Actions

EPA conducts market sweeps in collaboration with industry stakeholders. A recent operation in the Northern Region led to the seizure of unapproved products, with more planned for other regions, e.g. Ashanti. Legal action is also being strengthened through collaborative awareness raising efforts with the Office of the Attorney-General to improve the prosecution of offenders. We do this with the private sector, particularly those who are certified to engage in such dealing.

Phase-out of Highly Hazardous Pesticides (HHPS)

Mr Speaker, a review of the national pesticides register has identified 22 HHPs for possible restriction or ban. Efforts are ongoing to promote affordable and safer alternatives to prevent a shift to unapproved substances.

Challenges and Way Forward

Mr Speaker, let me also admit that there are some challenges in what we do. Despite these efforts, the EPA faces challenges, including inadequate funding, limited laboratory infrastructure, logistical constraints and difficulty tracing illegal trade routes. The Authority calls for enhanced cross-sector collaboration and resource allocation to

sustain progress in regulating pesticide use nationwide. That is why we are engaging and we are employing a lot of people under contract for the EPA. If you take the Northern Region, for example, we had an EPA regional office in Tamale and the only other office we had was that of Bimbilla. It means that from Tamale to Bimbilla, we never had EPA officers operating and that is what we are looking forward to doing—*[Interruption]*—Mr Speaker, refused to respond—

Mr First Deputy Speaker: Any follow up?

7.37 p.m.

Dr Opoku: Mr Speaker, yes, please.

Mr Speaker, if you look at paragraph 4 of the Response of the Minister under the subheading “Training of Dealers and Public Awareness”, 15 regions have so far benefited from the training. I want to find out from the Hon Minister when the last region benefitted and also if he will consider scaling up the training programme because if you do the breakdown, it is about 60 dealers per region.

I think that figure is a little too low and I want to find out whether the Hon Minister will consider scaling up the awareness creation, when the 16th region would benefit, and the name of the last region to benefit.

Dr Ibrahim: Mr Speaker, very soon. I indicated that we are engaging a lot of people under contract because we do not have the capacity on the ground. So, if

we have to do training, it is important for us to use people who understand the area and sometimes, the language itself, because if we want to train people we must use a training that they would appreciate.

As to when we will do the last region, we will do that very soon. We want to finish with the engagement of those under contract, then we would roll out the others, and everything boils down to money. The EPA now generates money and they retain part of the moneys that they generate. So, we think that once we are able to engage a lot of people, we can boost the generation of money by the districts that are not operating and we have seen signs of that, so that is what we are looking forward to. As to the name of the last region, I cannot readily give him this name because this information was given to me by the EPA; maybe I will find out and furnish this House with the name of the last region.

Thank you, Mr Speaker.

Mr First Deputy Speaker: Hon Member, any follow-up?

Dr Opoku: Yes. Mr Speaker, I also want to find out from the Hon Minister whether he would consider publishing the list of approved herbicides and pesticides. I ask this because I am aware that the number of approved pesticides is too large and the ordinary farmer may not be aware of the approved pesticides and herbicides, so I want to find out whether he will consider publishing it in one of the dailies for the benefit of the ordinary Ghanaian.

Dr Ibrahim: Mr Speaker, sure. I think there is nothing wrong with us doing that. We think that once we do that it helps us and even the farmers who use them, so we will look at it. I would have some discussions with the leadership of EPA and if it can be done, which I strongly believe we can, we will do that.

Dr Opoku: Thank you very much, Mr Speaker.

Mr First Deputy Speaker: We then move to the Question numbered 99. Yes, Prof Kingsley Nyarko?

Prof Kingsley Nyarko: Mr Speaker, thank you for indulging me, and I would want to commend the Hon Minister for these comprehensive interventions outlined.

Still on the training, with your permission, Mr Speaker, will the Minister be kind to let us know how much it costs to engage in the training for the 15 regions?

Dr Ibrahim: Mr Speaker, I do not have that information now, but I can furnish the House with it.

Mr First Deputy Speaker: Yes, this should have been a full Question on its own.

Prof Nyarko: Mr Speaker, with respect, he has promised to give us that information, so I thank my good Friend.

Mr First Deputy Speaker: Yes, I am just bringing the attention of the House to the fact that the rules try to avoid

elements of surprise. That is why a supplementary question must emanate from the main Question and the Answer. So, asking the Hon Minister to provide you with the costs involved in something should have been a fresh Question.

We will move now to the Question numbered 99 which stands in the name of Mr Richard Kwami Sefe, Member of Parliament for Anlo.

Hon Member, you have the floor.

Amount of Money from the WACA Programme Used in the Protection of Coastlines of Anloga Municipal Assembly

Mr Richard Kwami Sefe (NDC — Anlo): Mr Speaker, I beg to ask the Minister for Environment, Science and Technology how much of the US\$150 million released by the World Bank through the West Africa Coastal Area (WACA) programme was allocated to the protection of sections of the coastlines of the Anloga Municipal Assembly and when the project will commence.

Dr Ibrahim: Mr Speaker, the WACA Project which is a loan facility of US\$150 million and a grant of US\$5 million is expected to carry out grey and green investments at specific locations to be determined along the Volta, besides Delta and Korle area, and parts in Central Region. These areas for intervention had pre-feasibility done and not detailed feasibility studies. The WACA Project in Ghana has not yet reached a stage where there are specific allocations to any one

Metropolitan, Municipal, and District Assemblies (MMDAs).

As it stands, the Ministry in collaboration with the College Of Harbour, Coastal and Offshore Engineering, Hohai University, China, and The Africa Centre of Excellence in Coastal Resilience (ACECOR), University of Cape Coast, Ghana (Consultants) have commenced a Feasibility Study of the Volta Delta Coast for Flood Risk and Erosion Mitigation towards developing a comprehensive understanding of sediment flow dynamics to develop informed, effective and sustainable coastal erosion and flood risk reduction solutions along the Lower Volta Basin, which includes the Anloga Municipal Assembly for interventions to commence. This study will enable a practical and informed assessment of funding requirements, thereby informing allocations to the various project areas including the Voltaian Basin.

I want to take this opportunity to bring to the attention of this House that this requirement by the World Bank is important to ensure value for money and sustainable coastal protection.

Mr Speaker, when I came, I realised that the project had delayed for two years, but we needed to engage the consultant and the explanation of the consultant was that they had to do their studies in two seasons: dry seasons and rainy season. So, we wanted them to expedite action and they said they could not, because if they do that and they do not do it well, it would have some structural

challenges as far as the project is concerned. So, they agreed to shorten the period and thankfully, at the time we wanted to do it, it was the dry season. They have started.

By next month, we shall start advertising for the execution of the project. So, hopefully, we are looking at commencing the execution of the project within the next three or four months.

So, I can assure my Hon Colleague that we are doing everything possible to start. In fact, it delayed for two years. If it did not, I believe that by now, we would have done it.

Benin has done a similar one, so we want them to do it because theirs is so solid. We do not want them to do something that is different from what was done in Benin. So, I can assure the Hon Member that, hopefully, by next month or two, we will run adverts for people to tender for the purposes of awards of contract. Hopefully, within the next three to four months, we should commence the execution of the project.

Mr First Deputy Speaker: Hon Members, before taking the supplementary question, the indication is that we have been sitting in excess of five hours. Any indication, Majority Leader?

Mr Ayariga: Mr Speaker, yes, we can take the Questions of the Minister for Gender, Children and Social Protection; she has been here.

Mr First Deputy Speaker: Hon Members, sitting is hereby extended beyond the prescribed hours.

Any supplementary question?

Mr Sefe: Mr Speaker, I would like to know whether the release or non-release of the money is the cause of the delay or what actually was the cause of the delay for two good years? This is out of the fact that activities such as green investments and other activities are expected to take place there. However, every year the coastal and other relevant portions of my Constituency continue to get eroded. If we could have a way out that will give energy to my people for them to know that this time, there would not be any further delay, I would like to know.

Dr Ibrahim: Mr Speaker, I really do not want to cry over spilt milk. I am not interested in finding out why the delay. What is important is that we are expediting action to ensure that we have the execution of the project, but as to what led to the two years delay, I do not think that is necessary again. I can understand the frustration the people are going through.

I have visited the community, a lot of—Even graves have been taken over by the water body. So, I can assure the Hon Member that we are doing everything possible. The consultants will submit their report latest by the next one month and by the time they submit the report, I have indicated to some of my other Colleagues that we would start adverts for people to bid, then the awards of the contract could be done. What is

critical is the consultancy work, because that will determine the structure and everything.

So, Hon Member, we are doing everything possible to ensure that we execute this project.

7.47 p.m.

Mr First Deputy Speaker: Any further question?

This is a constituency-specific Question.

Mr Sefe: Thank you, Mr Speaker. I am all right with this one. If you would allow me to follow up with the next Question.

Thank you very much.

Mr First Deputy Speaker: Very well. We then move to Question numbered 100 standing in the name of Hon Richard Kwame Sefe, Member of Parliament for Anlo.

Current Status of the West Africa Coastal Area Programme in the Anlo Constituency

Mr Richard Kwami Sefe (NDC — Anlo): Thank you once again, Mr Speaker. I beg to ask the Minister for Environment, Science and Technology the current status of the WACA programme in the Anlo Constituency of the Volta Region and when the work on the coastal protection will begin.

Thank you.

Dr Ibrahim: Mr Speaker, to this day, the WACA Project's activities within the Volta Region, including those in the Anloga Municipal Assembly have primarily focused on stakeholder engagements with community members, traditional authorities, government officials, and officers of various government agencies. These engagements will lead to development of a comprehensive list of feasible social interventions for the coastal inhabitants within the project intervention areas. It has also garnered community input and support for developing the Legislative Instrument for Community Resource Management Areas (CREMAs) and complementing efforts to operationalise the Wildlife Management Act. The Land Use and Spatial Planning Authority (LUSPA) is preparing three (3) Spatial Development Frameworks for the Anloga, Keta, and Ketu South Assemblies. As mentioned, a new assignment is underway to undertake a feasibility study on coastal erosion and flood mitigation, aiming to inform investments in physical works such as groynes and breakwater infrastructure, as well as practical nature-based solutions.

Mr Speaker, based on information from the technical officials involved in the Project, coastal protection works (Coastal investments) will commence during the first quarter of the year 2026.

Mr Speaker, I fully understand the urgency of these interventions for the well-being of our people. However, we are dealing with an issue requiring in-depth scientific studies to avert scenarios of creating even more devastating

coastal erosion issues for other areas, including neighbouring Togo. This notwithstanding, I have tasked the Technical Team to explore optimal ways of delivering within a 'humane' time frame to ensure our people have some long-lasting solutions to this plague.

Mr Speaker, I can understand it affects a lot of constituencies on the same line. So, it is virtually the same thing. What I explained to you, I guess is the same explanation I will give to the other Question.

Mr First Deputy Speaker: Thank you very much. Yes?

Mr Sefe: To end it up, Mr Speaker, whatever activities they wanted to do to help the people, be it infrastructure or whatever, has to live on land or should be built on land. Here we are, the land is being eroded, but they have activities that they say is happening.

Mr First Deputy Speaker: Hon Member, be reminded of Standing Order 88(7). So, what is your question?

Mr Sefe: So, my question is, when are we going to have this sort of peace in terms of the erosion of the land by the sea? When actually is this one going to take place? Three good years, nothing to show.

Mr First Deputy Speaker: Specific with time, when is it going to—

Dr Ibrahim: Mr Speaker, everything I say here, to a very large extent, will be determined on the work the consultants

are going to do. The reason the consultancy work is critical is because through the consultancy, the engineering, the structural designs and everything will be done. So, I can assure my Hon Colleague and I will have further engagement with him. I do not have any problem if he wants me to go with him to the community so that I can explain to them the reasons, because we need to finish with the consultancy work and I did indicate that they do it in two seasons; dry season and the rainy season, so that they will be able to know how the structure is going to be.

Hopefully, by this month, getting to next month, they would have finished with the work and I can assure him that I had a lot of discussions with Hon Dzifa Gomashie. In fact, I even went to the constituency with some of her officers because she was not there to explain to people the challenges. So, as far as I am concerned, we are doing everything possible, so that hopefully by the close of this year, we should not have this problem again. The project would have commenced, and I am very convinced that we will finish it by the close of the year.

Thank you.

Mr First Deputy Speaker: Hon Members, let us move to Question numbered 129 standing in the name of Hon Kwame Dzudzorli Gakpey, Member of Parliament for Keta.

Mr Kwame Dzudzorli Gakpey: Thank you, Mr Speaker. The Anlo Question is still related to what we have. Some of the answers have been given by the Minister. I only want to zoom in to ask one question, and then that would be all, if you permit me.

Mr First Deputy Speaker: Please do.

Mr Gakpey: I would like to find out from the Hon Minister if the money for the World Bank loan was released?

Mr Frist Deputy Speaker: Yes, Hon Minister, was the money released?

Dr Ibrahim: Thank you, Mr Speaker. The money is available. The way they do their thing is that they do not give the money to us. But once the World Bank releases the money, the US\$150 million which is a loan and the US\$5 million which is a grant, the money is available. As and when they are satisfied with the work that is done, they make the payment.

The Ministry does not do the payment. The payment is done through the World Bank, but the payment will be determined by the execution of projects. So, what we are doing, we are doing it with the World Bank. The structural engineers, the award of the contract to the consultants were all done in partnership with the World Bank. So as and when they finish, the money is available. There would not be any difficulty in paying those who execute

the projects once there is some satisfaction of the work they have done.

Thank you very much.

Mr First Deputy Speaker: Thank you. This brings us to the end of the Questions for the Minister responsible for Environment, Science and Technology.

On behalf of the House, I thank you so much for attending upon the House and answering Questions slated for you.

Hon Members, we will then move to the next Minister who is also here to respond to Questions.

Hon Members, we have two Questions for her; an Urgent Question and Oral Answer to Question. So, may we take the Urgent Question first? The Urgent Question is standing in the name of Fatahiya Abdul-Aziz, Member of Parliament for Savelugu.

URGENT QUESTION

MINISTRY OF GENDER, CHILDREN AND SOCIAL PROTECTION

Transitional Measures Instituted for Caterers under the Previous Administration's School Feeding Programme

Ms Fatahiya Abdul-Aziz (NPP — Savelugu): Thank you, Mr Speaker. Mr Speaker, I beg to ask the Minister for Gender, Children and Social Protection the transitional measures the Ministry has instituted for caterers who were

engaged under the previous Administration's School Feeding Programme but have had their contracts terminated by the current Government, particularly those who were verified to have delivered satisfactory performance.

Thank you, Mr Speaker.

Mr First Deputy Speaker: Yes, Hon Minister?

Minister for Gender, Children and Social Protection (Dr Agnes Naa Momo Lartey) (MP): Thank you, Mr Speaker. The Ministry, as part of its payment process for caterers of the Ghana School Feeding Programme, validates data every term for cooking and non-cooking days for each caterer before payment is done. The process is as follows; The Ghana School Feeding District desk officers collate and send data on cooking and non-cooking days of each caterer in their district through the Regional Coordinator of the School Feeding Programme to the National School Feeding Secretariat for verification and validation. The data will then be verified against cooking and non-cooking days data received from the Ghana Education Service (GES) from their district offices through the Ghana Education Service regional offices.

Mr Speaker, so far, the National School Feeding Secretariat has received data on cooking and non-cooking days for 10 regions. Caterers who cooked in the second term of 2024/2025 academic year should therefore be rest assure of

prompt payment after verification is completed.

Thank you, Mr Speaker.

Mr First Deputy Speaker: Any supplementary question?

Ms Abdul-Aziz: Yes, Mr Speaker. I want to ask the Minister, on what basis did she terminate the contracts? We want to know the basis on which she terminated those contracts.

Thank you.

Dr Lartey: Mr Speaker, even though this could have come as a Question on its own, I will respond to the Hon Member by saying that the contracts were not terminated. The contracts expired, and once the contracts are expired, we do not need to assume that caterers were cooking and that it will continue, so we took steps to make sure that it was sanitised.

Thank you.

Mr First Deputy Speaker: Any other supplementary question?

Ms Abdul-Aziz: I want to prompt Madam Minister—

Mr First Deputy Speaker: Hon Minister?

7.57 p.m.

Ms Abdul-Aziz: Hon Minister. Thank you, Mr Speaker. There are actually letters terminating contracts of those caterers. Please check. Thank you.

So, I now go to my second question. At the time of terminating their contract, they had cooked for a term that had not been paid for. What plans are being made to pay them?

Mr First Deputy Speaker: Hon Member, please, the Minister's answer is that the contracts are not terminated, but they have expired. So, you can preface your question with, at the time of expiration.

Ms Abdul Aziz: Thank you, Mr Speaker. I have evidence letters of termination from the Ministry, and if you give me the opportunity, I will bring those letters here later. May I go ahead?

Mr First Deputy Speaker: Yes.

Ms Abdul Aziz: Thank you, Mr Speaker. At the time of terminating their contracts, they had cooked for a term that had not been paid. What plans are there to pay them? And when will they be paid?

Ms Lartey: Mr Speaker, the letter that the Hon Member is referring to is part of the process of sanitising the system so that we do not leave anything for assumption.

The response, Mr Speaker, is that the Ministry is committed to ensuring timely payments to caterers of the Ghana School Feeding Programme (GSFP). As part of the payment process, we rigorously validate data on cooking and non-cooking days for each caterer per term before disbursing funds.

Mr Speaker, the payment verification process, which is close to or the same as what I had earlier said, at the district level, the Ghana School Feeding Programme's district desk officer compiles and sends cooking and non-cooking days of each caterer to their respective regional coordinators. At the regional level, the regional coordinators then forward this data to the National School Feeding Secretariat for validation and verification.

At the national level, this is submitted, the data is submitted and cross-referenced with cooking and non-cooking days' records received from the Ghana Education Service, which also originates from the district level through the regional offices.

Mr Speaker, so far, as earlier stated, the data has been received from 10 regions from the district school feeding desk officers in the Ghana Education Service. Once validated, caterers who provided meals in Term 2 of the 2024-2025 academic year will receive payments. Thank you very much.

Mr First Deputy Speaker: Any questions?

Ms Abdul Aziz: I have just learned something new from the Hon Minister, and the new term we now use for termination is sanitisation. Thank you so much.

I will now go to my third question, Mr Speaker. Now that the DCEs are the ones selecting people, what systems are in place to ensure that the assignment or

recruitment of new caterers is free from political interference, nepotism, or regional balance, and based solely on merit and capacity?

Ms Lartey: Mr Speaker, once again, I could come with the whole process of selection, but then the school feeding programme is no longer under the Ministry of Local Government, Decentralisation & Rural Development but previously it used to be, and so the District Chief Executives (DCEs) were the ones managing it. As we speak—No, school feeding has not always been under the Ministry of Gender—

Mr First Deputy Speaker: Please address the Chair.

Ms Lartey: It used to be under local government, and so it was managed by the local government, that is, the district chief executives. And so, if the district chief executives are involved, it is because of the decentralised systems that we are running. They are not the ones doing it.

We have, from the national level; the secretariats, and then we have the regional coordinators, we have the zonal coordinators, and then we have the school implementation committee, and then also we have the desk officers. And so, the desk officers are in the assemblies, and that is why it looks as if they are involved in it. Definitely, once the desk officer is recruited from there, they will have a role to play. Thank you very much.

Mr First Deputy Speaker: Yes, Hon Jerry Shaib.

Mr Jerry Ahmed Shaib: Thank you very much.

Mr Speaker, I want to respectfully ask the Hon Minister, when the caterers are going to resume so that they can start feeding our children?

Mr First Deputy Speaker: Yes, Hon Minister, the resumption of caterers.

Ms Lartey: Thank you very much, Mr Speaker. As we speak, the caterers have started cooking across the country. Not in all the schools. We are ensuring that very soon, by the close of this month to next month, all school children across the country will be fed. And so, it is being rolled out.

There are specific schools we can take him to, and regions that have started cooking. The Hon Member and I know the challenges that come, and as much as possible, we are trying our best to make sure that it is clean and tidy.

Mr First Deputy Speaker: Yes, Hon Minority Leader.

Osahen Afenyo-Markin: Mr Speaker, the Minister at the dispatch box tells us that they are doing some verification. We know that these caterers operate in the informal sector. They took loans from moneylenders. They took more loans from relatives. I speak with a heavy heart, because they are all over our offices, helpless. Can the Hon Minister tell this House, these verification

processes, when and how soon will they be completed for the payment to be effected to them?

Mr First Deputy Speaker: Hon Minister.

Ms Lartey: Thank you very much, Mr Speaker.

I can appreciate the concerns of the Leader, and I am sure that most Members of this Hon House are going through the same challenges. Even if the payment is made, one still has issues with the sustainability of the Programme. Previously, there were some bottlenecks, including the delays in payment and all that.

As I stand here, it would not be prudent for me to say that I can cut corners in terms of the processes leading to the payment. So, I have to follow the due process for the needed verification that covers me, that covers them, and then we will all be safe. My assurance, once again, to all caterers is that once they have cooked, it is verified, we will make sure that they receive their payment.

And I am also taking the needed steps to ensure that the payment comes once the report is ready. Thank you.

Mr First Deputy Speaker: Yes.

Osahen Afenyo-Markin: Mr Speaker, when the Hon Minister was answering my question, one of your clerks at the table was watching her with

great admiration—Mr Speaker, it was a female.

Mr First Deputy Speaker: Even the devil does not know the intention of a man, as for the Minority Leader, he is able to know the intention of those at the table. Please proceed to ask your question.

Osahen Afenyo-Markin: The Hon Minister indicated that there is a process. This is a dispatch box of Parliament. She said there is a process for the recruitment of these caterers. Can she share with this House this process and how transparent this process has been in ensuring that equal opportunity is given to those with capacity and not partisan consideration?

8.07 p.m.

Mr First Deputy Speaker: Yes, Hon Minister?

Dr Lartey: Mr Speaker, thank you very much.

I can assure the Hon Minority Leader that the process is as transparent as it can be. We in this House know that School Feeding Programme has its own headaches and as much as possible, we are trying to ensure that we cure it. But we are not too much in a hurry to cure it, to ensure that whatever measures we are putting in place are sustained and improve on the quality as H. E. John Dramani Mahama has promised. So, I can only assure him that to the best of our ability, it is as transparent as possible.

Then the other thing is that we have data that we are working with, and so it went through verification to ensure that the schools really exist. It will interest one to know, that as we speak, there are petitions from caterers who cooked without approval from the Ghana School Feeding Secretariat and because they cooked without the necessary approval, they have not been paid and that one cannot be captured. That is why we are hastening slowly, so that we do not also commit the same mistakes. There are petitions from caterers who also cooked from 2016 to 2017, and were not paid and in trying to recruit people back—In fact, even if we are going to pay those caterers, we will not pay them with interest. So, we have to come up with pragmatic ways of ensuring that those people—I am talking about payment—are not really affected. We want to make sure that the process considers their plight and also, those who are just exiting will also not be affected. So, inasmuch as possible, we are doing our best to ensure that all caterers under the School Feeding Programme are well catered for.

Thank you.

Osahen Afenyo-Markin: Mr Speaker, my last question, so we can make progress to Question 241. The Hon Minister keeps using the word sustainability, that they are having challenges with sustaining the programme. Are they having budgetary constraints? Is there a problem with the budgetary allocation for the School Feeding Programme?

Mr First Deputy Speaker: Yes, Hon Minister?

Dr Lartey: Mr Speaker, as I stand here, I cannot say I have budgetary allocation challenges because when we came, the backlog that we found—we can call it a legacy debt—we presented the budget to the Minister for Finance and the releases were made. We were able to clear those debts. I cannot remember the figure offhand, but as we speak, I have not presented any budget or bill to the Minister for Finance. Like I said, it is still being processed. If I present and the Minister has challenges releasing funds, then I can come to this august House for support. But the allocation made for the School Feeding Programme is good enough to sustain the programme.

When I talk about sustainability, I am looking at all the quality assurance measures that we are putting in place, that with all our collective efforts, we will be able to sustain it. Then we will reduce the issues of delays in payments and the breaks in feeding the children. Those are the measures I am referring to.

Mr Speaker, thank you very much.

Mr First Deputy Speaker: Yes, we will move to the next Question. The Question numbered 147, standing in the name of Ms Gloria Owusu, MP for Trobu.

Measures to Ensure that Caterers are Paid Outstanding Arrears

Ms Gloria Owusu (NPP — Trobu): Mr Speaker, I beg to ask the Minister for Gender, Children and Social Protection the measures the Ministry is implementing to ensure that caterers are paid their outstanding arrears for the second term of the 2024/2025 given the abrupt termination of contracts for caterers under the Ghana School Feeding Programme (GSFP).

Mr First Deputy Speaker: The Question seems to be similar, but Hon Minister, you have the floor.

Minister for Gender, Children and Social Protection (Dr Agnes Naa Momo Lartey): Mr Speaker, I think it is similar to the previous questions and so I want to once again use the opportunity to assure the Hon Member that steps are being taken to ensure that all caretakers who have served the children are paid.

Mr First Deputy Speaker: Once the Questions are similar, do you have a supplementary question?

Ms Owusu: Mr Speaker, can the Hon Minister give us timelines for when the payment will be done?

Mr First Deputy Speaker: Yes. Though this Question has been asked and answered, you may repeat the answer for her.

Dr Lartey: Mr Speaker, once again, when we are done with the due process; the validation and verification. When we

have received all the needed data from the district level up to the regional level, the National Secretariat will take the needed steps to ensure that caretakers are paid.

Thank you.

Mr First Deputy Speaker: Any further questions?

Ms Owusu: Mr Speaker, kindly indulge me to read part of the answer the Hon Minister gave. It reads:

“Mr Speaker, so far, the data has been received from 10 regions from district School Feeding Programme desk officers and the Ghana Education Service.”

Hon Minister, I want to ask, when are we getting the data of the 6 outstanding regions?

Mr First Deputy Speaker: Yes, Hon Minister?

Dr Lartey: Mr Speaker, as a matter of fact, my reference to the 10 regions is to let the House know that the data we have now is incomplete and we will not pay in tranches. We are paying all across the board, and so once the other regions are in, we will ensure that the payment is done.

Thank you.

Ms Owusu: Thank you, Mr Speaker. Hon Minister, can you please mention the regions for us and when they going to give these regions?

Mr First Deputy Speaker: Well, the regions, if you know them offhand.

Dr Lartey: Mr Speaker, thank you, I do not have the regions offhand.

Mr First Deputy Speaker: Yes?

Osahen Afenyo-Markin: Mr Speaker, quite strangely, the Hon Minister who has given us information on record that there are 10 regions that have data ready in her text, is now unable to furnish us with the 10. But we take her by her word. We believe that she will be able to provide us this information at a later date.

However, may I know from the Hon Minister, in her earlier answer to the Question, as to whether there is sufficient budgetary allocation to sustain the School Feeding Programme, she indicated that yes, indeed, there is sufficient allocation for the School Feeding Programme in the Budget. May I know from the Hon Minister whether the existing number of schools that are being fed is being maintained or it is being increased?

Mr First Deputy Speaker: Well, Hon Member, from the Question, 10 schools are captured. It is now left with six. Is that not your question?

Osahen Afenyo-Markin: Yes, Mr Speaker, 10 regions. It is left with six.

Mr First Deputy Speaker: The follow-up question was that, can she give the names of the six? She said she does not have it at hand.

Osahen Afenyo-Markin: We have crossed that.

Mr First Deputy Speaker: But your plea route to the question said —

Osahen Afenyo-Markin: No, no, that was —

Mr First Deputy Speaker: It said 10 instead of six.

Osahen Afenyo-Markin: That is all right. From the sustainable point, she said there is sufficient budgetary allocation to sustain the programme. May I know from her, whether the allocation in the Budget is in respect of the existing schools on the programme she inherited or that she has increased the number of schools?

8.17 p.m.

Dr Lartey: The allocation in the Budget is in respect of existing schools that are feeding; there has not been expansion. What the Government did was to increase the payment from 1.50p to GH¢2.00. So, it has been increased, but the schools have not been expanded.

Osahen Afenyo-Markin: Hon Minister, regarding the data that you have that the number of schools that the Ministry actually have on record is not being increased, may I know from you, since you have no plans of increasing—

Mr First Deputy Speaker: Hon Minority Leader, the Minister never said they have no plan of increasing. You asked whether they are based on existing

ones, or it has been increased. But if you say the Ministry has no plan of increasing, then you are putting words into—Or you are stating what the Minister have not said because we are all listening to the answer.

Osahen Afenyo-Markin: Mr Speaker, thank you for your intervention. I will put it in a correct perspective.

Hon Minister, it is your submission before this House, standing at dispatch box, that the number of schools you came to meet has not increased. With that high expectation of Ghanaians, regarding your promises—The promises that you were going to do 24-Hour Economy, one job, three shifts, and creating more jobs—Would you say that you will commit to increasing the number of schools? Because definitely not all schools have been captured.

Dr Lartey: Mr Speaker, obviously, that is the request of many districts, especially districts that were carved out of the bigger ones because some have very low numbers experiencing or enjoying the school feeding programme. The expansion is a discussion on the table and I am sure that, at the right time, His Excellency the President, through the Minister for Finance, will give us the needed go ahead to consider more schools on board. But as we speak, we want to ensure that what we have is stabilised and the quality improved, and sustained then we can take on more. We do not want to mix it up with what is rolling out now, so, eventually, we will get there.

Osahen Afenyo-Markin: Mr Speaker, this will be my very last question on this.

Hon Minister, this expansion that you are talking about, I know there are a number of schools in the Volta Region that are not on the School Feeding Programme. There are a number of schools in the Central Region that are expecting consideration and even those in the Western North, *et cetera*. With the Mid-Year Review in sight, should these schools have any expectation?

Dr Lartey: Mr Speaker, for this year, I do not see that happening, especially in the Mid-Year Review because there is a lot that has to be considered. We have a lot of data that speak to the fact that if it is going to be rolled out, it should be more strategic and targeted because we are actually working towards the expansion and it is going to be holistic.

Mr First Deputy Speaker: Yes, Prof Kingsley Nyarko?

Prof Kingsley Nyarko: Mr Speaker, thank you for the opportunity.

I would like to enquire from the Hon Minister for Gender, Children and Social Protection if there is a time frame within which data is normally provided?

I am asking this question because without a reasonable time frame, it may be late in processing payments for institutions that have submitted the data. So, if she could appraise the House if there is a reasonable time frame and if there is none, would they consider

having a reasonable time frame, so that they can effectively deal with the backlogs and all the tensions surrounding payments?

Dr Lartey: Mr Speaker, there is, but, as we all know, 2024 was an election year, so some of the processes were distorted and that is also what affected the cooking or the catering services that were rendered to the schools. So, this is an exception; in fact, with the delays, there is a time frame and we are monitoring. They have been given a deadline; when it expires, the needed actions will be taken. So, I can only assure the Hon Member that, very soon, he will hear from us.

Mr First Deputy Speaker: Hon Members, on behalf of the House, I express my sincere gratitude to the Minister for Gender, Children and Social Protection for attending upon the House and providing Answers to Questions. You are hereby discharged.

It is now time to take Question number 71 programmed for the Hon Minister for Labour, Jobs and Employment, who is already seated. The Question stands in the name of Mr Francis-Xavier Kojo Sosu, the Member of Parliament for Madina.

MINISTRY OF LABOUR, JOBS AND EMPLOYMENT

Five Per cent Minimum Employment of Persons with Disability

Mr Francis-Xavier Kojo Sosu (NDC — Madina): Mr Speaker, I beg to ask the Minister for Labour, Jobs and Employment the measures being taken to introduce a regime to ensure 5 per cent

minimum employment of persons with disabilities in all public and private sector institutions in Ghana.

Minister for Labour, Jobs and Employment (Dr Abdul-Rashid Hassan Pelpuo) (MP): Mr Speaker, the Ministry of Labour, Jobs and Employment, as the lead Government agency on employment matters, is coordinating the development of an employment equity policy to achieve full inclusion for persons with disabilities, marginalised and vulnerable groups in the labour market and to ensure equal opportunities for all by removing barriers and promoting diversity across sectors.

The Ministry is also reviewing the Labour Act, 2003 (Act 651) which will, among others, seek to reinforce aspects of the Persons with Disabilities Act, 2006 (Act 715). Both proposals include a quota system of 10 per cent in all public and private employment opportunities. This quota system seeks to:

- (a) ensure the compulsory inclusion of qualified PWDs in all employment;
- (b) compel employers to provide appropriate data on employment of PWDs to the Ministry for publications and policy making; and
- (c) encourage employers to train or retrain workers on how to handle PWDs in world of work.

8.27 p.m.

Mr Speaker, ensuring 5 per cent of minimum employment of PWD in the public sector requires effective collaboration among public sector corporations. In this regard, my Ministry seeks to liaise with the Public Services Commission, Office of the Head of Civil Service, Office of the Head of Local Government Service, Ghana Education Service, Ghana Health Service, Judicial Service, Security Services, that is the Ghana Police Service, Ghana Prisons Service, Ghana National Fire Service, Ghana Immigration Service, and other public corporations on approaches to ensure a minimum of 5 per cent employment of PwDs within these institutions.

Normally, these public sector institutions employ PwDs as and when they deem appropriate. However, it is proper that we collaborate with them more often to ensure that they reserve a minimum of 5 per cent quota for the employment of PwDs within their respective organisations. In relation to the private sector, the approach is quite different since Government does not have absolute control. However, Section 1461 of the Labour Act 2003, (Act 651) prescribes special incentives for employers who engage the services of PwDs.

My Ministry would leverage this provision to engage the Ghana Employers Association, Private Enterprise Federation, Ghana National Chamber of Commerce and Industry, among other private sector organisations, to reserve a minimum of 5 per cent employment quota for PwDs in

their respective organisations and institutions.

Mr Speaker, it is important to emphasise that the implementation of this policy initiative will require consultations among all key stakeholders, including the Ministry of Gender, Children and Social Protection, Ministry of Finance, National Council for Persons with Disabilities, Ghana Federation of Disability Organisations, National Tripartite Committee and this august House. I, therefore, count on your support in rolling out this policy initiative for PWDs in promoting inclusion and industry for national development.

Mr First Deputy Speaker: Any supplementary question?

Mr Sosu: Mr Speaker, I want to, on behalf of the PWDs in Ghana, thank the Hon Minister for the commitment he has made before this House to ensure that this policy becomes a reality in Ghana.

Mr Speaker, thank you very much.

Prof Nyarko —*rose*—

Mr First Deputy Speaker: Thank you.

We then move to the Question numbered 241. Yes, any supplementary question, Prof Kingsley Nyarko?

Prof Nyarko: Yes. Mr Speaker, I thank the Minister for the Answer he has provided. He talked about a policy, so I want to find out from him how soon this

policy would be consummated in lieu of the engagements. Also, how will he collaborate, as stated in the policy, with the Ministry of Works, Housing and Water Resources? This is because the Persons with Disability Act, 2006, (Act 715) enjoins us to ensure that all institutions should be disability-friendly.

So, if we have a policy and these institutions are not disability-friendly, how are we going to even engage them effectively? So, I am asking for when this good idea would be executed in terms of policy, and how his outfit would liaise with the Ministry of Works, Housing and Water Resources to ensure that we get buildings —

Mr First Deputy Speaker: Hon Kingsley Nyarko, the second aspect of the question is not within the rules, so I will ask the Minister to proceed to answer your first question. This is because the question talks about 5 per cent minimum employment of PwD. This has nothing to do with the Ministry of Works, Housing and Water Resources.

Yes, Hon Minister?

Dr Pelpuo: Mr Speaker, we have a concept in a policy direction which takes into consideration that disability is not inability. They are Ghanaians capable of working and earning a living. So, our policy looks at the review of the labour policy that can directly have a legal frame to get them the opportunity to work just like any other person.

Mr First Deputy Speaker: The last Question is in favour of Hon Fatahiya

Abdul-Aziz, Member of Parliament for Savelugu.

Hon Member, you have the floor.

Safeguards and Bilateral Agreement of the Work Abroad Programme

Ms Fatahiya Abdul Aziz (NPP — Savelugu): Mr Speaker, I beg to ask the Minister for Labour, Jobs and Employment what safeguards and bilateral arrangements have been put in place under the “Work Abroad Programme” implemented in partnership with the Youth Employment Agency (YEA) and the United Arab Emirates to ensure the protection, welfare and fair treatment of Ghanaian youth offered opportunities in Abu Dhabi under this programme.

Dr Pelpuo: Mr Speaker, the Government of Ghana (GoG) has a signed Memorandum of Understanding (MoU) with the Government of the United Arab Emirates (UAE) dated 18th November, 2019, on manpower cooperation. The MoU seeks to promote fair treatment with clear accountability for employers and recruitment agencies.

Under the MoU, Ghanaian workers exported to the UAE for employment will receive contracts of employment from their employers and attested to by the Labour Department in accordance with national and labour laws.

The Ministry will also facilitate pre-departure orientation sessions for all workers to equip them with knowledge

on UAE laws, cultural norms, and contractual rights as well as the grievance redress mechanisms.

As part of the mechanisms for the implementation of the MoU, a Ghana-UAE Joint Committee would be established and activated to monitor and review the bilateral labour arrangements that exist between the two countries for maximum outcomes.

Mr Speaker, despite these safeguards, it is important to note that no bilateral arrangement has been implemented under the “Work Abroad Programme” in partnership with the Youth Employment Agency (YEA) and the United Arab Emirates.

The Ministry of Labour, Jobs and Employment reiterates its commitment to ensuring the protection, welfare, and fair treatment of all Ghanaian youth under the Work Abroad Programme, among other initiatives.

Thank you, Mr Speaker.

Mr First Deputy Speaker: Any supplementary question?

Ms Abdul Aziz: Mr Speaker, can the Minister provide information on the process of vetting recruitment agencies involved in the Work Abroad Programme, particularly, those facilitating employment in Abu Dhabi?

Dr Pelpuo: Mr Speaker, it is our policy and my commitment to ensure that all private recruitment agencies coming into this country, or within this

country, seeking to recruit our young people and get them to work elsewhere, must sign a MoU which is in accordance with our labour law and labour regulations. So, in that process, we get them to understand exactly what we require. We believe that what we take them through is enough orientation for them.

8.37 p.m.

Today, I had a discussion with the member responsible for labour at the World Bank, and we worked towards a situation where all these people will be given proper orientation before they seek to send our people out of the country. Thank you.

Ms Abdul Aziz: Thank you, Mr Speaker. I would like to ask the Hon Minister, what are the provisions in place to guarantee that participating youth will not be subjected to exploitative working conditions, including excessive working hours, unsafe environments, or unfair wage deductions?

Mr Speaker, thank you.

Mr First Deputy Speaker: Yes, Hon Minister?

Dr Pelpuo: Thank you very much. The safeguard is that the choice to go and work remains with the person seeking to go and work, and the signed contract with the companies they go to work for, the contracts are in the number of years a person seeks to work with them, after which the person is no longer permitted to stay in the company, so logically, you

get back home. We are trying to let Ghanaians who are going to work out there understand that they have a time period to stay with their working partner, after which they come back home. It will be a choice for them if they decide to sign further contracts, but not to stay there illegally. And part of the responsibility we have taken upon ourselves is to ensure that we give them enough orientation and training to be able to reach this level of acceptance and conduct.

Thank you.

Mr First Deputy Speaker: Yes, Hon Jerry Shaib?

Mr Jerry Ahmed Shaib: Mr Speaker, with deference to you, I wish to ask the Hon Minister if he has been aware of some unfair treatment meted out to some of these Ghanaian workers who find themselves in the United Arab Emirates (UAE), and what measures is his Ministry putting in place, to ensure that this sort of treatment would not continue? Just like my Sister indicated, some of them —

Mr First Deputy Speaker: Unfair treatment under the current programme?

Mr Shaib: Yes.

Mr First Deputy Speaker: Very well.

Hon Minister?

Dr Pelpuo: Mr Speaker, I am not aware of any unfair treatment under this

regime. In the last regime — the last administration got committed to make sure we do not tolerate people going to the Gulf any longer, especially to serve as domestic workers in the homes of people. So the policy that I came to emphasise is a good policy, and I insisted that we are not going to take anybody out there until we can be sure that our labour laws are respected and that our people going out there are equally respected.

Thank you.

Mr First Deputy Speaker: Hon John Darko?

Mr John Darko: Thank you very much, Mr Speaker.

Mr Speaker, in the Hon Minister's answer, he mentioned that he has pre-departure meetings with Ghanaians who go to these places. I want to find out whether in the last six months some Ghanaians have gone to these countries under the bilateral agreement, and whether he had this pre-departure training for them.

Thank you.

Mr First Deputy Speaker: Hon Minister?

Dr Pelpuo: So far, in my period, I have sent out 70 young men who had been prepared earlier before I came into office. They only needed my official support for them to go, and those were to Korea. They had given them almost a year training and some orientation before they could go. I got evidence of all that

and I permitted them to go. There are also some 300 young ladies who are supposed to leave this country, and I attended a programme in which the company seeking to send them out took them through an orientation. I went to speak there. There are situations — we now have a number of people who have shown interest. They will not be able to go immediately because we insist on the training and orientation, which we are yet to do. It is part of our policy direction and I would insist on that.

Thank you.

Mr First Deputy Speaker: Hon Kingsley Nyarko?

Prof Kingsley Nyarko: Mr Speaker, I would like to know from the Hon Minister, per paragraph two of his response, if there is a specific number of Ghanaians that we are expecting, and also if there are specific skills that are needed before those Ghanaians will be exported.

Thank you.

Mr First Deputy Speaker: Yes, you are to repeat your question, particularly, the page.

Prof Nyarko: Sorry?

Mr First Deputy Speaker: Which page is the Answer that you are referring to? It is for ease of reference.

Prof Nyarko: Page number 12, the second paragraph says “Under MoU...”, and my question is that in the MoU, is there a specific number of Ghanaians

that we are expecting and again, if there are specific skills that one must acquire before they can be part of the programme?

Thank you.

Dr Pelpuo: Mr Speaker, it depends on the companies seeking to take our labour outside. They tell us the kind of qualifications, training, and skills that they will require for us to prepare the people for them. At the moment, there is an overwhelming request for Ghanaians to go and work elsewhere. But it is good to be cautious. And I am taking a number of cautious steps to make sure we take numbers which are not going to affect our labour requirements in Ghana. It should not be a situation of brain drain. It should be a situation of sharing the excess labour we have in a mutually beneficial manner so that when they go, it would not be a big drain on us. So, if we are signing an MoU with the companies taking them, they tell us that they want 20 technicians, 10 plumbers, five electricians, 10 welders, 10 teachers, and 20 nurses. We take that request and then do the supply. So, we will provide the information as required by the companies requiring them.

Thank you.

Mr First Deputy Speaker: Yes, Hon Fatawu Alhassan?

Mr Abdul-Fatawu Alhassan: Mr Speaker, thank you so much. Hon Minister, in the last few days, like three or four days now, there has been this development within the UAE, that is this

partition crackdown, where people who provide residential facilities normally partition these facilities to accommodate more people. These days, there is a crackdown on that. And this has always been the practice by the employers, where you have a company that would have an accommodation that could take about 20 people, partition that accommodation facility to now take about 100 or 200 people. In view of this recent development, I do not know whether the Ministry is taking steps to make sure that these people that we are taking there— because currently, workers are stranded. They do not even have where to lay their heads, let alone go to work. And so, I do not know whether the Ministry is taking this into consideration in their recent approvals.

Thank you.

Mr First Deputy Speaker: Hon Minister?

8.47 p.m.

Dr Pelpuo: Mr Speaker, I said here that we signed an MoU. The MoU had not been signed in the past to request them to bring us the criteria upon which they are going to engage our workers. Now we insist on it, that we want to sign the MoU, we want to see the condition under which they are going to stay, and we want to see how much they are going to be paid and how they can return, how they are going to be treated, and all that. So, we are yet to see what happens, but there is also a request from us to have how other countries that have been very

successful, how they have gone through it, so that we can do a comparison to see how we can make ours better. It is part of the reason we are delaying in sending people out right now. So hopefully we will avoid that. Thank you.

Mr First Deputy Speaker: Yes, Hon Member?

Ms Theresa Lardi Awuni: Thank you very much, Hon Speaker. The Minister mentioned earlier that the MoU was not part of the agreement with the people who carried our hard-working young men and women out there. I am not surprised because we heard about maltreatment and ill-treatment of these people, and audios and videos they make back home. I only want to urge my Hon Minister to ensure that those who have gone ahead without this MoU, he should try and reach out to those companies or those factories that have employed these people to ensure—

Mr First Deputy Speaker: So, what is your question?

Ms Awuni: My question is whether the Hon Minister would take steps to ensure that those who have gone already without this MoU are fairly treated or brought back home safely. Thank you, Mr Speaker.

Mr First Deputy Speaker: Yes, Hon Minister?

Dr Pelpuo: Thank you, Mr Speaker. Mr Speaker, if you look at the references we are making about people who had gone through this and suffered severely some kind of mistreatment in their lives, it was because many of them worked to go there on their own. Many of them even died on the way. There was no streamlined and organised process by which they could have pathways into a working life outside Ghana and because of that, people maltreated them badly. Now, we have a feeling that rather than just let people suffer and struggle and find their way to places where nobody knew about them, we now have to regulate it so that they do not just go on their own and suffer. So eventually, if we notice that there are some people elsewhere still under this bad treatment, we will definitely have to bring them back. Thank you.

Mr First Deputy Speaker: Yes, Minority Leader.

Osahen Afenyo-Markin: Mr Speaker, I just have one question for the very man who took interest in my upbringing in this Chamber and I am always proud of him and would always be grateful for his good counsel. Mr Speaker, the mainstay of the question was in respect of the safeguards. Because we have heard a lot. In my own constituency, I have heard a lot of stories. Sometimes, they tell us to send them money. It becomes a burden on us.

The Hon Minister spoke about the safeguards that, and I quote him, “I hereby reiterate that we are committed to ensuring the protection of our citizens”, in his answer. Now, by way of clarity, can the Hon Minister share with us what specific measures the Ministry has put in place in addressing these safeguards? Because, Mr Speaker, without sounding argumentative, the rules do not permit me to be argumentative. I have seen the headmaster responsible for the rules. The Hon Minister for the Interior, he is the headmaster in charge of rules. He is in this Chamber. He will get up very soon and raise issues of Order 89. So, Mr Speaker, I am not going there. All I am saying is that the MoU being signed is one thing. But when they get to UAE where they face the vagaries of life, where these employers sometimes ignore and because of the colour, it is as if they are not human. Can the Hon Minister share with us, how he has aligned the safeguards he mentioned to send a strong signal to these employers that they cannot take our citizens for granted and pounce on their vulnerabilities for their gain? Because I listened to the Hon Member for Yendi who raised the issue of an accommodation for 20 people where they partition it in such a way that they pack 100 people in. It is true. It is a fact. I have heard that.

So, Hon Minister, I have just given this background. And I am happy Mr Speaker has accommodated me to expand the background to the question so that you will be able to usher us into a specific

answer regarding the safeguards. Thank you very much. Mr Speaker, thank you for indulging me.

Mr First Deputy Speaker: Hon Minister?

Dr Pelpuo: Thank you, Mr Speaker. Mr Speaker, this is a very important question and I thank the Minority Leader for that. He is always very eloquent and aggressive sometimes. *[Laughter]* Actually, I have three steps I am taking. First of all, to get the Minister for Foreign Affairs to sign agreements with the various countries. So, there must be a bilateral agreement between us so that in the event of a problem, it is not localised to the person but taken as a national issue. The second is that I signed an agreement with the companies recruiting them upon good behaviour, good conduct and fair treatment. So eventually, when you send them there, you expect that they do not break the rules. Because it would have formed the conclusive part of the contract that you are taking our Ghanaian young people away. You are going to conduct your working life according to these rules and according to the legal frame of our own existing labour laws. And the third is that we insist in monitoring and evaluating the programme. So, I am planning to have a platform monitored by somebody. All the workers who are there will have their own phones. If you have a problem, you just state it there for us to take note of. This would, to my thinking, give a strong signal. Thank you so much.

Mr First Deputy Speaker: Hon Members, Question time has ended. We have spent more than five hours. I will proceed to adjourn the House.

The House is accordingly adjourned to Wednesday, 25th June, 2025, at 2 o'clock in the afternoon.

ADJOURNMENT

The House was adjourned at 9.02 p.m. till Wednesday, 25th June, 2025 at 2.00 p.m.

